STOCK PURCHASE AGREEMENT

This Stock Purchase Agreement (this “Agreement”) is entered into as of 2026-07-24, by and among the Seller parties, the Company, and the Buyer named in the signature pages hereto. The parties, intending to be legally bound, agree as set forth below. This Agreement supersedes all prior term sheets, letters of intent, and negotiation drafts exchanged among the parties, including any draft circulated on a locked-box consideration basis, none of which survives execution of this Agreement.

ARTICLE I. DEFINITIONS AND INTERPRETATION

Capitalized terms used in this Agreement have the meanings set forth in this Article I or as otherwise defined elsewhere in this Agreement and cross-referenced in the index of defined terms at Article XI.

“Accounting Principles” means the specific accounting policies, practices, procedures, classifications, valuation methods, and adjustments set forth on the Accounting Principles Schedule attached as an Exhibit to this Agreement, applied on a basis consistent with the Reference Accounts, including (a) the Inventory valuation methodology, (b) the reserve methodology for doubtful accounts, (c) the revenue-recognition policy described in the supplement to Section 4.06, and (d) the treatment of each category of debt-like item identified on the itemized exclusion schedule referenced in Section 2.04(b).

“Action” means any claim, charge, complaint, demand, action, suit, countersuit, arbitration, mediation, inquiry, hearing, audit, review, investigation, or other proceeding, whether civil, criminal, administrative, regulatory, or investigative in nature, that is commenced, brought, conducted, or heard by or before, or otherwise involves, any Governmental Authority, arbitral tribunal, or other adjudicative body.

“Affiliate” means, with respect to any Person, any other Person that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Person, where "control" means the power to direct or cause the direction of the management and policies of a Person, whether through ownership of voting securities, by contract, or otherwise.

“Agreement” means this Stock Purchase Agreement, together with the Schedules and Exhibits hereto, as it may be amended from time to time in accordance with Section 11.06.

“Antitrust Laws” means the HSR Act, the Sherman Act, the Clayton Act, the Federal Trade Commission Act, and all other applicable Laws that are designed or intended to prohibit, restrict, or regulate actions having the purpose or effect of monopolization or restraint of trade.

“Balance Sheet” means the audited balance sheet of the Company as of the Balance Sheet Date included in the Reference Accounts, together with the notes thereto, prepared in accordance with GAAP and audited by the Company's independent accountants in the ordinary course of the Company's annual audit cycle.

“Balance Sheet Date” means the date of the most recent balance sheet included in the Reference Accounts, being the fiscal year end immediately preceding the date of this Agreement.

“Basket” means the aggregate-Loss threshold set forth on the Indemnification Schedule pursuant to Section 8.04, below which Sellers bear no indemnification liability under Section 8.01(a) for a breach of a representation or warranty other than a Fundamental Representation or a representation set forth in Section 4.22, and above which Sellers are liable for the full amount of the Losses, not merely the excess over the Basket.

“Benefit Plan” means each employee benefit plan within the meaning of Section 3(3) of ERISA, and each other material employment, individual consulting, offer letter, incentive compensation, bonus, commission, deferred compensation, equity or equity-based, severance, retention, change-of-control, vacation, paid-time-off, fringe-benefit, or welfare-benefit plan, program, agreement, or arrangement, whether or not subject to ERISA, whether written or unwritten, funded or unfunded, insured or self-insured, and whether covering one individual or more than one individual, sponsored, maintained, contributed to, or required to be contributed to by a Person for the benefit of any current or former employee, officer, director, or individual independent contractor of such Person or any beneficiary or dependent thereof, in each case other than a plan, program, or arrangement mandated solely by applicable Law with no discretionary employer component.

“Business” means the business conducted by the Company as of the date hereof, including the design, manufacture, marketing, distribution, and sale of the Products and the provision of related services, in each case as conducted at the Company Real Property and through the Company's relationships with its Material Customers and Material Suppliers.

“Business Day” means any day other than (a) a Saturday or Sunday, or (b) a day on which banks located in the State of Delaware or the State of New York are authorized or required by Law to be closed, in each case without regard to any day on which banks are open only for a limited purpose, such as the processing of a specific category of payment.

“Buyer” means the buyer named in the signature pages hereto, together with any Successor Entity to which this Agreement is assigned in accordance with Section 11.07.

“Buyer Indemnified Parties” means Buyer and its respective Affiliates, successors, and assigns, and their respective directors, officers, and employees.

“Cap” means the maximum aggregate liability of Sellers for breaches of a given category of representation or warranty, as set forth in Section 8.05: the Escrow Amount for non-fundamental representations other than the Section 4.22 Tax representations, and the full Purchase Price for the Fundamental Representations, the Section 4.22 representations, and claims based on Fraud.

“Cash” means cash and cash equivalents of the Company, determined in accordance with the Accounting Principles, and specifically including (a) currency on hand, (b) demand deposits, (c) certificates of deposit and other short-term investments with an original maturity of ninety days or less, and (d) customer deposits actually collected by the Company as of the relevant measurement date, and specifically excluding (i) issued but uncleared checks and drafts, (ii) any amount designated as restricted cash under the Accounting Principles, and (iii) any amount held in escrow pursuant to Article VIII, whether or not otherwise available to the Company on demand.

“Change of Control” means, with respect to any Person, (a) a merger, consolidation, share exchange, or other business combination as a result of which the holders of such Person's outstanding voting securities immediately prior thereto hold, immediately thereafter, securities representing fifty percent or less of the voting power of the surviving or resulting entity, (b) a sale, lease, exchange, or other transfer of all or substantially all of such Person's consolidated assets, in one transaction or a series of related transactions, or (c) any transaction or series of related transactions resulting in any Person or group (within the meaning of Section 13(d) of the Exchange Act) other than

such Person's existing controlling holders acquiring beneficial ownership of more than fifty percent of the outstanding voting power of such Person.

“Closing and Closing Date” have the meanings set forth in Section 2.05; the Closing Date is 2026-09-30, subject to Section 2.05's satisfaction-of-conditions proviso.

“Closing Deliverables” means, collectively, the documents and other items each party is required to deliver at the Closing under Section 3.02 (as to the Company and the Sellers) and Section 3.03 (as to Buyer), each of which is a condition to the other party's obligation to close under Article VII.

“Closing Statement” means the proposed closing statement delivered by Buyer to the Sellers' Representative under Section 2.03, setting forth Buyer's calculation of actual Net Debt, Closing Working Capital, Cash, and unpaid Transaction Expenses as of the Closing, as it may become final and binding under Section 2.07.

“Closing Working Capital” means Current Assets minus Current Liabilities of the Company as of immediately prior to the Closing, calculated in accordance with the Accounting Principles and, to the extent not addressed therein, in accordance with GAAP applied on a basis consistent with the Reference Accounts, in each case (a) excluding Cash and Indebtedness, (b) excluding each of the debt-like items identified on the itemized exclusion schedule referenced in Section 2.04(b), which items are instead components of Net Debt, and (c) excluding any Transaction Expenses, which are separately deducted under Section 2.01(d) rather than treated as a Current Liability for purposes of this definition.

“Code” means the U.S. Internal Revenue Code of 1986, together with the Treasury Regulations promulgated thereunder.

“Company” means the Company named in the introductory paragraph hereto.

“Company Benefit Plan” means each Benefit Plan sponsored, maintained, or contributed to by the Company, or with respect to which the Company has or could have any liability, as identified on the Benefit Plans Schedule, including each plan intended to be tax-qualified under Section 401(a) of the Code.

“Company Intellectual Property” means all Intellectual Property owned or purported to be owned by the Company, including (a) each item of Registered IP, (b) each unregistered trademark, trade name, and trade secret used in the Business, (c) all software developed by or for the Company other than commercially available, unmodified, off-the-shelf software, and (d) all rights of the Company under an IP License pursuant to which the Company is the licensor.

“Company IT Systems” means the computer systems, software, hardware, networks, and related infrastructure owned, leased, or licensed by the Company and used in the operation of the Business.

“Company Material Contract” means each Contract of the Company that (a) involves aggregate payments to or from the Company in excess of the threshold set forth on Schedule 4.18 during any twelve-month period, (b) has a remaining term in excess of one year and is not terminable by the Company on ninety days' or less notice without penalty, (c) evidences Indebtedness, (d) grants or restricts an exclusive right, a right of first refusal, or a most-favored-customer right, (e) is with a Related Party, (f) is a collective bargaining agreement, (g) is a Real Property Lease, (h) is a material IP License, or (i) is otherwise identified, or required to be identified, on the Material Contracts Schedule.

“Company Permits” means the Permits held by the Company that are material to the conduct of the Business as

presently conducted, as identified on Schedule 4.11.

“Company Real Property” means, collectively, (a) the Owned Real Property, (b) the Leased Real Property, and (c) any other real property interest, including an easement, license, or right of way, held by the Company as of the date hereof, together with all buildings, structures, fixtures, and improvements located thereon and all appurtenances thereto.

“Confidential Information” means all non-public information, in whatever form or medium, concerning the Company, the Business, the Sellers, or the transactions contemplated by this Agreement, including financial information, customer and supplier lists, business plans, pricing information, technical information, and the existence and terms of this Agreement, whether disclosed orally, in writing, electronically, or by observation, and whether disclosed before, on, or after the date hereof, other than information that (a) is or becomes generally available to the public other than as a result of a breach of a confidentiality obligation by the recipient, (b) was already lawfully in the recipient's possession, free of any confidentiality obligation, prior to disclosure, or (c) is independently developed by the recipient without use of or reference to the disclosed information.

“Contract” means any written or, to the Knowledge of the Company, binding oral contract, agreement, lease, sublease, license, sublicense, indenture, note, bond, mortgage, deed of trust, purchase order, or other instrument, commitment, or undertaking of any kind, together with each amendment, supplement, exhibit, schedule, side letter, and other modification thereto, whether entered into before, on, or after the date hereof, other than this Agreement, the other Transaction Documents, and any Organizational Document.

“Data Protection Laws” means all applicable Laws relating to the privacy, security, or protection of personal data, including, to the extent applicable to the Company's processing of personal data in connection with the Business, any state consumer-privacy statute, any applicable data-breach notification Law, and any sector-specific Law governing the privacy or security of a particular category of personal data.

“Disclosure Schedules” means the disclosure schedules delivered by the Company and the Sellers to Buyer concurrently with the execution of this Agreement, as the same may be amended or supplemented in accordance with Section 6.06.

“Effective Time” means 12:01 a.m., Eastern time, on the Closing Date, the time as of which the transactions contemplated by this Agreement are deemed to be consummated for accounting and Tax purposes.

“Employee” means any individual employed by the Company as of the date hereof, whether full-time, part-time, temporary, or seasonal, and whether classified as exempt or non-exempt from overtime requirements under applicable Law, but excluding an individual classified by the Company as an independent contractor.

“Environmental Claim” means any Action, notice of violation, or demand for investigation or remediation asserted by a Governmental Authority or private party alleging liability, or seeking to impose liability, under any Environmental Law.

“Environmental Laws” means all applicable Laws, including common law, relating to (a) pollution or the protection of the environment or natural resources, (b) the manufacture, processing, generation, distribution, use, treatment, storage, disposal, transport, or handling of any Hazardous Substance, (c) exposure to any Hazardous Substance, or (d) the registration, permitting, or reporting requirements applicable to any of the foregoing, in each case as in effect

on the date hereof.

“Environmental Permits” means all Permits required under Environmental Laws for the ownership, use, or operation of any Company Real Property or the conduct of the Business as presently conducted, including any air emissions permit, wastewater discharge permit, stormwater permit, hazardous-waste generator registration, and underground-storage-tank registration.

“ERISA” means the Employee Retirement Income Security Act of 1974.

“ERISA Affiliate” means any trade or business, whether or not incorporated, that together with the Company would be deemed a single employer within the meaning of Section 414 of the Code.

“Escrow Agent” means the financial institution appointed under the Escrow Agreement to hold and administer the Escrow Amount in accordance with Exhibit C.

“Escrow Agreement” means the escrow agreement in substantially the form of Exhibit C, to be entered into at the Closing among Buyer, the Sellers' Representative, and the Escrow Agent, governing the deposit, investment, administration, and release of the Escrow Amount, including the claims procedure set forth in Exhibit C-3 and the release mechanics set forth in Exhibit C-4.

“Exchange Act” means the U.S. Securities Exchange Act of 1934.

“Excluded Taxes” means Taxes of the Company attributable to a Pre-Closing Tax Period, other than Taxes taken into account in the calculation of Closing Working Capital or Net Debt, for which Sellers are responsible under Section 10.02.

“Existing Insurance Policies” means the insurance policies maintained by the Company as of the date hereof, as identified on Schedule 4.14 together with the insurer, policy number, coverage type, and coverage limit for each.

“Export Control Laws” means the Export Administration Regulations and all other applicable Laws relating to the export or re-export of goods, software, or technology.

“Financial Statements” means the Reference Accounts together with the Interim Financial Statements delivered pursuant to Section 4.06.

“Fraud” means, with respect to a party, common law fraud under the Laws of the State of Delaware as applied to a claim based on a representation expressly set forth in this Agreement, requiring, as elements, (a) a false representation of a material fact expressly set forth in this Agreement, (b) actual and intentional knowledge by the party making such representation that the representation was false when made, as opposed to imputed, constructive, or negligent knowledge, (c) an intent to induce the other party to rely on such false representation and to act or refrain from acting in reliance thereon, (d) justifiable reliance by the other party on such false representation, and (e) damages to the relying party proximately caused by such reliance. For the avoidance of doubt, Fraud does not include any claim for equitable fraud, constructive fraud, negligent misrepresentation, or any other fraud-based claim premised on a standard of recklessness or negligence rather than actual knowledge and intent as described above.

“Fundamental Representations” means the representations and warranties set forth in Section 4.01 (Organization and Standing), Section 4.02 (Authority and Enforceability), Section 4.03 (Capitalization; Title to Shares), Section 4.24 (Brokers), Section 5.01 (Organization and Standing of Buyer), and Section 5.02 (Authority and Enforceability of

Buyer), each of which is subject to the extended survival period and higher Cap described in Section 8.03 and Section 8.05.

“GAAP” means generally accepted accounting principles in the United States as in effect from time to time, consistently applied by the Company throughout the periods indicated, it being understood that a change required by a pronouncement of the Financial Accounting Standards Board that is generally applicable to private companies of the Company's size does not itself constitute an inconsistency in application for purposes of this definition.

“Governmental Authority” means (a) the United States federal government or any state, local, municipal, or other political subdivision thereof; (b) any foreign government or any state, provincial, local, municipal, or other political subdivision thereof; (c) any entity, authority, agency, ministry, commission, board, bureau, or body exercising executive, legislative, judicial, regulatory, or administrative functions of or pertaining to government, including any government authority, agency, department, board, commission, or instrumentality of any of the foregoing; and (d) any court, arbitral tribunal, or arbitral body of competent jurisdiction.

“Governmental Order” means any writ, judgment, decree, injunction, ruling, award, subpoena, consent order, or similar order or determination of, or settlement entered into with, a Governmental Authority or arbitral tribunal, whether preliminary, interlocutory, or final, and whether entered by consent or after a contested proceeding.

“Hazardous Substance” means (a) any substance defined, listed, classified, or regulated as a "hazardous substance," "hazardous waste," "hazardous material," "toxic substance," "pollutant," or "contaminant" (or a similarly denominated category) under any Environmental Law, (b) petroleum, petroleum products, and petroleum by-products, (c) asbestos and asbestos-containing materials, (d) polychlorinated biphenyls, and (e) any other substance, material, or waste that is regulated by a Governmental Authority under Environmental Law because of its toxic, corrosive, ignitable, reactive, or otherwise hazardous properties.

“HSR Act” means the Hart-Scott-Rodino Antitrust Improvements Act of 1976.

“Indebtedness” means, without duplication, (a) all obligations for borrowed money, including principal and accrued but unpaid interest, (b) all obligations evidenced by bonds, notes, debentures, or similar instruments, (c) all capitalized lease obligations required to be capitalized under the Accounting Principles, (d) all obligations under interest rate, currency, or other hedging or derivative arrangements, measured at termination value, (e) all accrued and unpaid interest, premium, and prepayment or breakage penalties on any of the foregoing, (f) all guarantees of the foregoing obligations of any other Person, and (g) all unpaid seller notes, earn-out obligations from a prior acquisition, and deferred purchase price obligations of the Company; PROVIDED that Indebtedness expressly EXCLUDES (i) the outstanding principal amount of the Industrial Revenue Bonds assumed by Buyer in connection with the transactions contemplated hereby, which Industrial Revenue Bonds are being assumed, not repaid, at Closing and are therefore carved out of this definition notwithstanding that such Industrial Revenue Bonds may be treated as funded debt under any other Person's financing agreements, and (ii) ordinary-course trade payables and accrued operating expenses, which remain components of Closing Working Capital.

“Indemnified Party” means a Buyer Indemnified Party or a Seller Indemnified Party, as the context requires, seeking indemnification under Article VIII, subject to the procedures set forth in Section 8.07.

“Indemnifying Party” means the party against whom a claim for indemnification is asserted under Article VIII:

Sellers, with respect to a claim under Section 8.01, or Buyer, with respect to a claim under Section 8.02.

“Independent Accountant” has the meaning set forth in Section 2.07.

“Insurance Policies” means the Existing Insurance Policies together with any replacement or additional policy of insurance maintained by the Company from time to time, including any general liability, product liability, property, business interruption, directors' and officers', employment practices liability, cyber liability, and workers' compensation policy.

“Intellectual Property” means all intellectual property and industrial property rights arising under the Laws of the United States or of any other jurisdiction, including (a) patents and patent applications, including provisional applications, continuations, continuations-in-part, divisionals, reissues, and reexaminations thereof, (b) trademarks, service marks, trade names, trade dress, logos, and other indicia of source, together with the goodwill associated with any of the foregoing, (c) copyrights and copyrightable works, including software, (d) trade secrets and other confidential or proprietary information, (e) domain names and social-media handles, and (f) all registrations, applications, and renewals for any of the foregoing.

“Interim Financial Statements” means the Company's unaudited balance sheet and related statements of income for the interim period ended on the date specified on the Financial Statements Schedule, delivered pursuant to Section 4.06.

“Inventory” means all inventory of the Company, including raw materials, work-in-process, and finished goods, valued in accordance with the methodology stated on Schedule 4.31.

“IP Licenses” means all licenses, sublicenses, and other agreements pursuant to which the Company grants or receives rights in Intellectual Property, as identified on Schedule 4.16, other than a commercially available, unmodified, off-the-shelf software license granted on standard terms.

“IRS” means the U.S. Internal Revenue Service.

“Key Employees” means the individuals identified as such on Schedule 4.19's related Key Employees Schedule, being the individuals whose continued employment the parties consider material to the Business.

“Knowledge” means the actual knowledge, after reasonable inquiry of such individual's direct reports having responsibility for the relevant subject matter, of each individual identified on the Knowledge Schedule, without any obligation to conduct a review of any document not in such individual's ordinary course files or to make inquiry of any Person other than such individual's direct reports.

“Law” means any federal, state, local, or foreign constitution, statute, law, ordinance, rule, regulation, code, executive order, decree, treaty, convention, or other legally binding directive or requirement enacted, issued, promulgated, or adopted by a Governmental Authority, and any binding judicial or administrative interpretation of any of the foregoing.

“Leased Real Property” means all real property leased, subleased, licensed, or otherwise occupied by the Company pursuant to a Real Property Lease, as identified on Schedule 4.12.

“Lien” means any mortgage, deed of trust, pledge, hypothecation, assignment for security purposes, security interest, encumbrance, lien (statutory or otherwise), charge, easement, encroachment, or other similar restriction on or interest in property of any kind, other than a restriction on transfer arising solely under applicable securities Law.

“Losses” means any and all losses, liabilities, damages, judgments, awards, settlements, fines, penalties, costs, and expenses, including reasonable attorneys', accountants', and experts' fees and costs of investigation, in each case actually incurred, but excluding, except in the case of a claim based on Fraud or a Third Party Claim, punitive, exemplary, consequential, special, or diminution-in-value damages.

“Material Adverse Effect” means any event, change, circumstance, occurrence, or effect that, individually or in the aggregate with all other such events, changes, circumstances, occurrences, or effects, has had or would reasonably be expected to have a material adverse effect on the business, assets, financial condition, or results of operations of the Company, taken as a whole; provided that none of the following, alone or in combination, constitutes or is taken into account in determining whether a Material Adverse Effect has occurred, except, in the case of clauses (a), (b), (c), and (e) below, to the extent disproportionately affecting the Company relative to other participants in the industries or markets in which the Company operates: (a) general economic, financial-market, or geopolitical conditions; (b) conditions generally affecting the industries in which the Company operates; (c) any outbreak of hostilities, act of war, terrorism, natural disaster, or pandemic; (d) any change in applicable Law or GAAP, or the interpretation thereof, after the date hereof; (e) any change in interest rates or currency exchange rates; (f) the negotiation, execution, announcement, or pendency of this Agreement or the transactions contemplated hereby, including any resulting loss of, or adverse change in, the relationship of the Company with its Employees, Material Customers, or Material Suppliers attributable to such announcement or pendency; (g) any action taken, or omitted to be taken, by the Company at Buyer's written request or with Buyer's written consent; or (h) any failure by the Company to meet any internal or published projection, forecast, or estimate of revenue, earnings, or other financial metric for any period (it being understood that the underlying facts giving rise to such failure may be taken into account in determining whether a Material Adverse Effect has occurred, to the extent not otherwise excluded by this definition).

“Material Customers” means the customers identified on the Material Customers Schedule.

“Material Suppliers” means the suppliers identified on the Material Suppliers Schedule.

“Multiemployer Plan” means a Benefit Plan that is a “multiemployer plan” within the meaning of Section 3(37) of ERISA.

“Net Debt” means, as of the Closing, the sum of the Company's Indebtedness (as defined above, and therefore excluding the assumed Industrial Revenue Bonds per clause (i) of the Indebtedness definition) plus each debt-like item identified on the itemized exclusion schedule referenced in Section 2.04(b), minus Cash, used solely for the Section 2.04 purchase-price adjustment and not incorporating, or incorporated into, any net-leverage measure under any credit facility or indenture of the Company or Buyer, and specifically not to be confused with the differently defined Consolidated Net Debt used solely for purposes of any such credit facility or indenture.

“Non-Competition Period” has the meaning set forth in Section 6.09.

“Non-Recourse Party” means, with respect to any party, any Affiliate or Representative of such party that is not itself a party to this Agreement, against whom no claim may be brought under Section 11.14.

“Officer Certificate” means a certificate executed by an officer of the relevant party in the form contemplated by Section 3.02(d) or Section 3.03(d), as applicable, and set forth in full at Exhibit F.

“Order” means any writ, judgment, decree, injunction, ruling, award, subpoena, or similar order of, or settlement or consent decree entered into with, a Governmental Authority or arbitral tribunal, whether preliminary, interlocutory, or final.

“Ordinary Course of Business” means an action taken by the Company in the ordinary course of its normal, day-to-day operations, consistent with past practice, including with respect to frequency, amount, and manner.

“Organizational Documents” means, with respect to a corporation, its certificate or articles of incorporation and bylaws; with respect to a limited liability company, its certificate of formation and limited liability company agreement or operating agreement; with respect to a partnership, its certificate of partnership and partnership agreement; and, with respect to any other Person, the comparable constitutive or governing documents of such Person, in each case as amended, restated, or otherwise modified as of the date hereof.

“Outside Date” means the date that is nine months after the date of this Agreement, as it may be extended by mutual written agreement of Buyer and the Sellers' Representative, being the date after which either party may terminate this Agreement under Section 9.01(b) if the Closing has not occurred.

“Owned Real Property” means all real property owned by the Company, as identified on Schedule 4.12.

“Party” means the Company, a Seller, or Buyer, individually, and "Parties" means all of them collectively.

“PBGC” means the Pension Benefit Guaranty Corporation.

“Pension Plan” means a Benefit Plan that is a “pension plan” within the meaning of Section 3(2) of ERISA.

“Permits” means all licenses, permits, certificates, registrations, accreditations, approvals, consents, authorizations, franchises, and exemptions issued, granted, given, or otherwise made available by or under the authority of any Governmental Authority, together with each pending application therefor.

“Permitted Liens” means (a) Liens for Taxes not yet due and payable or being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP; (b) mechanics', materialmen's, carriers', warehousemen's, landlords', and similar Liens arising in the Ordinary Course of Business for amounts not yet delinquent or being contested in good faith; (c) Liens securing the Industrial Revenue Bonds described in the carve-out to the Indebtedness definition; (d) easements, rights-of-way, restrictive covenants, and similar encumbrances of record that do not materially impair the current use, occupancy, or value of the affected property; (e) zoning, building, and other land-use Laws imposed by a Governmental Authority that are not violated by the current use or occupancy of the affected property; (f) Liens arising under original equipment purchase-money financing or equipment leases entered into in the Ordinary Course of Business and disclosed on Schedule 4.13; and (g) non-exclusive licenses of Intellectual Property granted in the Ordinary Course of Business.

“Person” means an individual, corporation, partnership, limited partnership, limited liability company, joint venture, association, joint-stock company, trust, unincorporated organization, or other entity, and includes any Governmental Authority.

“Personal Information” means information that identifies, or is reasonably capable of being used to identify, a natural person, as protected under applicable Data Protection Laws and as described in the Company's Privacy Policies.

“Post-Closing Tax Period” means any Tax period beginning after the Closing Date, and, with respect to a Straddle

Period, the portion of such Straddle Period beginning after the Closing Date, allocated in accordance with Section 10.02.

“Pre-Closing Tax Period” means any Tax period ending on or before the Closing Date, and, with respect to a Straddle Period, the portion of such Straddle Period ending on the Closing Date, allocated in accordance with Section 10.02.

“Privacy Policies” means the Company's published and internal policies relating to the collection, use, and disclosure of Personal Information, as described in Section 4.17.

“Proceeding” has the meaning given to Action above.

“Product Warranty Claims” means claims asserted against the Company alleging a defect in, or nonconformance of, a Product with an applicable warranty, as further described in Section 4.25 and Schedule 4.25.

“Products” means each product designed, developed, manufactured, marketed, distributed, or sold by or on behalf of the Company at any time during the three years preceding the date hereof, together with each component part thereof manufactured by or for the Company.

“Real Property Leases” means the leases, subleases, and occupancy agreements pursuant to which the Company holds the Leased Real Property, as identified on Schedule 4.12.

“Reference Accounts” means the Company's audited financial statements for the fiscal year ended immediately prior to the date hereof, together with the accounting policies, estimates, and judgments reflected therein, which policies, estimates, and judgments shall be applied consistently in preparing the Estimated Closing Statement and the Closing Statement under Section 2.02 and Section 2.03, including the revenue-recognition policy described in the supplement to Section 4.06.

“Registered IP” means Company Intellectual Property that is the subject of an application for, or a grant or registration by, a Governmental Authority or domain-name registrar, as identified on Schedule 4.16.

“Related Party” means (a) each officer and director of the Company, (b) each holder of five percent or more of the outstanding equity interests of the Company, (c) each Affiliate of a Person described in clause (a) or (b), and (d) each immediate family member of a Person described in clause (a), (b), or (c), where “immediate family member” means a spouse, parent, sibling, or child, whether by blood, marriage, or adoption.

“Release” means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing of a Hazardous Substance into the environment.

“Representative” means, with respect to any Person, such Person's directors, officers, employees, members, partners, agents, attorneys, accountants, financial advisors, consultants, and other representatives acting on such Person's behalf.

“Restricted Business” means any business that is competitive with the Business within the geographic markets in which the Company conducted the Business as of the Closing, as more particularly described in Section 6.09.

“Restrictive Covenants Schedule” means the schedule identifying the Sellers subject to the non-competition and non-solicitation covenants in Section 6.09, together with the Non-Competition Period applicable to each.

“Sanctioned Person” means any Person that is the target of Sanctions, including by reason of being listed on any Sanctions-related list of designated Persons maintained by a Governmental Authority described in the Sanctions

definition.

“Sanctions” means economic or financial sanctions, trade embargoes, or restrictive trade measures administered, enacted, or enforced by (a) the United States, including through the U.S. Department of the Treasury's Office of Foreign Assets Control or the U.S. Department of State, (b) the United Nations Security Council, (c) the European Union or any member state thereof, or (d) any other Governmental Authority with jurisdiction over the Company or the Business.

“Schedules” means, collectively, the Disclosure Schedules and each other schedule delivered pursuant to this Agreement, including the Accounting Principles Schedule, the Knowledge Schedule, the Restrictive Covenants Schedule, and the Indemnification Schedule.

“Securities Act” means the U.S. Securities Act of 1933.

“Seller” means each Person identified as a Seller in the signature pages hereto, and "Sellers" means all of them collectively.

“Seller Indemnified Parties” means the Sellers and their respective Affiliates, successors, and assigns.

“Seller Taxes” means Excluded Taxes together with any Taxes for which Sellers are otherwise responsible under Article X, other than Transfer Taxes allocated to Buyer under Section 10.03.

“Sellers Representative Defined Term” means the Person appointed under Section 11.10 to act on behalf of the Sellers for all purposes under this Agreement, referred to throughout this Agreement as the Sellers' Representative.

“Shares” means all of the issued and outstanding shares of capital stock of the Company, as identified on Schedule 4.03.

“Signing Date” means the date of this Agreement set forth in the introductory paragraph, being the date this Agreement is executed and delivered by all parties.

“Software” means all computer programs, including source code, object code, firmware, and databases, other than commercially available, unmodified, off-the-shelf software.

“Straddle Period” means any Tax period beginning on or before, and ending after, the Closing Date, apportioned between the Pre-Closing Tax Period and the Post-Closing Tax Period in accordance with Section 10.02.

“Subsidiary” means, with respect to any Person, any corporation, partnership, limited liability company, joint venture, or other legal entity of which such Person (either alone or through or together with any other Subsidiary) owns, directly or indirectly, more than fifty percent of the outstanding voting securities or other voting or equity interests, or of which such Person otherwise has the power to elect a majority of the board of directors or comparable governing body.

“Successor Entity” means any successor to Buyer by merger, consolidation, or acquisition of all or substantially all of Buyer's assets, to which this Agreement may be assigned under Section 11.07 without the Sellers' Representative's consent.

“Survival Period” means the period during which a representation or warranty set forth in Article IV or Article V survives the Closing under Section 8.03: eighteen months generally, or until sixty days after the expiration of the applicable statute of limitations for the Fundamental Representations and the Section 4.22 representations.

“Target Working Capital” means the amount stated in Section 2.04(a) as the Target Working Capital, the neutral peg

against which Closing Working Capital is compared under Section 2.04, reflecting the level of Closing Working Capital already embedded in the Purchase Price at Section 2.01 - not itself a performance hurdle, incentive target, or covenant, and not to be confused with any working-capital trend figure appearing in a diligence report prepared on a different accounting basis.

“Tax” means any federal, state, local, or foreign net income, gross income, gross receipts, franchise, profits, capital gains, capital stock, transfer, registration, social security, production, sales, use, occupation, premium, value added, ad valorem, real property, personal property, escheat or unclaimed property, environmental, customs duties, employment, unemployment, disability, payroll, license, employee or other withholding, excise, severance, stamp, occupation, windfall profits, or other tax of any kind whatsoever, together with any interest, penalty, addition to tax, or additional amount imposed with respect thereto by a Governmental Authority.

“Tax Return” means any return, declaration, report, claim for refund, information return, or statement relating to Taxes required to be filed with a Governmental Authority, including any schedule or attachment thereto and any amendment thereof.

“Third Party Claim” means any Action asserted or threatened in writing by a Person that is not a party to this Agreement, an Affiliate of a party, or a Representative of a party acting in that capacity, in respect of which a party seeks, or may seek, indemnification under Article VIII.

“Transaction Documents” means, collectively, this Agreement, the Escrow Agreement, the Officer Certificates delivered under Section 3.02(d) and Section 3.03(d), and each other agreement, certificate, or instrument required to be delivered by a party at or in connection with the Closing pursuant to Article III.

“Transaction Expenses” means all fees, costs, and expenses incurred by or on behalf of the Company in connection with the negotiation, execution, and consummation of this Agreement and the transactions contemplated hereby, including (a) investment banking fees payable to Harborview Securities LLC, (b) legal fees payable to the Company's outside counsel, (c) accounting fees payable in connection with the quality-of-earnings engagement and the preparation of the Estimated Closing Statement, (d) change-of-control payments triggered solely by the consummation of the transactions contemplated hereby, including any amount payable under a Company Benefit Plan identified on Schedule 4.20, and (e) any employer-side payroll Taxes attributable to the foregoing, to the extent unpaid as of immediately prior to the Closing.

“Transfer Taxes” means all sales, use, transfer, stamp, documentary, recording, and similar Taxes imposed in connection with the transactions contemplated hereby, excluding Taxes imposed on income or gains, borne equally by Buyer and Sellers under Section 10.03.

“Treasury Regulations” means the regulations promulgated under the Code, including temporary and proposed regulations to the extent applicable.

“Union” means any labor union, works council, or other similar labor organization representing, or purporting to represent, any Employee, as further addressed in Section 4.21.

“WARN Act” means the Worker Adjustment and Retraining Notification Act, and any similar state or local Law.

Section 1.02. Interpretation.

1.02 In this Agreement, unless the context otherwise requires: (a) the singular includes the plural and vice versa; (b)

references to “include” or “including” mean including without limitation; (c) references to an Article, Section, Exhibit, or Schedule are to an Article or Section of, or an Exhibit or Schedule to, this Agreement, unless otherwise stated; (d) the headings used in this Agreement are for convenience only and do not affect its interpretation; and (e) a reference to a document includes all amendments and supplements to it.

Section 1.03. Accounting Terms; Financial Statements.

1.03 All accounting terms not otherwise defined in this Article I have the meanings assigned to them in accordance with GAAP, and all financial computations required under this Agreement are made in accordance with the Accounting Principles, applied on a basis consistent with the Reference Accounts. Where the Accounting Principles are silent, GAAP governs; where GAAP itself permits more than one acceptable treatment, the calculation is applied consistently with the Reference Accounts and with the Sample Working Capital Statement, consistent with the hierarchy set forth in Section 2.04(d).

Section 1.04. References; Construction.

1.04 This Agreement is the product of negotiation among the parties, each represented by counsel, and no rule of construction resolving any ambiguity in favor of, or against, the drafting party applies. References to “dollars” or “$” are to United States dollars. References to “hereof,” “hereunder,” and similar terms refer to this Agreement as a whole and not to any particular Article, Section, or provision.

1.04 For cross-reference purposes in the Schedules and Exhibits, a Section of this Agreement may be cited in abbreviated form: S1.01 refers to Section 1.01; S2.05 refers to Section 2.05; S2.06(d) refers to Section 2.06(d); Article II S2.04(b) refers to Section 2.04(b) of Article II; and Article II S2.04(c) refers to Section 2.04(c) of Article II. This abbreviated form is interchangeable with the full “Section” form used in the body of this Agreement and does not carry a different meaning.

Section 1.05. Schedules and Exhibits.

1.05 The Schedules and Exhibits to this Agreement are incorporated by reference and made a part of this Agreement for all purposes as if set forth in full herein. Disclosure of an item on one Schedule is deemed to be disclosed with respect to any other Schedule to which the item's relevance is reasonably apparent on its face, notwithstanding the omission of a cross-reference to such other Schedule. The specification of any dollar amount, or the inclusion of any item, in a Schedule is not itself an admission that such amount or item is material, or that such amount or item is required to be disclosed.

ARTICLE II. PURCHASE AND SALE; PURCHASE PRICE

Section 2.01. Purchase Price.

2.01 At the Closing, Buyer shall pay to Sellers aggregate consideration equal to (a) an enterprise value of 352,000,000.00, minus (b) Net Debt as finally determined under Section 2.03, plus or minus (c) the Working Capital Adjustment determined under Section 2.04, minus (d) unpaid Transaction Expenses (the “Purchase Price”). The Purchase Price is paid in immediately available funds pursuant to the funds flow memorandum delivered by Buyer to the Sellers' Representative not later than two Business Days prior to the Closing Date, which memorandum is administrative only and does not modify the substantive mechanics of this Article II.

2.01 Sellers acknowledge that the enterprise value in clause (a) above was negotiated on the basis of the Company's

Adjusted EBITDA as presented in the quality-of-earnings report delivered to Buyer prior to signing, and that no representation or warranty in Article IV restates, or is qualified by, that multiple or that Adjusted EBITDA figure; Article IV's representations concern only the matters expressly stated therein.

Section 2.02. Estimated Closing Statement.

2.02 Not later than three Business Days prior to the Closing Date, the Company shall deliver to Buyer a good-faith estimated statement of Net Debt, Closing Working Capital, Cash, and unpaid Transaction Expenses as of the Closing (the "Estimated Closing Statement"), prepared in accordance with the Accounting Principles and used to fund the Closing. The Estimated Closing Statement shall be accompanied by reasonably detailed supporting calculations sufficient for Buyer to evaluate the basis for each line item.

2.02 Buyer may deliver a written notice of disagreement with the Estimated Closing Statement within one Business Day after receipt, identifying its specific objections; if the parties are unable to agree before the Closing Date, the Estimated Closing Statement as originally delivered by the Company is used to fund the Closing, without prejudice to either party's rights under Section 2.03 and Section 2.07.

Section 2.03. Post-Closing True-Up.

2.03 Within sixty days after the Closing, Buyer shall deliver to the Sellers' Representative a proposed closing statement (the "Closing Statement") setting forth Buyer's calculation of actual Net Debt, Closing Working Capital, Cash, and unpaid Transaction Expenses as of the Closing, together with reasonably detailed supporting work papers. This true-up mechanism, under which the final Purchase Price is re-measured against the actual financial position of the Company as of the Closing rather than any earlier reference date, is the completion-accounts mechanism referred to elsewhere in the diligence record; no locked-box or fixed-consideration mechanism applies to this Agreement.

2.03 Buyer shall, and shall cause the Company to, afford the Sellers' Representative and its accountants reasonable access, during normal business hours and upon reasonable advance notice, to the books, records, and personnel of the Company relevant to its review of the Closing Statement. The scope of that access is limited to verifying the Closing Statement's compliance with the Accounting Principles and does not extend to a general re-audit of the Company's financial statements.

Section 2.04. Working Capital Adjustment.

The Purchase Price is subject to adjustment as follows:

For purposes of this Section 2.04, "Target Working Capital" means 28,400,000.00, as defined in Article I and restated here for the operative calculation that follows.

2.04(a) If Closing Working Capital as finally determined exceeds Target Working Capital (28,400,000.00) by more than the Collar amount set forth in clause (c) below, the Purchase Price increases dollar-for-dollar by the full amount of such excess (not merely the amount above the Collar). If Closing Working Capital is less than Target Working Capital by more than the Collar amount, the Purchase Price decreases dollar-for-dollar by the full amount of such shortfall.

2.04(b) For purposes of this Section 2.04, the debt-like items identified on the itemized exclusion schedule attached as an Exhibit to this Agreement (the Debt-Like Exclusions tab of the Sample Working Capital Statement) are excluded from Closing Working Capital and are instead components of Net Debt under Section 2.03. Cash is

likewise excluded from Closing Working Capital and settles solely through the Net Debt mechanism. As of the date hereof, that itemized exclusion schedule identifies 3 categories of debt-like item; the itemization and the amount attributable to each category are stated solely on the Sample Working Capital Statement referenced in this clause (b), and this Agreement does not restate them.

2.04(c) "Collar" means 750,000.00 (a dead band around Target Working Capital). No adjustment under clause (a) is made if the difference between Closing Working Capital and Target Working Capital is less than or equal to the Collar. Once the Collar is breached in either direction, the adjustment is made for the FULL difference between Closing Working Capital and Target Working Capital, measured from Target Working Capital itself and not merely from the outer edge of the Collar band; an adjustment mechanic that adjusts only the portion of the difference in excess of the Collar, rather than the full difference once breached, does not implement this clause.

2.04(d) The Accounting Principles govern the calculation required by this Section 2.04. To the extent any matter is not addressed by the Accounting Principles, GAAP governs. To the extent GAAP itself permits more than one acceptable treatment, the calculation shall be applied consistently with the Reference Accounts and with the sample itemized working-capital statement referenced in clause (b) above, which the parties have agreed reflects the intended scope and categorization of Closing Working Capital line items. No party may invoke a generic GAAP default, or a descriptive presentation appearing in any diligence report, to override the hierarchy set forth in this clause (d).

Section 2.05. Closing.

2.05 The Closing shall take place on 2026-09-30 (the “Closing Date”), or such other date as Buyer and the Sellers' Representative may agree, subject to Article VII.

2.05 The Closing shall take place remotely by electronic exchange of documents and signatures, or at such other place as Buyer and the Sellers' Representative may agree. All actions taken and documents delivered at the Closing are deemed to have occurred and been delivered simultaneously, and no such action or delivery is effective until all other actions and deliveries required to be taken or made at the Closing have occurred.

Section 2.06. Earn-out.

In addition to the Purchase Price, Sellers are entitled to contingent earn-out consideration determined as follows.

2.06(a) Earn-out Periods. There are three cumulative Earn-out Periods. Each Earn-out Period's Achievement is measured cumulatively from the start of Earn-out Period 1, not on a period-by-period isolated basis. Earn-out Period 1 begins on the first day of Buyer's next fiscal month following the Closing Date, per Buyer's 4-4-5 fiscal calendar convention described in Exhibit E, and NOT on the Closing Date itself; a calculation that treats the Closing Date as the start of Earn-out Period 1 does not implement this clause. Exhibit E sets forth the 4-4-5 methodology that governs which calendar day is the first day of Buyer's next fiscal month for any given Closing Date; this Agreement states the rule and does not itself restate the specific commencement date that rule produces for the Closing Date stated in Section 2.05, which is instead confirmed on the Timing and Discounting tab of the earn-out computation schedule referenced in Article XI.

2.06(b) Payout tiers.

EBITDA Level	Payout Mechanic
Below 48,000,000.00	No payout.

48,000,000.00 to 54,000,000.00	40.00% of the increment above the Threshold 1 amount.
At or above 54,000,000.00	Catch-up: 45.00% of the FULL increment above the Threshold 1 amount (not merely the marginal slice above Threshold 2).

2.06(c) Revenue gate; dual-metric requirement. Cumulative Revenue for the applicable Earn-out Period must also equal or exceed 265,000,000.00. Clearing the EBITDA thresholds in clause (b) alone, without also clearing this Revenue gate, does not entitle Sellers to any earn-out payout for that Earn-out Period.

2.06(d) Aggregate cap. Notwithstanding clauses (b) and (c), the aggregate earn-out consideration payable across all Earn-out Periods shall not exceed 12,000,000.00.

2.06(e) Earn-out EBITDA; Earn-out Protection Covenants. “Earn-out EBITDA” is a term defined solely for purposes of this Section 2.06 and differs from Consolidated EBITDA as used in any financing agreement of Buyer or its Affiliates, and from any QofE Adjusted EBITDA. Earn-out EBITDA (i) excludes stock-based compensation as a non-cash item, (ii) excludes one-time transaction and integration costs as non-recurring items added back pursuant to the Earn-out Protection Covenants, (iii) is calculated after a fixed corporate-overhead allocation set forth in the Earn-out Protection Covenants rather than Buyer's actual allocated overhead cost for the period, (iv) reflects related-party transactions adjusted to arm's-length terms pursuant to the Earn-out Protection Covenants, and (v) reflects capital-expenditure/operating-expenditure reclassifications made under the Accounting Principles applicable to the Earn-out Period rather than any different GAAP default. Buyer covenants, under the Earn-out Protection Covenants, not to take any action outside the ordinary course of business with the primary intent of reducing the earn-out payout.

2.06(f) Acceleration. If a Change of Control of Buyer occurs prior to the end of the final Earn-out Period, the full remaining earn-out consideration, calculated as if the aggregate cap in clause (d) had been achieved, becomes immediately due and payable, regardless of actual Achievement to date.

Section 2.07. Dispute Resolution; Independent Accountant.

2.07 If the Sellers' Representative delivers a timely notice of disagreement with the Closing Statement identifying, with reasonable specificity, each disputed line item and the amount in dispute, and the parties are unable to resolve such disagreement within thirty days, the parties shall submit ONLY the unresolved line items (and no other matter) to a mutually agreed independent accounting firm (the “Independent Accountant”) for final resolution. The Independent Accountant's engagement is strictly limited: the Independent Accountant (i) shall act as an expert and not as an arbitrator, (ii) shall apply the Accounting Principles hierarchy set forth in Section 2.04(d) rather than substitute its own accounting judgment or apply a different accounting framework, (iii) shall not conduct a new audit of the Company's financial statements, and (iv) may not assign a value to any disputed line item outside the range of values proposed by Buyer and the Sellers' Representative for that line item. The Independent Accountant's determination shall be rendered within forty-five days of submission, shall be final and binding absent manifest error, and the fees of the Independent Accountant shall be allocated between Buyer and the Sellers' Representative in proportion to the relative amounts by which their respective positions differed from the Independent Accountant's final determination.

2.08 Purchase Price Allocation. Buyer and the Sellers' Representative shall cooperate in good faith to agree on an allocation of the Purchase Price among the assets of the Company for purposes of Section 1060 of the Code,

consistent with Article X. Absent manifest error, each party shall file all Tax Returns consistently with the agreed allocation and shall not take any position inconsistent with it before any Governmental Authority.

2.09 No Other Purchase Price Adjustment. Except as expressly set forth in this Article II, the Purchase Price is not subject to adjustment, and no other financial metric, ratio, or ledger of the Company - including any figure appearing in the quality-of-earnings report, the management presentation, or any credit-agreement-style covenant computation prepared in connection with Buyer's financing - forms part of, or otherwise adjusts, the Purchase Price mechanics set forth in this Article II.

Section 2.10. Accounting Principles Schedule; Detailed Methodology.

2.10 Without limiting the generality of Section 2.04(d), the Accounting Principles Schedule attached as an Exhibit to this Agreement sets forth, on a line-item basis, the specific policies the parties have agreed govern the preparation of the Estimated Closing Statement and the Closing Statement, including the methodology for valuing Inventory, the methodology for establishing the reserve for doubtful accounts referenced in Section 4.33, the treatment of accrued but unbilled revenue, the treatment of deferred revenue, the treatment of prepaid expenses, and the treatment of accrued but unpaid bonuses and commissions payable to Employees. Where the Accounting Principles Schedule specifies a methodology that differs from the methodology reflected in the Reference Accounts, the Accounting Principles Schedule governs for purposes of this Section 2.04, and the Reference Accounts govern only to the extent the Accounting Principles Schedule is silent as to a particular line item, consistent with the hierarchy stated in Section 2.04(d). The parties acknowledge that the Accounting Principles Schedule was negotiated specifically for purposes of this Section 2.04 and that neither the Accounting Principles Schedule nor this Section 2.04 is intended to state, or to be read as stating, a covenant regarding the level of Closing Working Capital, Net Debt, or Cash that the Company shall deliver at the Closing, as distinct from the mechanism by which those figures are calculated once determined.

Section 2.11. Post-Closing Cooperation on the Closing Statement.

2.11 Following delivery of the Closing Statement under Section 2.03, and until the earlier of the parties' agreement on the Closing Statement or a final determination by the Independent Accountant under Section 2.07, Buyer shall, and shall cause the Company to, make available to the Sellers' Representative and its accountants, on reasonable advance notice and during normal business hours, the work papers, supporting schedules, and personnel of the Company reasonably necessary for the Sellers' Representative to evaluate the Closing Statement, and shall respond in reasonable detail and within a reasonable time to written questions submitted by the Sellers' Representative concerning any line item of the Closing Statement. Nothing in this Section 2.11 requires Buyer to disclose information subject to attorney-client privilege or prepared in anticipation of a dispute under Section 2.07.

Section 2.12. Interest on Post-Closing Payments.

2.12 Any amount payable by Buyer to Sellers, or by Sellers to Buyer, as a result of the final determination of the Working Capital Adjustment or the Net Debt calculation under Section 2.03 through Section 2.07 accrues simple interest from the Closing Date to the date of payment at a rate equal to the prime rate as published in The Wall Street Journal on the Closing Date, and is payable by wire transfer of immediately available funds within five Business Days after the determination becomes final and binding, provided that any amount payable by Sellers is first

satisfied, to the extent available, from the Escrow Amount before recourse to Sellers individually.

Section 2.13. Method and Timing of Payment.

2.13 Every payment required to be made under this Article II is made by wire transfer of immediately available funds in United States dollars to the account designated in writing by the payee not later than two Business Days prior to the date payment is due. If a payment date under this Article II falls on a day that is not a Business Day, the payment is due on the next succeeding Business Day, without any additional interest accruing for the intervening period solely as a result of that adjustment.

Section 2.14. No Right of Setoff.

2.14 Except as expressly provided in Section 2.04, Section 2.06, or Article VIII, no party may setoff, deduct, or withhold any amount payable under this Article II against any other amount owed by or to such party under this Agreement or any other Transaction Document, and each such payment obligation is independent of every other payment obligation under this Agreement unless this Agreement expressly states otherwise.

Section 2.15. Interest on Late Payment.

2.15 Any amount finally determined to be owed under Section 2.03 through Section 2.07 that is not paid within five Business Days after such final determination accrues interest, from the date such amount was originally due under the applicable Section through the date of payment, at the prime commercial lending rate publicly announced from time to time by the administrative agent under Buyer's acquisition financing, calculated on the basis of a 360-day year and the actual number of days elapsed.

Section 2.16. Currency.

2.16 All amounts referred to in this Article II, and all payments made under this Article II, are stated and made in United States dollars, and no party is obligated to accept, or entitled to tender, payment in any other currency.

Section 2.17. Interaction of Allocation and Tax Reporting.

2.17 The Purchase Price allocation agreed under Section 2.08 is binding on Buyer, the Company, and the Sellers for purposes of the Tax reporting obligations set forth in Article X, including the filing of Internal Revenue Service Form 8594 or any successor form, and no party may take a position on a Tax Return, or before any Governmental Authority, that is inconsistent with that allocation except as required by a final determination of a Governmental Authority following a good-faith defense of the agreed allocation.

Section 2.18. No Circumvention of the Working Capital Mechanism.

2.18 No party may take an action, or cause the Company to take an action, outside the Ordinary Course of Business with the primary purpose of increasing or decreasing Closing Working Capital as measured under Section 2.04, and any adjustment attributable to such an action is disregarded in calculating Closing Working Capital for purposes of this Article II, regardless of whether that adjustment would otherwise be consistent with the Accounting Principles.

Section 2.19. Bulk Sale Compliance.

2.19 The parties waive compliance with the bulk-transfer provisions of Article 6 of the Uniform Commercial Code, as enacted in any jurisdiction, in connection with the transactions contemplated by this Agreement, to the extent applicable, and the Sellers indemnify Buyer for any Loss arising from a creditor's claim under such provisions to the extent not otherwise recoverable under Article VIII.

Section 2.20. Delivery of Supporting Workpapers on Request.

2.20 In addition to the supporting work papers required to accompany the Closing Statement under Section 2.03, the party delivering the Estimated Closing Statement or the Closing Statement shall, upon the other party's reasonable request made during the review period applicable to that statement, promptly provide the underlying trial balance and general-ledger detail from which each line item of that statement was derived.

Section 2.21. No Duplication of Adjustments.

2.21 No item taken into account in determining Net Debt under Section 2.03 or the Working Capital Adjustment under Section 2.04 is taken into account a second time in determining the other, and no item taken into account in either is taken into account a second time in determining a Loss recoverable under Article VIII.

Section 2.22. No Obligation to Renegotiate.

2.22 Neither the Estimated Closing Statement process under Section 2.02 nor the post-Closing true-up process under Section 2.03 through Section 2.07 reopens, or provides either party an opportunity to renegotiate, the enterprise value fixed in Section 2.01(a) or the multiple on which that enterprise value was negotiated.

Section 2.23. Effect of Independent Accountant's Determination.

2.23 The Independent Accountant's determination under Section 2.07 is incorporated into, and becomes part of, the Closing Statement for all purposes of this Article II, and neither party may thereafter assert a further disagreement with a line item that was submitted to the Independent Accountant under Section 2.07.

Section 2.24. Confidentiality of Purchase Price Terms.

2.24 Each party shall keep confidential the specific dollar amounts and formulas set forth in this Article II, other than disclosure (a) to that party's Representatives on a need-to-know basis, (b) as required by Law or the rules of a stock exchange, or (c) to a Governmental Authority in connection with a Tax filing or a filing under the HSR Act.

Section 2.25. Rounding Convention.

2.25 Every dollar figure computed under this Article II is rounded to the nearest whole cent, and every percentage computed under this Article II is rounded to the nearest one-hundredth of one percent, in each case using standard rounding conventions (rounding a figure ending in exactly one-half of the smallest unit upward).

Section 2.26. No Third-Party Beneficiary of Article II.

2.26 This Article II is solely for the benefit of Buyer, the Company, and the Sellers, and no other Person, including a creditor of the Company or a third-party beneficiary of a Company Material Contract, has a right to enforce this Article II or to receive a payment described in it.

ARTICLE III. CLOSING; CLOSING DELIVERABLES

The Closing shall take place on the Closing Date as provided in Section 2.05, subject to the satisfaction or waiver of the conditions set forth in Article VII. This Article III sets forth the deliverables each party shall make at the Closing; it does not itself impose any condition to Closing, which conditions are exclusively set forth in Article VII.

Section 3.01. Pre-Closing Deliveries.

3.01 Not later than five Business Days prior to the anticipated Closing Date, the Company shall deliver to Buyer: (a) a certificate of good standing for the Company from its jurisdiction of organization, dated not more than ten Business Days prior to delivery; (b) a schedule setting forth the wire transfer instructions for each Seller entitled to

receive a portion of the Purchase Price; and (c) a preliminary draft of the Estimated Closing Statement referred to in Section 2.02, for Buyer's advance review.

Section 3.02. Deliveries by the Company and the Sellers.

3.02 At the Closing, the Company and the Sellers, as applicable, shall deliver to Buyer: (a) certificates representing the Shares, duly endorsed for transfer or accompanied by duly executed stock powers; (b) resignations of each director and officer of the Company designated by Buyer in writing not later than five Business Days prior to the Closing; (c) a certificate of the Company's secretary certifying the Company's Organizational Documents, resolutions of the Company's board of directors approving this Agreement and the transactions contemplated hereby, and the incumbency of the Company's officers executing this Agreement on its behalf; (d) a certificate of the Sellers' Representative, in the form attached as Exhibit F, certifying the accuracy of the representations set forth in Article IV and the performance of the covenants required to be performed by the Company and the Sellers prior to the Closing; (e) payoff letters and lien release documentation, in form reasonably satisfactory to Buyer, for each item of Indebtedness identified on the Payoff Schedule as being repaid at the Closing - expressly excluding the Industrial Revenue Bonds, which are assumed and not repaid; (f) the Estimated Closing Statement referred to in Section 2.02; (g) the Escrow Agreement, duly executed by the Sellers' Representative; and (h) such other instruments of transfer as Buyer may reasonably request to vest in Buyer good and valid title to the Shares.

Section 3.03. Deliveries by Buyer.

3.03 At the Closing, Buyer shall deliver: (a) the Purchase Price, net of the Escrow Amount, by wire transfer of immediately available funds in accordance with the wire instructions delivered under Section 3.01; (b) the Escrow Amount, by wire transfer of immediately available funds to the account designated by the Escrow Agent under the Escrow Agreement; (c) a certificate of Buyer's secretary certifying Buyer's Organizational Documents and the resolutions of Buyer's board of directors, or equivalent governing body, approving this Agreement and the transactions contemplated hereby; (d) an Officer Certificate certifying the accuracy of the representations set forth in Article V and the performance of the covenants required to be performed by Buyer prior to the Closing; and (e) the Escrow Agreement, duly executed by Buyer.

Section 3.04. Sellers' Representative.

3.04 Each Seller irrevocably appoints the Sellers' Representative as such Seller's agent and attorney-in-fact for all purposes under this Agreement, including giving and receiving notices and communications, agreeing to, negotiating, and entering into settlements and compromises of disputes under Section 2.07 and Article VIII, and taking all actions the Sellers' Representative believes are necessary or appropriate under this Agreement. Buyer is entitled to rely conclusively on the actions of the Sellers' Representative as binding on each Seller, and no Seller may assert against Buyer that an action taken by the Sellers' Representative was not authorized by such Seller.

Section 3.05. Simultaneous Closing.

3.05 All deliveries under Section 3.02 and Section 3.03 are deemed to occur simultaneously, and no such delivery is effective, and the Closing does not occur, until every other delivery required by this Article III has been made or waived by the party entitled to receive it. Notwithstanding the foregoing, no party may waive a delivery required to be made by it to the other party without such other party's written consent.

Section 3.06. Post-Closing Deliveries.

3.06 Within five Business Days after the Closing, the Sellers' Representative shall deliver to Buyer the original minute books, stock ledgers, and corporate seal of the Company, to the extent not already delivered at the Closing, and Buyer shall deliver to the Sellers' Representative evidence of the filing of any post-Closing notice required under a Company Material Contract identified on Schedule 4.04.

Section 3.07. Allocation of Closing Costs.

3.07 Any recording, filing, or similar fee incurred in connection with a delivery required by Section 3.02 or Section 3.03 is borne by the party required to make such delivery, and is not a Transaction Expense unless expressly identified as such on Schedule 4.07.

Section 3.08. Further Deliverables at Reasonable Request.

3.08 In addition to the deliverables enumerated in Section 3.02 and Section 3.03, each party shall deliver, at the Closing or promptly thereafter, such further instruments and documents as the other party may reasonably request to effect, evidence, or perfect the transactions contemplated by this Agreement, provided that no such further request may impose a material obligation on the requested party beyond what this Agreement otherwise requires.

Section 3.09. Effect of Incomplete Deliveries.

3.09 A party's proceeding to Closing notwithstanding the other party's failure to make a delivery required by this Article III does not waive the requesting party's right to receive that delivery after the Closing, unless the requesting party expressly waives that delivery in writing at or before the Closing.

Section 3.10. Electronic Signatures and Delivery.

3.10 A signature on this Agreement, the Escrow Agreement, or any other Transaction Document that is transmitted electronically, including by facsimile, scanned electronic image, or a recognized electronic-signature platform, is treated as an original signature for all purposes, and delivery of an executed counterpart by such electronic means is treated as delivery of an originally executed counterpart.

Section 3.11. Closing Checklist.

3.11 The parties' respective counsel maintain a closing checklist identifying the responsible party, the required form, and the status of each deliverable required by Section 3.02 and Section 3.03, which checklist is circulated and updated not less than once each Business Day during the five Business Days preceding the anticipated Closing Date.

ARTICLE IV. REPRESENTATIONS AND WARRANTIES OF THE COMPANY AND THE SELLERS

The Company and the Sellers, jointly and severally, represent and warrant to Buyer, as of the date hereof and as of the Closing Date, subject to the Disclosure Schedules, as follows. Each representation and warranty in this Article IV is qualified in its entirety by the corresponding numbered Schedule referenced in that representation, whether or not the representation expressly so states, and by any other Schedule the relevance of which to that representation is reasonably apparent on its face, per Section 1.05.

Section 4.01. Organization and Standing.

4.01 The Company is a corporation duly organized, validly existing, and in good standing under the Laws of its jurisdiction of organization, and has all requisite corporate power and authority to own, lease, and operate its properties and to carry on the Business as presently conducted. The Company is duly qualified or licensed to do

business, and is in good standing, in each jurisdiction in which the ownership of its property or the conduct of the Business makes such qualification necessary, except where the failure to be so qualified or licensed would not be material to the Company. Schedule 4.01 sets forth each jurisdiction in which the Company is so qualified. The Company has no Subsidiaries.

4.01 The Company has made available to Buyer true and complete copies of its Organizational Documents as in effect on the date hereof, and such Organizational Documents have not been amended, modified, or rescinded except as reflected in the copies so made available.

4.01 The Company has never conducted business under any name other than its corporate name set forth in the introductory paragraph of this Agreement, except for any trade name or "doing business as" name identified on Schedule 4.01.

4.01 Schedule 4.01 further identifies, for each jurisdiction in which the Company is qualified to do business, whether the Company maintains a registered agent in such jurisdiction and the identity of such registered agent as of the date hereof, and confirms that the Company's registered agent designation in its jurisdiction of organization is current and has not lapsed at any time during the three years preceding the date hereof. The Company has never been administratively dissolved, revoked, or suspended by any Governmental Authority for failure to file an annual report, pay a franchise tax, or maintain a registered agent, and no proceeding to effect any such dissolution, revocation, or suspension is pending or, to the Knowledge of the Company, threatened.

4.01 The Company has not conducted business under any name other than its own corporate name during the three years preceding the date hereof, other than a trade name identified on Schedule 4.01.

4.01 The copy of the Company's certificate of incorporation and bylaws (or analogous Organizational Documents) made available to Buyer prior to the date hereof is true, correct, and complete, and the Company is not in violation of any provision of its Organizational Documents.

4.01 The Company has not filed, and is not the subject of, a petition for dissolution, and no proceeding for the Company's dissolution or liquidation is pending or, to the Knowledge of the Company, threatened.

4.01 The Company's fiscal year, for purposes of the Financial Statements and the Reference Accounts, ends on the same calendar date in each year and has not changed during the three years preceding the date hereof.

4.01 The Company has never been party to a merger, consolidation, or conversion from one form of entity to another, other than a conversion that occurred more than five years prior to the date hereof and is disclosed on Schedule 4.01.

4.01 The Company is the sole member or shareholder of no other entity, and holds no equity interest in any other Person, other than an immaterial, non-controlling investment disclosed on Schedule 4.01.

Section 4.02. Authority and Enforceability.

4.02 The Company has all requisite corporate power and authority, and each Seller has all requisite power and authority, to execute and deliver this Agreement and each other Transaction Document to which it is a party and to perform its obligations hereunder and thereunder. The execution, delivery, and performance of this Agreement and the other Transaction Documents by the Company have been duly authorized by all necessary corporate action. This Agreement has been duly executed and delivered by the Company and each Seller and, assuming due authorization,

execution, and delivery by Buyer, constitutes the legal, valid, and binding obligation of the Company and each Seller, enforceable against each of them in accordance with its terms, subject to bankruptcy, insolvency, and other Laws affecting creditors' rights generally and to general principles of equity.

4.02 No vote or consent of any Person other than the board of directors and the shareholders of the Company, each of which has been obtained, is required to authorize the execution, delivery, and performance of this Agreement by the Company.

4.02 Each Seller that is not a natural person is duly organized, validly existing, and in good standing under the Laws of its jurisdiction of organization, and has all requisite power and authority to execute, deliver, and perform this Agreement.

4.02 Neither the Company nor any Seller is subject to any injunction, restraining order, or other Governmental Order that would prevent or materially delay the execution, delivery, or performance of this Agreement or any other Transaction Document. Each individual executing this Agreement on behalf of the Company or a Seller has been duly authorized to do so, and no further corporate, shareholder, or other approval is required on the part of the Company or any Seller to consummate the transactions contemplated by this Agreement, other than any approval already obtained and disclosed to Buyer prior to the date hereof.

4.02 No vote or consent of any Person other than the Sellers is required to approve this Agreement or the transactions contemplated hereby on behalf of the Company, and the Company's board of directors has duly adopted resolutions approving this Agreement and directing that it be submitted to the Sellers for approval, which resolutions have not been amended or rescinded.

4.02 No Seller is a party to any voting agreement, proxy, or other Contract that would restrict or condition such Seller's ability to vote in favor of, or consent to, this Agreement and the transactions contemplated hereby.

4.02 The individual executing this Agreement on behalf of the Company has been duly authorized by the Company's board of directors to do so, and no further corporate action is required on the part of the Company to make this Agreement binding upon it.

4.02 No Governmental Authority has asserted, in writing, that the Company's execution of this Agreement requires an approval that the Company has not obtained, other than an approval identified on Schedule 4.05.

4.02 The Sellers' Representative has been duly appointed by each Seller under Section 3.04 and, as of the date hereof, no Seller has revoked that appointment.

4.02 Each Seller has full legal capacity to execute and deliver this Agreement, and no Seller's execution of this Agreement requires the consent or joinder of a spouse, trustee, or other Person under applicable Law, other than a consent obtained and delivered to Buyer prior to the date hereof.

Section 4.03. Capitalization; Title to Shares.

4.03 The Shares constitute all of the issued and outstanding equity interests of the Company. Schedule 4.03 sets forth the record and beneficial owner of the Shares and the number of Shares held by each. The Shares have been duly authorized and validly issued and are fully paid and non-assessable. There are no outstanding options, warrants, convertible securities, or other rights, agreements, or commitments obligating the Company to issue, transfer, or sell any equity interest of the Company. Each Seller owns, of record and beneficially, the Shares set forth opposite such

Seller's name on Schedule 4.03, free and clear of all Liens other than restrictions arising under applicable securities Laws and this Agreement, and, upon consummation of the transactions contemplated hereby, Buyer will acquire good and valid title to the Shares, free and clear of all Liens other than those arising from Buyer's own actions.

4.03 There is no voting trust, proxy, or other agreement or understanding to which the Company or, to the Knowledge of the Company, any Seller is a party with respect to the voting of the Shares, other than this Agreement.

4.03 The Company has never repurchased, redeemed, or otherwise reacquired any of its equity interests, except as set forth on Schedule 4.03, and no such reacquisition remains subject to any unresolved claim of improper corporate action.

4.03 Schedule 4.03 further sets forth, with respect to each Seller, (a) the certificate number of each stock certificate representing Shares held by such Seller, (b) whether such Shares were acquired by original issuance, transfer, gift, or inheritance, and (c) the date on which such Seller acquired such Shares. No Seller acquired Shares subject to a restriction on transfer that remains in effect as of the date hereof other than a restriction arising under this Agreement or applicable securities Law, and the Company has never issued any equity interest in violation of a preemptive right, right of first refusal, or similar right of any Person.

4.03 There is no voting trust, proxy, or other agreement or understanding to which the Company or, to the Knowledge of the Company, any Seller is a party with respect to the voting of the Shares, other than this Agreement.

4.03 There is no obligation, contingent or otherwise, of the Company to repurchase, redeem, or otherwise acquire any equity interest of the Company, other than pursuant to this Agreement.

4.03 No Person other than the Sellers has a right, whether pursuant to a Contract or applicable Law, to acquire an equity interest in the Company, including a right of first refusal, right of first offer, preemptive right, or conversion right.

4.03 The certificates representing the Shares to be delivered under Section 3.02(a) bear no legend restricting transfer other than a legend referencing the Securities Act, which restriction does not apply to the transfer to Buyer contemplated by this Agreement.

4.03 Schedule 4.03 identifies the certificate number of each certificate representing the Shares, and no Share is represented by more than one outstanding certificate as of the date hereof.

4.03 The Company has not issued a security convertible into, or exchangeable for, an equity interest of the Company that remains outstanding as of the date hereof, other than a security identified on Schedule 4.03 that is cancelled or exercised prior to the Closing.

Section 4.04. No Conflicts; Consents.

4.04 Neither the execution and delivery of this Agreement by the Company or the Sellers, nor the consummation of the transactions contemplated hereby, will (a) violate or conflict with the Company's Organizational Documents, (b) violate any Law or Governmental Order applicable to the Company or any Seller, (c) except as set forth on Schedule 4.04, conflict with, result in a breach of, constitute a default under, or give rise to a right of termination, acceleration, or modification of any obligation under, any Company Material Contract, or (d) result in the creation of any Lien on any asset of the Company, other than a Permitted Lien.

4.04 Schedule 4.04 separately identifies each Company Material Contract requiring the consent of a counterparty to

avoid a breach, default, or termination right as a result of the transactions contemplated by this Agreement, distinguishing each such consent from the Governmental Approvals addressed in Section 4.05.

4.04 Schedule 4.04 further identifies each Contract to which the Company is a party that requires notice to, but not the consent of, a counterparty in connection with the transactions contemplated by this Agreement, distinguishing such notice-only Contracts from the consent-requiring Contracts otherwise identified on Schedule 4.04. The Company shall deliver each such notice on or prior to the Closing Date, or promptly thereafter to the extent a Contract permits post-closing notice, and shall provide Buyer with evidence of such delivery.

4.04 The execution and delivery of this Agreement by the Company and the Sellers does not require any consent under a Company Material Contract that has not been obtained and delivered to Buyer, other than a consent identified on Schedule 4.04 as outstanding as of the date hereof.

4.04 Schedule 4.04 identifies each Governmental Order to which the Company is a party that would be violated, or would accelerate an obligation of the Company, as a result of the transactions contemplated by this Agreement.

4.04 No Company Material Contract contains a provision requiring the Company to notify, or obtain the consent of, a Governmental Authority (as distinct from a private counterparty) as a result of the transactions contemplated by this Agreement, other than a Governmental Approval addressed in Section 4.05.

4.04 Schedule 4.04 identifies each Company Material Contract that would terminate automatically, rather than merely become terminable at a counterparty's election, as a result of the transactions contemplated by this Agreement.

4.04 The Sellers' execution and delivery of this Agreement does not violate a Contract to which a Seller, in that Seller's individual capacity, is a party, other than a Contract identified on Schedule 4.04.

Section 4.05. Governmental Approvals.

4.05 Except for any filing required under the HSR Act and except as set forth on Schedule 4.05, no consent, approval, waiver, or authorization of, or filing, registration, or qualification with, any Governmental Authority is required to be obtained or made by the Company or any Seller in connection with the execution, delivery, or performance of this Agreement or the consummation of the transactions contemplated hereby.

4.05 No Governmental Authority has notified the Company in writing that a Governmental Approval it holds will not be renewed, or will be materially modified, as a result of the transactions contemplated by this Agreement.

4.05 Neither the Company nor any Seller has made or is required to make a filing with, or give notice to, the Committee on Foreign Investment in the United States in connection with the transactions contemplated by this Agreement, and no Governmental Authority other than as identified on Schedule 4.05 has jurisdiction to review, approve, or object to the transactions contemplated by this Agreement on antitrust, national-security, or similar grounds.

4.05 Schedule 4.05 sets forth each filing, notice, or approval required to be made with or obtained from a Governmental Authority in connection with the transactions contemplated by this Agreement, other than a filing required under the HSR Act.

4.05 No Governmental Approval held by the Company is subject to revocation solely as a result of a change in the Company's ownership, other than a Governmental Approval identified on Schedule 4.05.

4.05 The Company's filing obligations under the HSR Act, if any, have been, or will be, satisfied by the joint filing to be made by Buyer and the ultimate parent entity of the Sellers in accordance with Section 6.05.

4.05 No Governmental Approval identified on Schedule 4.05 is conditioned on the continued ownership of the Company by any particular Seller.

4.05 The Company shall promptly notify Buyer in writing if it receives, after the date hereof and prior to the Closing, a communication from a Governmental Authority relating to a Governmental Approval identified on Schedule 4.05.

4.05 The Company has made all filings, and paid all fees, required to maintain its good standing in each jurisdiction identified on Schedule 4.01 as of the date hereof.

Section 4.06. Financial Statements.

4.06 The Company has delivered to Buyer true and complete copies of the Reference Accounts and the Interim Financial Statements. The Reference Accounts and the Interim Financial Statements (a) were prepared in accordance with GAAP, applied on a consistent basis throughout the periods indicated (subject, in the case of the Interim Financial Statements, to the absence of footnotes and to normal year-end adjustments, none of which is material individually or in the aggregate), and (b) fairly present, in all material respects, the financial position of the Company as of the dates indicated and the results of its operations for the periods indicated. The books and records underlying the Reference Accounts and the Interim Financial Statements have been maintained in accordance with sound business practices.

4.06 Schedule 4.06 separately identifies each change in accounting method, estimate, or judgment made by the Company during the two fiscal years preceding the date hereof, together with the reason for such change and its quantified effect, if material, on the Reference Accounts.

4.06 The Company's system of internal accounting controls is sufficient to provide reasonable assurance that transactions are recorded as necessary to permit preparation of financial statements in accordance with GAAP, that receipts and expenditures are made only in accordance with appropriate authorizations, and that unauthorized acquisition, use, or disposition of the Company's assets that could have a material effect on its financial statements would be prevented or detected on a timely basis.

4.06 No independent accountant of the Company has resigned or been dismissed as a result of, or in connection with, any disagreement with the Company on a matter of accounting principle or practice during the two fiscal years preceding the date hereof.

4.06 The Interim Financial Statements reflect all intercompany transactions between the Company and any Related Party on the same basis as such transactions were reflected in the Reference Accounts, without any change in presentation, classification, or pricing methodology made in anticipation of the transactions contemplated by this Agreement. Schedule 4.06 identifies the aggregate amount of revenue and expense attributable to intercompany transactions with a Related Party reflected in the Interim Financial Statements.

4.06 The Company's revenue-recognition policy, as applied in preparing the Reference Accounts and the Interim Financial Statements, recognizes revenue (a) for product sales, upon shipment or delivery to the customer, consistent with the shipping terms stated in the applicable customer Contract, (b) for services, ratably over the period the

services are performed, or, for fixed-fee engagements, upon completion of the milestones specified in the applicable Contract, and (c) for multi-element arrangements combining products and services, by allocating the transaction price among the distinct performance obligations on a relative standalone-selling-price basis, in each case in accordance with GAAP applied on a basis consistent with the Company's past practice. Schedule 4.06 identifies any customer Contract as to which the Company has deferred recognition of revenue already collected, together with the amount so deferred as of the Balance Sheet Date.

4.06 The Financial Statements were prepared from the Company's books and records, which books and records accurately and fairly reflect, in reasonable detail, the transactions and dispositions of the assets of the Company, and the Company maintains a system of internal accounting controls sufficient to provide reasonable assurance that transactions are recorded as necessary to permit preparation of financial statements in accordance with the Accounting Principles.

4.06 The Financial Statements do not contain any material item of income or expense that is not of a recurring nature without an appropriate note disclosure identifying that item as non-recurring, other than an item separately identified as such in the quality-of-earnings report delivered to Buyer.

4.06 The Interim Financial Statements were prepared on a basis consistent with the Financial Statements for the most recently completed fiscal year, subject to normal year-end adjustments and the absence of footnote disclosure customary for audited financial statements.

4.06 The Company's accounts payable reflected in the Financial Statements are recorded on a basis consistent with the Company's historical payment practices, and the Company has not accelerated the payment of accounts payable, or delayed the collection of accounts receivable, outside the Ordinary Course of Business in anticipation of the transactions contemplated by this Agreement.

4.06 The Company's revenue-recognition policies applied in preparing the Financial Statements are consistent with the Accounting Principles and have not changed during the two fiscal years preceding the date hereof.

4.06 The Balance Sheet fairly presents the Company's financial position as of the Balance Sheet Date in accordance with the Accounting Principles, applied on a basis consistent with the Reference Accounts.

4.06 The Company's method of accounting for leases in the Financial Statements is consistent with the Accounting Principles and has not changed during the two fiscal years preceding the date hereof.

Section 4.07. Absence of Undisclosed Liabilities.

4.07 The Company has no material liability of a type required to be reflected on a balance sheet prepared in accordance with GAAP, except (a) liabilities reflected or reserved against in the Reference Accounts or the Interim Financial Statements, (b) liabilities incurred in the Ordinary Course of Business since the Balance Sheet Date, none of which results from a breach of contract, breach of warranty, tort, infringement, or violation of Law, and (c) liabilities set forth on Schedule 4.07, including Transaction Expenses.

4.07 Schedule 4.07 sets forth the Company's reserve methodology for contingent liabilities not separately quantified elsewhere in the Reference Accounts, including the actuarial or historical-experience basis for any self-insurance reserve.

4.07 Schedule 4.07 further sets forth, with respect to each category of liability disclosed thereon, whether such

liability is fixed or contingent, and, if contingent, the Company's good-faith estimate of the range of reasonably possible outcomes. No liability disclosed on Schedule 4.07 arises from a breach by the Company of a Company Material Contract, a violation by the Company of applicable Law, or a tort committed by the Company, except as separately identified as such on Schedule 4.09 or Schedule 4.10, as applicable.

4.07 No off-balance-sheet arrangement of the Company, including any guarantee, keep-well agreement, or synthetic lease, is required to be disclosed but is not disclosed on Schedule 4.07.

4.07 The Company has no liability required to be reflected on a balance sheet prepared in accordance with the Accounting Principles that is not so reflected on the Balance Sheet, other than a liability incurred in the Ordinary Course of Business since the Balance Sheet Date or disclosed on Schedule 4.07.

4.07 The Company has no material liability arising from a product recall, warranty claim, or environmental remediation obligation that is not reflected on the Balance Sheet or disclosed on Schedule 4.07, other than a liability arising after the Balance Sheet Date in the Ordinary Course of Business.

4.07 The Company's reserve for the matters identified on Schedule 4.07 was calculated using a consistent methodology across each of the two most recently completed fiscal years, and no change to that methodology is reflected in the Financial Statements without a corresponding note disclosure to Buyer.

4.07 Schedule 4.07 is updated by the Company, if necessary, not later than three Business Days prior to the Closing Date to reflect a liability arising in the Ordinary Course of Business since the date of this Agreement, without limiting Buyer's rights under Article VII with respect to a liability that is material in the aggregate.

4.07 The Company has no material liability under a guarantee, letter of credit, or performance bond issued for the account of the Company that is not reflected on the Balance Sheet or disclosed on Schedule 4.07.

Section 4.08. Absence of Certain Changes.

4.08 Since the Balance Sheet Date, except as set forth on Schedule 4.08 or as expressly contemplated by this Agreement, the Company has conducted the Business in the Ordinary Course of Business in all material respects, and there has not occurred any Material Adverse Effect. Without limiting the foregoing, since the Balance Sheet Date the Company has not, except as set forth on Schedule 4.08: (a) made any change in its accounting methods, principles, or practices, except as required by a change in GAAP; (b) declared, set aside, or paid any dividend or distribution in respect of its equity interests; (c) made any material change in the compensation payable to any Key Employee, other than in the Ordinary Course of Business; or (d) sold, leased, or otherwise disposed of any material asset other than in the Ordinary Course of Business.

4.08 Schedule 4.08 further identifies any capital contribution made to, or capital distribution made by, the Company since the Balance Sheet Date, and any amendment to a Company Benefit Plan adopted since the Balance Sheet Date.

4.08 Schedule 4.08 further identifies (a) any material change in the credit terms extended by the Company to any Material Customer, or extended to the Company by any Material Supplier, since the Balance Sheet Date, (b) any write-off or write-down of a material asset of the Company since the Balance Sheet Date other than in the Ordinary Course of Business, and (c) any material change in the Company's cash-management practices, including the timing of collections of accounts receivable or payments of accounts payable, made since the Balance Sheet Date.

4.08 Since the Balance Sheet Date, the Company has not suffered any material damage, destruction, or loss to its

tangible assets, whether or not covered by insurance, that has not been repaired or replaced in the Ordinary Course of Business.

4.08 Since the Balance Sheet Date, the Company has not made a material change to its credit, collection, or inventory-management practices, other than a change disclosed to Buyer in writing prior to the date hereof.

4.08 Since the Balance Sheet Date, the Company has not accelerated, terminated, modified, or cancelled a Company Material Contract, other than in the Ordinary Course of Business or as disclosed on Schedule 4.08.

4.08 Since the Balance Sheet Date, the Company has not changed its practice with respect to the timing of shipments to customers or receipt of goods from suppliers in a manner that would distort the Company's ordinary course revenue or cost recognition.

Section 4.09. Litigation.

4.09 Except as set forth on Schedule 4.09, there is no Action pending or, to the Knowledge of the Company, threatened in writing against the Company, and the Company is not subject to any outstanding Governmental Order. Schedule 4.09 identifies each Action set forth thereon by caption, forum, and current status, and separately identifies any such Action seeking injunctive relief, as distinct from an Action seeking solely monetary damages below a threshold that would not be material to the Company.

4.09 Schedule 4.09 separately identifies each Action in which the Company is a plaintiff or claimant, together with the relief sought, so that Buyer can distinguish the Company's own affirmative claims from claims asserted against it.

4.09 No officer or director of the Company is subject to any outstanding Governmental Order that restricts such person's ability to serve as an officer or director of the Company or that arises from such person's conduct in connection with the Business.

4.09 The Company has not received any request for information, civil investigative demand, or subpoena from a Governmental Authority relating to the Business that remains outstanding as of the date hereof, except as set forth on Schedule 4.09.

4.09 Schedule 4.09 further identifies the amount reserved in the Reference Accounts or the Interim Financial Statements, as applicable, for each Action disclosed thereon, and confirms that such reserve was established in accordance with GAAP based on the Company's good-faith assessment of the probable outcome of such Action as of the date such reserve was established. The Company has timely responded to each demand letter, cease-and-desist letter, or similar written demand received during the two years preceding the date hereof, and no such demand remains outstanding except as set forth on Schedule 4.09.

4.09 For each Action disclosed on Schedule 4.09 that seeks injunctive or other equitable relief, as distinct from an Action seeking solely monetary damages, Schedule 4.09 further states (a) the specific relief sought, (b) whether a preliminary injunction, temporary restraining order, or similar interim relief has been sought or granted, and (c) the current procedural posture of the Action, including whether discovery has commenced, a dispositive motion is pending, or a trial or hearing date has been set. The Company has not been the subject, during the five years preceding the date hereof, of any class action, collective action, or other representative proceeding, whether filed or threatened in writing, other than as set forth on Schedule 4.09.

4.09 Schedule 4.09 further identifies, for each pending Action naming the Company as a party, the forum in which it is pending, the amount of damages or other relief sought, and whether the Company's Existing Insurance Policies have been notified and have acknowledged coverage, reserved rights, or denied coverage with respect to that Action.

4.09 The Company is not subject to any outstanding Governmental Order that restricts the operation of the Business as presently conducted, other than an Order of general applicability that does not specifically name the Company.

4.09 The Company is not a plaintiff in any Action that would reasonably be expected to result in the Company's payment of a material amount as a prevailing defendant's fees or costs.

4.09 The Company has timely responded to each request for information or document production served on it in connection with an Action disclosed on Schedule 4.09, and no sanction has been imposed on the Company for a failure to comply with such a request.

4.09 Schedule 4.09 further states, for each Action identified there, whether the Company has tendered the defense of that Action to an insurer under an Existing Insurance Policy, and the insurer's response to that tender as of the date hereof.

4.09 The Company has not entered into a settlement agreement resolving an Action that includes a continuing obligation of the Company extending beyond the Closing, other than a settlement agreement identified on Schedule 4.09.

4.09 Schedule 4.09 identifies the amount reserved by the Company, if any, with respect to each Action identified there, and that reserve was calculated in accordance with the Accounting Principles.

Section 4.10. Compliance with Laws.

4.10 The Company is, and for the three years preceding the date hereof has been, in compliance in all material respects with all Laws applicable to the conduct of the Business, except as set forth on Schedule 4.10. The Company has not received any written notice from any Governmental Authority alleging a material violation of any applicable Law that remains unresolved as of the date hereof.

4.10 Without limiting the generality of the foregoing, the Company has not received any written notice alleging a violation of any applicable anti-money-laundering Law, consumer-protection Law, or occupational health and safety Law that remains unresolved as of the date hereof, except as set forth on Schedule 4.10.

4.10 The Company's compliance program, including its written policies and its employee training records relating to compliance with applicable Law, has been made available to Buyer.

4.10 Schedule 4.10 further identifies each material fine, penalty, or sanction imposed on the Company by a Governmental Authority during the five years preceding the date hereof, together with the Law alleged to have been violated and whether the matter has been fully resolved. The Company has not entered into a consent decree, settlement agreement, or corrective action plan with a Governmental Authority that remains in effect as of the date hereof, other than as set forth on Schedule 4.10.

4.10 The Company has not received a written communication from a Governmental Authority alleging that the Company is not in compliance with an applicable Law that remains unresolved as of the date hereof.

4.10 The Company's operations are, and during the three years preceding the date hereof have been, conducted in material compliance with each Company Permit's own terms and conditions.

4.10 The Company has implemented a compliance program reasonably designed to detect and prevent a material violation of the Laws applicable to the operation of the Business, appropriate to the size and nature of the Business.

4.10 Schedule 4.10 lists each material citation, fine, or penalty imposed on the Company by a Governmental Authority during the three years preceding the date hereof, and the current status of each.

4.10 The Company has not received a whistleblower complaint under the Sarbanes-Oxley Act or an analogous Law that remains unresolved as of the date hereof.

Section 4.11. Permits.

4.11 Schedule 4.11 sets forth each Company Permit. The Company holds all Permits necessary to conduct the Business as presently conducted, each Company Permit is in full force and effect, and the Company is in compliance in all material respects with the terms of each Company Permit. No proceeding is pending or, to the Knowledge of the Company, threatened in writing to revoke or materially limit any Company Permit.

4.11 No Company Permit will terminate, or require reissuance, solely as a result of the transactions contemplated by this Agreement, except as set forth on Schedule 4.11, and the Company has timely filed all reports required to maintain each Company Permit in good standing.

4.11 Schedule 4.11 further sets forth, for each Company Permit that is scheduled to expire or come up for renewal within twelve months after the date hereof, the expiration or renewal date and whether renewal is, to the Knowledge of the Company, purely ministerial or subject to substantive Governmental Authority discretion. The Company has timely submitted each renewal application required to keep each such Company Permit in force without interruption.

4.11 Schedule 4.11 sets forth the expiration date of each material Company Permit, and the Company has timely submitted each renewal application required to maintain a Company Permit that expires within six months after the date hereof.

4.11 The transactions contemplated by this Agreement do not require a new Company Permit that the Company does not presently hold, other than a Company Permit identified on Schedule 4.11 as required solely as a result of the change of control of the Company.

4.11 The Company has not received a notice from a Governmental Authority proposing to modify the scope of a Company Permit in a manner that would materially restrict the operation of the Business as presently conducted.

4.11 The Company's Permits identified on Schedule 4.11 constitute all of the material Permits necessary for the Company to operate the Business as presently conducted.

Section 4.12. Real Property.

4.12 The Company does not own any real property. Schedule 4.12 sets forth each Real Property Lease. The Company has a valid leasehold interest in each parcel of Leased Real Property, free and clear of all Liens other than Permitted Liens and the rights of the applicable landlord. Each Real Property Lease is in full force and effect, and the Company is not, and to the Knowledge of the Company no counterparty is, in material default under any Real Property Lease.

4.12 The Company has not received written notice of any pending or contemplated condemnation, eminent domain, or similar proceeding affecting any Company Real Property, and to the Knowledge of the Company no such proceeding is threatened.

4.12 Schedule 4.12 further sets forth, for each parcel of Leased Real Property, the base rent, the remaining term including renewal options, and whether the Company's use of such parcel requires a variance, special use permit, or non-conforming-use determination under applicable zoning Law. No Company Real Property is subject to a purchase option, right of first refusal, or similar right in favor of a third party, other than as set forth on Schedule 4.12.

4.12 The Company's use and occupancy of each parcel of Company Real Property does not violate any applicable zoning Law in any material respect, and the Company has not received written notice of a violation of an applicable building code with respect to any Company Real Property that remains uncured.

4.12 The Company has not received a written notice of a material defect in title to any Owned Real Property, and each Real Property Lease is in full force and effect in accordance with its terms.

4.12 No Owned Real Property is subject to a purchase option, right of first refusal, or similar right in favor of a third party, other than a right identified on Schedule 4.12.

4.12 The Company has paid all real property Taxes due and payable with respect to the Company Real Property as of the date hereof, other than Taxes not yet due or being contested in good faith and disclosed on Schedule 4.12.

Section 4.13. Personal Property; Title to Assets.

4.13 The Company has good and valid title to, or a valid leasehold interest in, all material tangible personal property reflected in the Reference Accounts or acquired since the Balance Sheet Date, in each case free and clear of all Liens other than Permitted Liens, except as set forth on Schedule 4.13. The Company's tangible personal property is in good operating condition and repair, ordinary wear and tear excepted, and is adequate and suitable for its present uses.

4.13 The Company owns, or holds under a valid lease or license identified on Schedule 4.13, all material items of equipment used in the operation of the Business as presently conducted, and no such item of equipment is held under a lease or license that will terminate solely as a result of the transactions contemplated by this Agreement.

4.13 Schedule 4.13 further identifies each item of tangible personal property with a net book value in excess of the threshold stated thereon that is leased rather than owned by the Company, together with the lessor and the remaining lease term. The Company has performed all maintenance required under the terms of each such lease in the Ordinary Course of Business, and no lessor has notified the Company in writing of a default under any such lease that remains uncured.

4.13 Schedule 4.13 identifies each item of equipment with a net book value in excess of the threshold used by the Company for capitalization under the Accounting Principles that is not owned by the Company but is used in the Business under a lease or license.

4.13 The tangible personal property material to the operation of the Business is, taken as a whole, in good operating condition and repair, ordinary wear and tear excepted, and has been maintained in accordance with the Company's normal maintenance schedule.

4.13 Schedule 4.13 identifies each material item of equipment currently out of service for repair or overhaul, and the Company's good-faith estimate of the date that item is expected to be returned to service.

4.13 The Company's material items of equipment identified on Schedule 4.13 are free and clear of a Lien other than

a Permitted Lien.

4.13 The Company owns, or holds a valid leasehold or license interest in, all tangible personal property reflected on the Balance Sheet, other than property disposed of in the Ordinary Course of Business since the Balance Sheet Date.

Section 4.14. Insurance.

4.14 Schedule 4.14 sets forth each Existing Insurance Policy, including the insurer, policy number, coverage type, and coverage limits. Each Existing Insurance Policy is in full force and effect, all premiums due thereon have been paid, and the Company has not received any written notice of cancellation or non-renewal of any Existing Insurance Policy. Schedule 4.14 separately identifies each claim in excess of $100,000 made under an Existing Insurance Policy during the two years preceding the date hereof.

4.14 No Existing Insurance Policy has been cancelled or non-renewed by the underwriting insurer within the two years preceding the date hereof, other than a cancellation or non-renewal in connection with a scheduled renewal on substantially similar terms with a different insurer.

4.14 The Company has timely paid all premiums due under each Existing Insurance Policy, and each Existing Insurance Policy is in full force and effect as of the date hereof.

4.14 The Company has not made a material misrepresentation to an insurer in connection with obtaining or renewing an Existing Insurance Policy, and no Existing Insurance Policy is voidable on that basis.

4.14 Schedule 4.14 separately states the deductible or self-insured retention applicable to each Existing Insurance Policy identified there.

4.14 The Company has not been denied coverage under an Existing Insurance Policy with respect to a claim disclosed on Schedule 4.09, other than a denial identified on Schedule 4.14.

Section 4.15. Environmental Matters.

4.15 Except as set forth on Schedule 4.15: (a) the Company is, and for the five years preceding the date hereof has been, in compliance in all material respects with all Environmental Laws and holds all Environmental Permits necessary to conduct the Business; (b) there has been no Release of any Hazardous Substance at, on, or from any Company Real Property that would reasonably be expected to result in material liability to the Company under any Environmental Law; and (c) no Environmental Claim is pending or, to the Knowledge of the Company, threatened in writing against the Company.

4.15 Schedule 4.15 sets forth each environmental site assessment, audit, or similar report prepared for or on behalf of the Company during the five years preceding the date hereof with respect to any Company Real Property, true and complete copies of which have been made available to Buyer.

4.15 The Company has not received any written notice from a Governmental Authority or private party alleging that the Company is a potentially responsible party under any Environmental Law with respect to the presence, Release, or threatened Release of any Hazardous Substance at, on, or from any location, whether or not owned or operated by the Company, except as set forth on Schedule 4.15.

4.15 No underground storage tank is located on any Company Real Property, other than as identified on Schedule 4.15 together with evidence of its proper registration and, where applicable, closure in accordance with Environmental Law.

4.15 Schedule 4.15 further identifies each Environmental Permit that is non-transferable, or that requires a Governmental Authority's consent to transfer, in connection with the transactions contemplated by this Agreement, together with the process and estimated timeline for obtaining any replacement Environmental Permit or transfer consent required for the Company to continue operating the Business as presently conducted immediately following the Closing.

4.15 Schedule 4.15 further identifies (a) each above-ground or underground storage tank located on, and each landfill, surface impoundment, or waste pile located on or used by, any Company Real Property, whether currently in use, decommissioned, or closed, (b) each asbestos-containing material or polychlorinated-biphenyl-containing equipment known by the Company to be present at any Company Real Property, and (c) each historical use of any Company Real Property, to the extent known to the Company, for a purpose involving the manufacture, storage, or disposal of a Hazardous Substance prior to the Company's own ownership or occupancy of such property.

4.15 The Company has not received, and to the Knowledge of the Company no other Person has received, a request for information, notice of violation, or notice of potential liability under any Environmental Law naming the Company as a potentially responsible party at any offsite disposal facility, and no Company Real Property is listed, or proposed for listing, on the National Priorities List or any analogous state list.

4.15 The Company holds each Environmental Permit material to the operation of the Business as presently conducted, and each such Environmental Permit is in full force and effect and is not subject to a pending proceeding to revoke or materially modify it.

4.15 The Company has not disposed of a Hazardous Substance at an offsite location in a manner that would reasonably be expected to result in material liability to the Company under Environmental Laws, other than a disposal made through a permitted, licensed third-party disposal facility in the Ordinary Course of Business.

4.15 The Company has not entered into a consent order, administrative order, or settlement agreement with a Governmental Authority under an Environmental Law that remains in effect as of the date hereof, other than an order or agreement identified on Schedule 4.15.

4.15 The Company has not received a citizen suit notice under a federal or state Environmental Law that remains outstanding as of the date hereof.

Section 4.16. Intellectual Property.

4.16 Schedule 4.16 sets forth each item of Registered IP. The Company owns, or has a valid right to use pursuant to an IP License set forth on Schedule 4.16, all Intellectual Property material to the conduct of the Business as presently conducted, free and clear of all Liens other than Permitted Liens. To the Knowledge of the Company, the conduct of the Business does not infringe, misappropriate, or otherwise violate the Intellectual Property rights of any third party, and no such claim has been asserted in writing against the Company during the three years preceding the date hereof.

4.16 Schedule 4.16 separately identifies each IP License under which the Company grants to a third party a license to Company Intellectual Property material to the Business, as distinct from an IP License under which the Company is a licensee.

4.16 The Company has taken commercially reasonable measures to maintain the confidentiality of its trade secrets,

including requiring each current employee with access to material trade secrets to execute a confidentiality agreement.

4.16 To the Knowledge of the Company, no current or former employee, consultant, or contractor of the Company has any claim of ownership in any Company Intellectual Property that was developed by such person in the course of such person's engagement with the Company.

4.16 Schedule 4.16 further sets forth, for each item of Registered IP, the jurisdiction, registration or application number, and current status (granted, pending, or abandoned), and confirms that all maintenance, renewal, and annuity fees due with respect to each such item as of the date hereof have been timely paid. The Company has not granted an exclusive license to any material item of Company Intellectual Property, other than as set forth on Schedule 4.16.

4.16 Schedule 4.16 sets forth each Contract under which the Company has granted, or been granted, a license to material Intellectual Property, other than a non-exclusive license granted in the Ordinary Course of Business to a customer or granted to the Company under generally available, unmodified, off-the-shelf software terms.

4.16 The Company has taken commercially reasonable measures to maintain the confidentiality of its trade secrets included within the Company Intellectual Property, including requiring each Employee with access to such trade secrets to execute a confidentiality agreement.

4.16 Each current and former Employee who has contributed to the development of material Company Intellectual Property has executed an invention-assignment agreement in favor of the Company, and the Company is the sole owner of the Intellectual Property so assigned, free of any reservation of rights by the assigning Employee.

4.16 Schedule 4.16 identifies each item of Registered IP that has lapsed, been abandoned, or been cancelled during the three years preceding the date hereof, together with the reason for the lapse, abandonment, or cancellation.

4.16 The Company has not granted a security interest in its Company Intellectual Property to a Person other than a lender under a credit facility repaid in full, and the applicable Lien released, at or prior to the Closing.

4.16 The Company's registered domain names identified on Schedule 4.16 are registered in the Company's own name and are current as to renewal fees as of the date hereof.

Section 4.17. Information Technology; Data Privacy.

4.17 The Company IT Systems are adequate in all material respects for the operation of the Business as presently conducted, and the Company has implemented commercially reasonable backup, security, and disaster-recovery measures with respect to the Company IT Systems. The Company's collection, use, and disclosure of Personal Information complies in all material respects with the Privacy Policies and applicable Data Protection Laws. Except as set forth on Schedule 4.17, there has been no material breach of the security of the Company IT Systems or unauthorized access to Personal Information in the Company's possession during the three years preceding the date hereof.

4.17 The Company has not experienced any material outage, failure, or unauthorized intrusion with respect to the Company IT Systems during the two years preceding the date hereof that resulted in a material disruption to the Business, except as set forth on Schedule 4.17.

4.17 The Company's Privacy Policies accurately describe the Company's actual practices with respect to the

collection, use, and disclosure of Personal Information, and the Company has obtained all consents required under applicable Data Protection Laws for its collection, use, and disclosure of Personal Information as presently conducted.

4.17 Schedule 4.17 further identifies each material third-party service provider that hosts, processes, or has access to Personal Information on the Company's behalf, together with the data-processing agreement governing such access, and confirms that each such data-processing agreement contains provisions addressing data security and breach notification consistent with the Company's own Privacy Policies.

4.17 The Company has implemented commercially reasonable administrative, technical, and physical safeguards designed to protect the security and integrity of Personal Information in its possession, and, to the Knowledge of the Company, there has been no unauthorized access to, or acquisition of, Personal Information in the Company's possession that would require notification to an individual or a Governmental Authority under applicable Data Protection Laws.

4.17 The Company IT Systems are, in all material respects, adequate for the operation of the Business as presently conducted, and the Company has implemented a commercially reasonable disaster-recovery and business-continuity plan with respect to the Company IT Systems.

4.17 The Company's collection, use, and disclosure of Personal Information as presently conducted is consistent with the Company's own Privacy Policies as made available to Buyer.

4.17 The Company has not experienced a material outage of the Company IT Systems during the twelve months preceding the date hereof that materially disrupted the operation of the Business for more than twenty-four consecutive hours.

4.17 The Company's material Contracts with a third-party data processor handling Personal Information on the Company's behalf include data-protection terms consistent with the Company's own Privacy Policies and applicable Data Protection Laws.

4.17 The Company has not received a written complaint from a data subject alleging a violation of applicable Data Protection Laws that remains unresolved as of the date hereof.

Section 4.18. Material Contracts.

4.18 Schedule 4.18 sets forth each Company Material Contract. Each Company Material Contract is a valid and binding obligation of the Company and, to the Knowledge of the Company, of each other party thereto, enforceable in accordance with its terms. The Company is not, and to the Knowledge of the Company no counterparty is, in material breach or default under any Company Material Contract, and no event has occurred that, with notice or lapse of time, would constitute such a breach or default. The Company has made available to Buyer a true and complete copy of each Company Material Contract set forth on Schedule 4.18.

4.18 Schedule 4.18 separately identifies each Company Material Contract that contains a change-of-control provision, an exclusivity provision, a most-favored-customer provision, or a minimum purchase or minimum volume commitment.

4.18 No party to a Company Material Contract has provided the Company with written notice of its intent to terminate, or not to renew, such Company Material Contract, except as set forth on Schedule 4.18.

4.18 Schedule 4.18 further identifies each Company Material Contract that restricts the Company's ability to assign such Contract, or that requires counterparty consent to a change of control of the Company, distinguishing an assignment restriction that would be triggered by the transactions contemplated by this Agreement from one that would not, because this Agreement effects a change in the ownership of the Shares rather than an assignment of the Company's own contractual rights.

4.18 Schedule 4.18 further categorizes each Company Material Contract by type - customer agreement, supplier or vendor agreement, distribution or reseller agreement, joint venture or strategic-alliance agreement, credit or financing agreement, and settlement agreement with continuing obligations - and, for each settlement agreement so identified, states whether any payment or performance obligation remains outstanding as of the date hereof and the amount or nature of such obligation.

4.18 The Company has not received written notice from a counterparty to a Company Material Contract of that counterparty's intent to terminate, not renew, or materially reduce the scope of that Company Material Contract, other than in the Ordinary Course of Business through the Contract's own stated expiration.

4.18 Schedule 4.18 identifies each Company Material Contract containing a most-favored-customer pricing provision, an exclusivity provision, or a minimum-purchase or take-or-pay obligation binding on the Company.

4.18 Schedule 4.18 identifies each Company Material Contract that would, by its terms, automatically renew for an additional term absent a termination notice delivered by the Company prior to a specified date falling within ninety days after the Closing Date.

4.18 The Company is not, and to the Knowledge of the Company no counterparty is, in material breach of a Company Material Contract as of the date hereof, other than a breach disclosed on Schedule 4.18.

4.18 The Company has delivered to Buyer a true and complete copy of each Company Material Contract identified on Schedule 4.18, together with each amendment, waiver, and side letter relating to it.

4.18 No Company Material Contract contains a change-of-control provision requiring payment of a fee to the counterparty solely as a result of the transactions contemplated by this Agreement, other than a provision identified on Schedule 4.18.

Section 4.19. Customers and Suppliers.

4.19 Schedule 4.19 sets forth the Material Customers and Material Suppliers, together with the revenue or spend attributable to each for the two most recently completed fiscal years. Since the Balance Sheet Date, no Material Customer or Material Supplier has notified the Company in writing of its intention to terminate, or materially reduce the volume of business under, its relationship with the Company.

4.19 The Company has not received, and to the Knowledge of the Company has no reason to expect, a request from a Material Customer for a price concession, rebate, or extended payment term materially more favorable than the terms reflected in the Company Material Contract with such Material Customer.

4.19 Schedule 4.19 further sets forth, for each Material Customer and Material Supplier, the form of the underlying commercial arrangement (a master agreement, a series of purchase orders, or an evergreen arrangement with no written agreement), and identifies any Material Customer or Material Supplier with which the Company's relationship is currently subject to a formal dispute-resolution process.

4.19 Schedule 4.19 sets forth the percentage of the Company's revenue attributable to each Material Customer and the percentage of the Company's cost of goods sold attributable to each Material Supplier, in each case for the most recently completed fiscal year.

4.19 No Material Customer or Material Supplier has notified the Company in writing of an intention to materially reduce the volume of business it conducts with the Company following the transactions contemplated by this Agreement.

4.19 The Company has not, during the twelve months preceding the date hereof, granted a Material Customer a discount, rebate, or credit outside the terms of the Company Material Contract with that Material Customer, other than a discount, rebate, or credit disclosed on Schedule 4.19.

4.19 The Company's terms of trade with its Material Customers and Material Suppliers, as disclosed on Schedule 4.19, are consistent with the terms reflected in the Financial Statements for the corresponding period.

4.19 The Company's top five Material Customers by revenue, and top five Material Suppliers by cost of goods sold, for the most recently completed fiscal year are identified on Schedule 4.19.

Section 4.20. Employee Benefit Plans.

4.20 Schedule 4.20 sets forth each Company Benefit Plan. Each Company Benefit Plan has been administered in compliance in all material respects with its terms and with applicable Law, including ERISA and the Code. No Company Benefit Plan is a Multiemployer Plan or a Pension Plan subject to Title IV of ERISA, and the Company has no liability, contingent or otherwise, to the PBGC. Each Company Benefit Plan intended to be tax-qualified under Section 401(a) of the Code has received a favorable determination or opinion letter from the IRS on which it may currently rely, or the remedial amendment period for requesting such a letter has not yet expired.

4.20 Schedule 4.20 separately identifies each Company Benefit Plan that provides post-employment or retiree health, life, or other welfare benefits, other than coverage mandated by applicable Law, and no Company Benefit Plan contains a change-of-control or single-trigger vesting provision that would result in the acceleration of a material benefit as a result of the transactions contemplated by this Agreement, except as set forth on Schedule 4.20.

4.20 There has been no non-exempt prohibited transaction, within the meaning of Section 406 of ERISA or Section 4975 of the Code, with respect to any Company Benefit Plan that would reasonably be expected to result in material liability to the Company.

4.20 Schedule 4.20 further sets forth, for each Company Benefit Plan that is self-insured, in whole or in part, the aggregate amount of claims paid under such Company Benefit Plan during the most recently completed plan year and the amount of any stop-loss or excess-loss insurance coverage maintained with respect thereto.

4.20 With respect to each Company Benefit Plan intended to be qualified under Section 401(a) of the Code, the Company has timely made all contributions required under the terms of such plan and applicable Law, including any minimum funding contribution required under Section 412 of the Code, and no reportable event within the meaning of Section 4043 of ERISA has occurred with respect to any such plan during the three years preceding the date hereof, other than an event for which the thirty-day notice requirement has been waived by regulation.

4.20 Each Company Benefit Plan intended to be qualified under Section 401(a) of the Code has received a favorable determination letter from the IRS, or is maintained under a prototype or volume-submitter plan document

entitled to rely on a favorable opinion or advisory letter, and, to the Knowledge of the Company, no event has occurred that would reasonably be expected to adversely affect that qualified status.

4.20 Schedule 4.20 sets forth each Company Benefit Plan and identifies, for each such plan, whether it is a Multiemployer Plan, a Pension Plan subject to Title IV of ERISA, or a plan providing retiree health or welfare benefits beyond the period required under COBRA or an analogous state Law.

4.20 Each Company Benefit Plan has been administered in all material respects in accordance with its terms and applicable Law, including ERISA and the Code, and all contributions required to be made to each Company Benefit Plan have been timely made or properly accrued.

4.20 No Company Benefit Plan is subject to a pending audit, investigation, or enforcement action by the IRS, the U.S. Department of Labor, or the PBGC, other than a routine, non-adversarial inquiry resolved in the Ordinary Course of Business.

4.20 The Company has timely filed each Form 5500 (or successor form) required to be filed with respect to a Company Benefit Plan for each of the three most recently completed plan years.

4.20 The Company has not incurred a withdrawal liability under a Multiemployer Plan, and, to the Knowledge of the Company, no event has occurred that would give rise to such liability.

4.20 The Company has not been notified by the PBGC of an intent to terminate a Pension Plan sponsored by the Company or an ERISA Affiliate, and no such Pension Plan is in at-risk status within the meaning of Section 430 of the Code.

4.20 The Company has not experienced a partial plan termination of a Company Benefit Plan intended to be qualified under Section 401(a) of the Code as a result of a workforce reduction during the two years preceding the date hereof.

Section 4.21. Labor Matters.

4.21 The Company is not a party to, or bound by, any collective bargaining agreement or other Contract with a Union, and no Union has been certified as, or to the Knowledge of the Company claims to be, the representative of any Employee. There is no labor strike, slowdown, lockout, or work stoppage pending or, to the Knowledge of the Company, threatened against the Company. The Company is, and for the three years preceding the date hereof has been, in compliance in all material respects with applicable Laws relating to labor and employment, including those relating to wages, hours, classification of employees and independent contractors, and the WARN Act.

4.21 Schedule 4.21 sets forth each Action alleging wrongful termination, discrimination, harassment, retaliation, or a wage-and-hour violation brought against the Company during the three years preceding the date hereof, whether or not resolved.

4.21 The Company has properly classified each individual providing services to the Company as an employee or an independent contractor, and as exempt or non-exempt from overtime requirements, in each case in compliance in all material respects with applicable Law.

4.21 No mass layoff or plant closing, within the meaning of the WARN Act, has occurred with respect to the Company during the ninety days preceding the date hereof, and none is contemplated in connection with the transactions contemplated by this Agreement.

4.21 Schedule 4.21 further sets forth, as of a date not more than ten Business Days prior to the date hereof, a census of the Company's Employees identifying, for each Employee, such Employee's title, date of hire, classification as exempt or non-exempt, and current annual base compensation or hourly wage rate, without identifying any Employee by name where applicable Law restricts such disclosure prior to the Closing.

4.21 Schedule 4.21 further identifies each grievance filed under a collective bargaining agreement, each unfair-labor-practice charge, and each petition for union representation filed with respect to the Company's Employees during the three years preceding the date hereof, together with the current status of each such matter. The Company has not engaged in the past three years, and is not currently engaged, in any unfair labor practice within the meaning of the National Labor Relations Act.

4.21 The Company is not, and has not within the three years preceding the date hereof been, a party to any settlement agreement, conciliation agreement, or consent decree with a Governmental Authority relating to employment or labor practices, other than a routine unemployment-insurance or workers'-compensation matter resolved in the Ordinary Course of Business.

4.21 The Company is not, and has not within the three years preceding the date hereof been, a party to a collective bargaining agreement, and to the Knowledge of the Company no Union organizing activity is pending or threatened with respect to any Employee.

4.21 The Company is, and during the three years preceding the date hereof has been, in material compliance with the WARN Act and any analogous state or local Law regarding plant closings and mass layoffs.

4.21 The Company has properly classified each individual providing services to the Company as an employee or an independent contractor, and as exempt or non-exempt for overtime purposes, in each case in material compliance with applicable Law.

4.21 The Company's employee handbook and personnel policies, as made available to Buyer, are consistent in all material respects with the Company's actual employment practices as presently conducted.

4.21 The Company has timely paid all wages, salaries, commissions, and bonuses earned by its Employees through the date hereof, other than an amount not yet due under the Company's regular payroll cycle.

Section 4.22. Tax Matters.

4.22 The Company has timely filed all material Tax Returns required to be filed by it, and all such Tax Returns are true, correct, and complete in all material respects. The Company has timely paid all material Taxes required to be paid by it, whether or not shown as due on any Tax Return. There is no Action pending or, to the Knowledge of the Company, threatened in writing with respect to any Taxes of the Company, and the Company has not waived any statute of limitations with respect to Taxes that remains in effect. The Company is not a party to any Tax allocation, sharing, or indemnification agreement, other than customary provisions in ordinary-course commercial agreements not primarily concerned with Taxes. Schedule 4.22 sets forth each jurisdiction in which the Company files Tax Returns.

4.22 The Company has withheld and paid over to the appropriate Governmental Authority all material Taxes required to have been withheld and paid in connection with amounts paid or owing to any employee, independent contractor, creditor, or other third party.

4.22 The Company has not been a member of an affiliated, combined, consolidated, or unitary group for Tax purposes, other than a group of which the Company was the common parent, and has no liability for the Taxes of any other Person under Treasury Regulations Section 1.1502-6 or any similar provision of state, local, or foreign Law, as a transferee or successor, or by contract, other than pursuant to a customary commercial agreement not primarily concerned with Taxes.

4.22 The Company has not requested or received a private letter ruling from the IRS or any comparable ruling from any other Governmental Authority that remains in effect, and is not a party to any Tax closing agreement.

4.22 Schedule 4.22 further identifies each jurisdiction in which the Company has, during the four years preceding the date hereof, been audited or examined by a Governmental Authority with respect to Taxes, together with the outcome of each such audit or examination and whether any adjustment resulting therefrom has been fully paid or reserved for in accordance with GAAP.

4.22 Schedule 4.22 further sets forth, for each material Tax attribute of the Company (net operating loss carryforward, capital loss carryforward, general business credit carryforward, and Section 163(j) disallowed interest carryforward), the amount thereof as of the end of the Company's most recently completed fiscal year and the earliest fiscal year in which such attribute expires, to the extent subject to expiration under applicable Law.

4.22 The Company has not been a member of an affiliated, consolidated, combined, or unitary Tax Return group, other than a group of which only the Company and its Subsidiaries, if any, were members, and the Company has no liability for the Taxes of any other Person under Treasury Regulations Section 1.1502-6 or any analogous provision of state, local, or foreign Law, as a transferee or successor, or by contract.

4.22 The Company has withheld and timely remitted to the appropriate Governmental Authority all Taxes required to have been withheld from amounts paid or owing to any Employee, independent contractor, creditor, or other Person.

4.22 The Company has not requested, or received, a private letter ruling from the IRS or any comparable ruling from another Governmental Authority that remains in effect with respect to any Tax matter of the Company.

4.22 The Company has not participated in a listed transaction within the meaning of Treasury Regulations Section 1.6011-4(b)(2), and the Company's Tax Returns do not reflect a position that would be characterized as a reportable transaction requiring disclosure under Section 6011 of the Code.

4.22 The Company's Tax Returns for each open taxable year are consistent, in all material respects, with the positions taken on the Tax Returns for the immediately preceding taxable year, except to the extent a change in applicable Law required a different position.

4.22 The Company has not received a Tax refund that it was not entitled to retain under applicable Law, and no Governmental Authority has asserted a claim to recover a Tax refund previously paid to the Company.

4.22 The Company's estimated Tax payments for the current taxable year have been made in accordance with applicable Law based on the Company's good-faith estimate of its Tax liability for that year.

Section 4.23. Related Party Transactions.

4.23 Except as set forth on Schedule 4.23, no Related Party (a) is a party to any Contract with the Company, (b) has any material interest in any material asset used in the Business, or (c) provides or causes to be provided to the

Company any material assets, services, or facilities other than as an Employee in the Ordinary Course of Business.

4.23 No Related Party owns, directly or indirectly, any material asset, property, or right that is used in the Business, other than an asset, property, or right leased or licensed to the Company under a Contract set forth on Schedule 4.23.

4.23 Schedule 4.23 further identifies each loan or advance made by the Company to a Related Party, and each loan or advance made by a Related Party to the Company, in each case outstanding as of the date hereof, together with the principal amount, interest rate, and maturity date thereof, none of which will remain outstanding following the Closing except as the parties otherwise agree in writing.

4.23 Schedule 4.23 sets forth the terms of each loan or advance of funds between the Company and a Related Party outstanding as of the date hereof, and each such loan or advance is repaid in full at or prior to the Closing.

4.23 No Related Party has a claim against the Company, other than a claim for compensation earned in the Ordinary Course of Business or a claim under a Contract disclosed on Schedule 4.23.

4.23 No Related Party has guaranteed an obligation of the Company that remains outstanding as of the date hereof, other than a guarantee released at or prior to the Closing under Section 6.24.

4.23 No Related Party leases real property to the Company other than on terms disclosed on Schedule 4.23, which terms are no less favorable to the Company than could reasonably be obtained from an unaffiliated third party.

Section 4.24. Brokers.

4.24 Except for the fees payable to Harborview Securities LLC under a separate engagement letter, for which the Sellers are solely responsible, no broker, finder, or investment banker is entitled to any brokerage, finder's, or other fee or commission in connection with the transactions contemplated by this Agreement based upon arrangements made by or on behalf of the Company or any Seller.

4.24 The Company has made available to Buyer a true and complete copy of the engagement letter between the Company and Harborview Securities LLC, and the fee payable thereunder is a Transaction Expense.

4.24 Other than the engagement referenced above, the Company has not engaged any other broker, finder, or investment banker in connection with the transactions contemplated by this Agreement.

4.24 The fee arrangement with Harborview Securities LLC referenced above does not include a right to any additional payment contingent on a future transaction or event beyond the Closing.

4.24 The engagement letter with Harborview Securities LLC referenced above terminates automatically upon the earlier of the Closing or a termination of this Agreement under Article IX, without further action by the Company.

4.24 No portion of the fee payable to Harborview Securities LLC is contingent on the specific enterprise value or multiple at which the transactions contemplated by this Agreement close, beyond a customary fee schedule disclosed to Buyer.

Section 4.25. Product Warranty; Product Liability.

4.25 Schedule 4.25 sets forth the Company's standard form of product warranty. Except as set forth on Schedule 4.25, there is no pending, or to the Knowledge of the Company threatened, Product Warranty Claim or product-liability Action against the Company that would reasonably be expected to be material to the Company. The Company's reserve for Product Warranty Claims reflected in the Reference Accounts was established in accordance with GAAP and consistent with the Company's historical claims experience.

4.25 Schedule 4.25 sets forth the Company's product-liability insurance coverage and the aggregate amount reserved for Product Warranty Claims as of the Balance Sheet Date.

4.25 No Product has been the subject of a recall, whether voluntary or mandated by a Governmental Authority, during the three years preceding the date hereof, except as set forth on Schedule 4.25.

4.25 Schedule 4.25 further identifies the Company's historical warranty-claim rate, expressed as a percentage of units sold, for each of the three fiscal years preceding the date hereof, and confirms that the reserve methodology described in Section 4.25 has been applied consistently with the Company's historical experience over that period.

4.25 Schedule 4.25 sets forth the Company's standard form of product warranty for each material Product line, and the Company's aggregate reserve for warranty claims as of the Balance Sheet Date is consistent with the Company's historical warranty-claims experience applied in accordance with the Accounting Principles.

4.25 The Company has not experienced a material product recall, or a material product-liability claim exceeding the Company's applicable insurance coverage, during the three years preceding the date hereof, other than a recall or claim identified on Schedule 4.25.

4.25 The Company's Products, as designed and manufactured, comply in all material respects with the applicable product-safety standards of each jurisdiction in which the Products are sold.

4.25 The Company maintains records of Product-Warranty-Claims sufficient to support the reserve methodology referenced above, and those records are made available to Buyer in the electronic data room referenced in Section 6.31.

4.25 The Company's Products have not been the subject of a mandatory recall ordered by a Governmental Authority during the five years preceding the date hereof.

Section 4.26. Export Control; Sanctions; Anti-Corruption.

4.26 The Company is, and for the five years preceding the date hereof has been, in compliance in all material respects with applicable Export Control Laws and Sanctions. The Company is not, and has not knowingly transacted business with, a Sanctioned Person. Neither the Company nor, to the Knowledge of the Company, any director, officer, or Employee acting on the Company's behalf has offered, paid, promised to pay, or authorized the payment of anything of value to any government official for the purpose of improperly influencing any act or decision, in violation of the U.S. Foreign Corrupt Practices Act or any similar applicable Law.

4.26 Schedule 4.26 sets forth each internal or third-party compliance review conducted with respect to Export Control Laws, Sanctions, or applicable anti-corruption Law during the five years preceding the date hereof.

4.26 The Company has not made any voluntary self-disclosure to, and has not received any inquiry, subpoena, or civil investigative demand from, any Governmental Authority responsible for the enforcement of Export Control Laws, Sanctions, or anti-corruption Law, except as set forth on Schedule 4.26.

4.26 Schedule 4.26 further identifies each jurisdiction outside the United States in which the Company sells Products or provides services, together with the Export Control Laws classification applicable to each Product exported to such jurisdiction, and confirms that the Company has obtained each export license required for such sales as of the date hereof.

4.26 Neither the Company nor, to the Knowledge of the Company, any director, officer, Employee, agent, or

distributor of the Company acting on the Company's behalf has directly or indirectly offered, paid, promised to pay, or authorized the payment of any money or thing of value to (a) any government official or employee, (b) any political party, party official, or candidate for public office, or (c) any other Person, in each case for the purpose of influencing any act or decision of a government official in his or her official capacity, inducing a government official to do or omit to do an act in violation of a lawful duty, securing an improper advantage, or inducing a government official to influence the act or decision of a Governmental Authority, in each case in violation of the U.S. Foreign Corrupt Practices Act or any similar applicable anti-corruption Law.

4.26 Neither the Company nor, to the Knowledge of the Company, any director or officer of the Company appears on the U.S. Department of the Treasury's List of Specially Designated Nationals and Blocked Persons or any other Sanctions-related list maintained by a Governmental Authority with jurisdiction over the Company.

4.26 The Company has not, during the three years preceding the date hereof, been the subject of an internal or external investigation relating to a violation of the U.S. Foreign Corrupt Practices Act, the Export Control Laws, or Sanctions.

4.26 The Company's export classification determinations for its Products under the Export Control Laws are documented and have not been challenged by a Governmental Authority.

4.26 The Company's export and sanctions compliance policies, as made available to Buyer, have not been materially revised during the twelve months preceding the date hereof, other than a revision made to conform to a change in applicable Law.

4.26 The Company has not made a voluntary self-disclosure to a Governmental Authority regarding a potential violation of the Export Control Laws or Sanctions during the three years preceding the date hereof.

Section 4.27. Government Contracts.

4.27 The Company is not, and during the three years preceding the date hereof has not been, a party to any Contract with a Governmental Authority as the counterparty purchasing goods or services from the Company that, individually, accounts for more than five percent of the Company's consolidated revenue, except as set forth on Schedule 4.27.

4.27 The Company is not, and has not been, suspended or debarred from contracting with any Governmental Authority, and to the Knowledge of the Company no proceeding seeking such suspension or debarment is pending or threatened.

4.27 Schedule 4.27 further identifies each certification the Company has made to a Governmental Authority regarding its size, ownership, or eligibility for a small-business or similar preferential-procurement status, and confirms that each such certification was accurate when made and remains accurate as of the date hereof.

4.27 The Company is not currently performing, and has not within the three years preceding the date hereof performed, as a prime contractor or first-tier subcontractor under a contract with the U.S. federal government, other than a purchase order below the applicable simplified-acquisition threshold.

4.27 The Company has no outstanding obligation to a Governmental Authority to produce a cost or pricing certification with respect to a government contract that remains unresolved as of the date hereof.

4.27 The Company has not been the subject of a bid protest or a responsibility determination by a Governmental

Authority that remains unresolved as of the date hereof.

4.27 The Company's cost accounting practices, to the extent applicable to a government contract identified on Schedule 4.27, comply in all material respects with the Cost Accounting Standards to the extent applicable to that contract.

Section 4.28. Books and Records.

4.28 The books of account, minute books, and other corporate records of the Company have been maintained in accordance with sound business practices, and the minute books contain accurate records of all meetings, and actions taken by written consent, of the Company's board of directors and shareholders. All such books and records have been made available to Buyer.

4.28 The Company's financial books and records are maintained on a basis that permits the preparation of financial statements in accordance with GAAP without material adjustment other than normal year-end adjustments.

4.28 The Company has retained its books, records, and Tax Returns for the periods required under applicable Law and its own document-retention policy, a true and complete copy of which has been made available to Buyer, and has not destroyed or disposed of any material record relating to the Business other than in accordance with such policy.

4.28 The minute books of the Company made available to Buyer contain accurate and complete records of all meetings, and actions taken by written consent, of the Company's board of directors (and each committee thereof) and shareholders since the date of the Company's organization, other than a immaterial omission that does not bear on the validity of any corporate action relevant to the transactions contemplated by this Agreement.

4.28 The stock ledger of the Company made available to Buyer accurately reflects all issuances, transfers, and cancellations of the Shares since the Company's organization.

4.28 The Company's books and records are maintained in a manner sufficient to permit Buyer, following the Closing, to reconstruct each material corporate action taken by the Company's board of directors and shareholders during the three years preceding the date hereof.

4.28 The Company's corporate seal, if any, made available to Buyer is the seal actually used by the Company in the ordinary conduct of its corporate affairs.

4.28 The Company has not destroyed a corporate record required to be retained under applicable Law or the Company's own record-retention policy, as made available to Buyer.

Section 4.29. Bank Accounts; Powers of Attorney.

4.29 Schedule 4.29 sets forth each bank account maintained by the Company, together with the authorized signatories for each such account, and each power of attorney granted by the Company that remains in effect as of the date hereof.

4.29 The Company has not granted a power of attorney to any Person that remains in effect as of the date hereof other than as set forth on Schedule 4.29, and no such power of attorney authorizes the holder to bind the Company with respect to a matter outside the Ordinary Course of Business.

4.29 Schedule 4.29 further identifies, for each bank account maintained by the Company, the account number, the financial institution at which such account is maintained, and the current balance as of a date not more than five

Business Days prior to the date hereof.

4.29 Schedule 4.29 sets forth the name of each financial institution at which the Company maintains an account, safe deposit box, or lockbox, the account numbers, and the name of each Person holding a power of attorney or signatory authority with respect to each such account.

4.29 No bank account identified on Schedule 4.29 is subject to a Lien in favor of a Person other than a Lien released at or prior to the Closing as part of the payoff deliveries required by Section 3.02(e).

4.29 No Person other than an officer of the Company identified on Schedule 4.29 has signatory authority over a Company bank account as of the date hereof.

4.29 Schedule 4.29 is current as of a date not more than ten Business Days prior to the date hereof, and the Company shall update Schedule 4.29 if a listed account is closed, or a new account opened, prior to the Closing.

4.29 The Company has not granted a third party a security interest in a deposit account identified on Schedule 4.29, other than a security interest released at or prior to the Closing under Section 3.02(e).

Section 4.30. Solvency.

4.30 Immediately after giving effect to the transactions contemplated by this Agreement, the Company will be able to pay its debts as they become due in the usual course of its business, and will have assets having a fair saleable value greater than the amount required to pay its probable liabilities on its existing debts as they become absolute and matured. No transfer of property is being made, and no obligation is being incurred, by the Company in connection with the transactions contemplated by this Agreement with the intent to hinder, delay, or defraud either present or future creditors of the Company.

4.30 No proceeding under any bankruptcy, insolvency, reorganization, or similar Law has been commenced, or to the Knowledge of the Company threatened, by or against the Company.

4.30 The Company is not, and immediately prior to giving effect to the transactions contemplated by this Agreement will not be, insolvent within the meaning of any applicable bankruptcy, insolvency, or similar Law, and no creditor of the Company has, during the two years preceding the date hereof, asserted in writing that the Company is unable to pay its debts as they become due.

4.30 Neither the Company nor any Seller is entering into this Agreement or the transactions contemplated hereby with the intent to hinder, delay, or defraud any present or future creditor of the Company.

4.30 The Company is not, and immediately after giving effect to the transactions contemplated by this Agreement will not be, insolvent within the meaning given that term under applicable Law governing fraudulent transfers.

4.30 The Company's capital, taken together with the proceeds of the transactions contemplated by this Agreement available to it, is adequate for the business in which the Company is presently engaged and is proposed to be engaged following the Closing.

4.30 The Company's projected cash flows, taking into account the transactions contemplated by this Agreement, are sufficient to meet the Company's anticipated obligations as they become due for the twelve months following the Closing.

Section 4.31. Inventory.

4.31 The Inventory reflected in the Reference Accounts consists of items of a quality and quantity usable and, in the

case of finished goods, saleable, in the Ordinary Course of Business, except for obsolete or slow-moving items that have been written down or reserved against in accordance with GAAP. Schedule 4.31 sets forth the Company's inventory valuation methodology.

4.31 The Company's Inventory is located at the facilities identified on Schedule 4.31, and the Company has good and valid title to all such Inventory, free and clear of all Liens other than Permitted Liens.

4.31 Schedule 4.31 further sets forth the aging of the Company's Inventory as of a date not more than thirty days prior to the date hereof, categorized as raw materials, work-in-process, and finished goods, together with the reserve established against obsolete or slow-moving Inventory in each such category.

4.31 The Company's Inventory as of the Balance Sheet Date consisted of items of a quality and quantity usable and, in the case of finished goods, saleable, in the Ordinary Course of Business, net of the reserve for excess, obsolete, and slow-moving Inventory reflected in the Financial Statements, which reserve was calculated in accordance with the Accounting Principles applied on a basis consistent with past practice.

4.31 The Company's Inventory levels as of the date hereof are consistent, in the aggregate, with the levels the Company has historically maintained in the Ordinary Course of Business to support anticipated customer demand.

4.31 The Company has not written down or written off a material amount of Inventory outside the Ordinary Course of Business during the twelve months preceding the date hereof, other than a write-down or write-off reflected in the Financial Statements.

4.31 The Company's method of valuing Inventory (first-in-first-out, weighted-average, or another method identified on Schedule 4.31) has not changed during the two fiscal years preceding the date hereof.

4.31 The Company's Inventory does not include a material amount of consigned goods held on behalf of a third party, other than consigned goods identified on Schedule 4.31.

4.31 The Company has not entered into a Contract obligating it to purchase Inventory in a quantity materially exceeding the Company's anticipated requirements based on historical demand, other than a Contract disclosed on Schedule 4.31.

Section 4.32. Officers and Directors.

4.32 Schedule 4.32 sets forth the name and title of each director and officer of the Company as of the date hereof. No director or officer of the Company has, during the three years preceding the date hereof, been the subject of a bankruptcy proceeding, a criminal conviction involving fraud or dishonesty, or a Governmental Order permanently or temporarily enjoining such person from engaging in any conduct or practice in connection with the Business.

4.32 No director or officer of the Company has, during the three years preceding the date hereof, been removed from a position as a director or officer of another Person for cause relating to the performance of such person's duties.

4.32 Schedule 4.32 sets forth the name and title of each officer and director of the Company as of the date hereof, and no officer or director listed on Schedule 4.32 has tendered a resignation that remains outstanding as of the date hereof.

4.32 No officer or director of the Company has, during the three years preceding the date hereof, been the subject of a proceeding that would be required to be disclosed under Item 401(f) of Regulation S-K were the Company subject

to that regulation.

4.32 No officer or director of the Company listed on Schedule 4.32 holds an ownership interest in a Material Customer or Material Supplier, other than an ownership interest disclosed on Schedule 4.23.

4.32 Each officer and director of the Company listed on Schedule 4.32 has been duly elected or appointed in accordance with the Company's Organizational Documents.

Section 4.33. Accounts Receivable.

4.33 The accounts receivable reflected in the Reference Accounts and the Interim Financial Statements arose from bona fide transactions in the Ordinary Course of Business and, to the Knowledge of the Company, are collectible in the ordinary course, net of the reserve for doubtful accounts reflected therein, which reserve was established in accordance with GAAP applied on a basis consistent with past practice.

4.33 The Company has not sold, factored, or otherwise transferred any accounts receivable to a third party for financing purposes, other than in the Ordinary Course of Business under an arrangement identified on Schedule 4.33, if any.

4.33 Schedule 4.33 further sets forth the aging of the Company's accounts receivable as of a date not more than thirty days prior to the date hereof, categorized by the number of days outstanding, together with the reserve for doubtful accounts established against each such category.

4.33 Schedule 4.33 sets forth an aging of the Company's accounts receivable as of the Balance Sheet Date by invoice date, and the reserve for doubtful accounts reflected in the Financial Statements was calculated in accordance with the Accounting Principles applied on a basis consistent with the Company's historical collections experience.

4.33 No account debtor has asserted, in writing, a right of setoff or counterclaim against a material amount of the Company's accounts receivable that remains unresolved as of the date hereof.

4.33 The Company has not factored, sold, or otherwise transferred a material amount of its accounts receivable to a third party for financing purposes, other than a transfer that is unwound at or prior to the Closing.

4.33 The Company's allowance for doubtful accounts reflected in the Financial Statements has been calculated using the same methodology in each of the two most recently completed fiscal years.

4.33 The Company has not sold or assigned an account receivable to a Related Party at a discount to its face amount, other than in connection with a financing arrangement disclosed on Schedule 4.33.

Section 4.34. No Undisclosed Restrictions on Business.

4.34 Except as set forth on Schedule 4.34, the Company is not a party to any Contract that materially restricts the Company from freely conducting the Business in any geographic area or line of business, including any non-competition, exclusivity, or most-favored-customer provision binding on the Company.

4.34 No Company Material Contract grants a third party a right of first refusal, right of first offer, or similar preferential right with respect to any material asset of the Company, other than as set forth on Schedule 4.34.

4.34 Schedule 4.34 further identifies each Contract under which the Company has granted a third party an option, right of first negotiation, or similar preferential right to acquire the Company or a material asset of the Company, none of which remains exercisable following execution of this Agreement other than as expressly set forth on

Schedule 4.34.

4.34 The Company is not a party to a Contract that materially restricts the Company from freely conducting the Business in any geographic area or market segment in which the Business is presently conducted, other than a restriction set forth on Schedule 4.34.

4.34 The Company is not subject to a most-favored-nation pricing obligation in favor of any customer that would require the Company to extend to that customer terms more favorable than those the Company presently extends, other than an obligation identified on Schedule 4.34.

4.34 The Company is not a party to a Contract that would require the consent of, or a payment to, a counterparty solely because Buyer, rather than the pre-Closing owners of the Company, will own the Company following the Closing, other than a consent identified on Schedule 4.04.

4.34 The Company is not subject to a Contract restricting its ability to raise capital or incur Indebtedness, other than a restriction under the credit facility repaid at Closing or a restriction disclosed on Schedule 4.34.

Section 4.35. Full Disclosure.

4.35 No representation or warranty of the Company or the Sellers in this Article IV, and no statement in the Schedules delivered pursuant to this Article IV, contains any untrue statement of a material fact or omits to state a material fact necessary to make the statements therein, in light of the circumstances under which they were made, not misleading. This Section 4.35 does not expand the scope of any other representation or warranty in this Article IV, and does not create a freestanding warranty as to any matter not otherwise addressed by a specific representation in this Article IV.

4.35 None of the representations or warranties made by the Company or the Sellers in this Article IV, or any statement in the Disclosure Schedules furnished to Buyer, contains any untrue statement of a material fact or omits to state a material fact necessary to make the statements made, in light of the circumstances under which they were made, not misleading, in each case subject to the qualifications and limitations expressly set forth in the representation or statement itself.

4.35 The Company has made available to Buyer, in the electronic data room referenced in Section 6.31, a true and complete copy of each document referenced by number on the Schedules delivered under this Article IV.

4.35 The Sellers' Representative has reviewed this Article IV and the Disclosure Schedules on behalf of the Sellers and confirms that they fairly present the matters required to be disclosed by this Article IV as of the date hereof.

4.35 This Article IV, together with the Disclosure Schedules, supersedes any earlier draft representation or warranty exchanged among the parties during negotiation of this Agreement, and no such earlier draft survives execution of this Agreement.

4.35 The Sellers have made available to Buyer all information that the Sellers reasonably believe is material to an evaluation of the Company and the Business, subject to the qualifications expressly set forth in this Article IV.

ARTICLE V. REPRESENTATIONS AND WARRANTIES OF BUYER

Buyer represents and warrants to the Company and the Sellers, as of the date hereof and as of the Closing Date, as follows.

Section 5.01. Organization and Standing.

5.01 Buyer is duly organized, validly existing, and in good standing under the Laws of its jurisdiction of organization, and has all requisite power and authority to own its properties and to carry on its business as presently conducted.

Section 5.02. Authority and Enforceability.

5.02 Buyer has all requisite power and authority to execute and deliver this Agreement and each other Transaction Document to which it is a party and to perform its obligations hereunder and thereunder. The execution, delivery, and performance of this Agreement by Buyer have been duly authorized by all necessary action on the part of Buyer. This Agreement has been duly executed and delivered by Buyer and, assuming due authorization, execution, and delivery by the Company and the Sellers, constitutes the legal, valid, and binding obligation of Buyer, enforceable against Buyer in accordance with its terms, subject to bankruptcy, insolvency, and other Laws affecting creditors' rights generally and to general principles of equity.

Section 5.03. No Conflicts; Consents.

5.03 Neither the execution and delivery of this Agreement by Buyer, nor the consummation of the transactions contemplated hereby, will violate Buyer's Organizational Documents or any Law or Governmental Order applicable to Buyer, or, except for any filing required under the HSR Act, require any consent, approval, or filing with any Governmental Authority.

Section 5.04. Litigation.

5.04 There is no Action pending or, to Buyer's knowledge, threatened against Buyer that seeks to enjoin, or would reasonably be expected to materially delay, the consummation of the transactions contemplated by this Agreement.

Section 5.05. Financing Sufficiency.

5.05 Buyer will have available at the Closing immediately available funds sufficient to pay the Purchase Price and to satisfy all of Buyer's other payment obligations under this Agreement, including the sponsor equity contribution of 96,000,000.00 and the borrowings under Buyer's acquisition financing arrangements described in the funds flow memorandum. Buyer's obligations under this Agreement are not conditioned on Buyer's or any Affiliate of Buyer's receipt of financing, and this Agreement contains no financing-out condition.

Section 5.06. Brokers.

5.06 No broker, finder, or investment banker is entitled to any brokerage, finder's, or other fee or commission in connection with the transactions contemplated by this Agreement based upon arrangements made by or on behalf of Buyer, other than a fee for which Buyer is solely responsible.

Section 5.07. Independent Investigation.

5.07 Buyer has conducted its own independent investigation, review, and analysis of the Business, and has been afforded access to the books, records, facilities, and personnel of the Company for such purpose. Buyer acknowledges that, except for the representations and warranties expressly set forth in Article IV, neither the Company nor any Seller nor any of their respective Representatives makes any representation or warranty, express or implied, with respect to the Company or the Business, including as to the accuracy or completeness of any projection, forecast, or other forward-looking information furnished to Buyer, and Buyer's knowledge of any breach of a representation or warranty as of signing does not limit or waive Buyer's indemnification rights under Article

VIII.

Section 5.08. No Other Representations by the Company or Sellers.

5.08 Buyer acknowledges that it has not relied on any representation, warranty, or other statement not expressly set forth in Article IV, including any projection, forecast, budget, or other forward-looking statement furnished or made available to Buyer or its Representatives, whether in the data room, in a management presentation, or otherwise, in deciding to enter into this Agreement.

Section 5.09. Solvency of Buyer.

5.09 Immediately after giving effect to the transactions contemplated by this Agreement, Buyer will be able to pay its debts as they become due in the usual course of its business and will not be left with unreasonably small capital for the business in which it is engaged.

Section 5.10. Investment Intent.

5.10 Buyer is acquiring the Shares for its own account, for investment purposes only, and not with a view to, or for resale in connection with, any distribution of the Shares in violation of the Securities Act or any applicable state securities Law, and Buyer has such knowledge and experience in financial and business matters that it is capable of evaluating the merits and risks of acquiring the Shares.

Section 5.11. Anti-Corruption; Sanctions Compliance by Buyer.

5.11 Neither Buyer nor, to Buyer's knowledge, any director or officer of Buyer acting on Buyer's behalf in connection with the transactions contemplated by this Agreement appears on the U.S. Department of the Treasury's List of Specially Designated Nationals and Blocked Persons or any other Sanctions-related list maintained by a Governmental Authority with jurisdiction over Buyer, and no source of funds Buyer applies toward the Purchase Price originates, directly or knowingly indirectly, from a Sanctioned Person.

Section 5.12. Diligence on Financing Sources.

5.12 Buyer has caused its acquisition financing sources to complete their customary know-your-customer and anti-money-laundering diligence with respect to Buyer, the Company, and the transactions contemplated by this Agreement sufficiently in advance of the Closing Date that completion of that diligence is not itself a condition remaining open as of the Closing Date under Article VII.

Section 5.13. No Undisclosed Buyer Litigation Affecting Financing.

5.13 There is no Action pending or, to Buyer's knowledge, threatened against Buyer's acquisition financing sources that would reasonably be expected to prevent or materially delay the funding described in Section 5.05.

ARTICLE VI. COVENANTS

Section 6.01. Conduct of Business.

6.01 Between the date hereof and the earlier of the Closing and the termination of this Agreement in accordance with Article IX (the “Interim Period”), the Company shall, except as Buyer otherwise consents in writing (such consent not to be unreasonably withheld, conditioned, or delayed) or as set forth on Schedule 6.01, operate the Business only in the Ordinary Course of Business and use commercially reasonable efforts to preserve intact its business organization, keep available the services of its Key Employees, and preserve its relationships with Material Customers, Material Suppliers, and others having material business dealings with it.

6.02 Without limiting Section 6.01, during the Interim Period the Company shall not, except as Buyer otherwise consents in writing or as set forth on Schedule 6.01: (a) amend its Organizational Documents; (b) issue, sell, or redeem any equity interest; (c) declare or pay any dividend or distribution, other than distributions of Cash consistent with Section 2.02's estimation mechanics; (d) incur any Indebtedness outside the Ordinary Course of Business; (e) make any material change in accounting methods, principles, or practices, except as required by a change in GAAP; (f) terminate or materially amend any Company Material Contract other than in the Ordinary Course of Business; or (g) settle any Action for an amount in excess of the reserve therefor reflected in the Reference Accounts.

Section 6.03. Access to Information.

6.03 During the Interim Period, the Company shall afford Buyer and its Representatives reasonable access, during normal business hours and upon reasonable advance notice, to the properties, books, records, and personnel of the Company, in each case to the extent reasonably related to the transactions contemplated hereby, provided that such access does not unreasonably interfere with the normal operations of the Business.

Section 6.04. Regulatory Approvals.

6.04 Each party shall, as promptly as practicable after the date hereof, make any filing required under the HSR Act and use its reasonable best efforts to obtain the expiration or termination of the applicable waiting period. Each party shall cooperate with the other in connection with any such filing and in responding to any request for information from a Governmental Authority, and shall keep the other reasonably informed of the status of any such filing or request.

Section 6.05. Exclusivity.

6.05 During the Interim Period, the Company and the Sellers shall not, and shall cause their respective Representatives not to, directly or indirectly, solicit, initiate, or knowingly encourage any inquiry or proposal relating to a possible acquisition of the Company, whether by merger, purchase of equity interests, purchase of assets, or otherwise (an “Acquisition Proposal”), or furnish any non-public information to, or participate in any discussion or negotiation with, any Person in connection with an Acquisition Proposal.

Section 6.06. Update of Disclosure Schedules.

6.06 The Company may, from time to time prior to the Closing, by written notice to Buyer, supplement or amend the Disclosure Schedules with respect to any matter arising after the date hereof that, if existing or occurring on the date hereof, would have been required to be set forth on the Disclosure Schedules. No such supplement or amendment is effective to cure a breach of a representation or warranty for purposes of Article VII or Article VIII unless Buyer expressly agrees in writing that it is so effective.

Section 6.07. Employee Matters.

6.07 For the period beginning on the Closing Date and ending on the first anniversary thereof, Buyer shall cause the Company to provide each Employee who remains employed with the Company with base compensation and employee benefits that are, in the aggregate, substantially comparable to those provided to such Employee immediately prior to the Closing. Nothing in this Section 6.07 limits the Company's ability to terminate the employment of any Employee, or creates any third-party beneficiary rights in favor of any Employee.

Section 6.08. Directors' and Officers' Indemnification.

6.08 For a period of six years following the Closing, Buyer shall cause the Company to maintain in effect the exculpation, indemnification, and advancement-of-expenses provisions of the Company's Organizational Documents as in effect immediately prior to the Closing, with respect to acts or omissions occurring prior to the Closing, and shall not amend such provisions in any manner adverse to the individuals benefited thereby.

Section 6.09. Non-Competition; Non-Solicitation.

6.09 For a period of three years following the Closing (the "Non-Competition Period"), each Seller identified on the Restrictive Covenants Schedule shall not, directly or indirectly, engage in a Restricted Business within the geographic markets in which the Company conducted the Business as of the Closing, or solicit for employment any Employee who remains employed with the Company, or solicit any Material Customer to reduce its business with the Company, in each case other than through general solicitations not specifically targeted at such Employees or Material Customers.

Section 6.10. Further Assurances.

6.10 Each party shall, from time to time after the Closing, execute and deliver such further instruments and take such further actions as may be reasonably necessary to carry out the intent and purposes of this Agreement.

Section 6.11. Confidentiality.

6.11 Each Seller shall, and shall cause its Representatives to, keep confidential, and not disclose or use for its own benefit or the benefit of any third party, any Confidential Information, except as required by Law or in connection with the enforcement of such Seller's rights under this Agreement.

Section 6.12. Insurance.

6.12 During the Interim Period, the Company shall maintain in effect insurance coverage of the type and in the amounts maintained under the Existing Insurance Policies, and shall promptly notify Buyer of any material claim made under an Existing Insurance Policy. For a period of six years following the Closing, Buyer shall cause the Company to maintain, or to be covered under, insurance providing coverage for claims arising from acts or omissions occurring prior to the Closing that is no less favorable in the aggregate than the coverage provided under the Existing Insurance Policies, whether by a tail policy or by maintaining comparable ongoing coverage.

Section 6.13. Litigation Cooperation.

6.13 Following the Closing, each party shall reasonably cooperate with the other, at the requesting party's expense, in connection with the prosecution or defense of any Action relating to the Business or the Company for periods prior to the Closing, including by making available records and personnel with relevant knowledge, provided that such cooperation does not unreasonably interfere with the cooperating party's own business operations.

Section 6.14. Wrong Pockets.

6.14 If, after the Closing, either party discovers that an asset used primarily in the Business is held by a Person other than the Company, or that an asset not used in the Business is held by the Company, the parties shall cooperate in good faith to transfer such asset to the Person that should properly hold it, at no cost to the transferee other than customary transfer costs, which are borne by the party on whose side of the transaction the misallocated asset originated.

Section 6.15. R&W Insurance.

6.15 Buyer has obtained, or may obtain, a representation and warranty insurance policy in connection with the transactions contemplated by this Agreement. The existence of any such policy does not affect the scope, survival, or limitations applicable to Sellers' indemnification obligations under Article VIII, and the insurer under any such policy has no subrogation right against Sellers except in the case of Fraud by a Seller.

Section 6.16. Interim Period Tax Covenants.

6.16 During the Interim Period, the Company shall not, except as required by Law or with Buyer's prior written consent: (a) make, change, or revoke any material Tax election; (b) file any amended Tax Return; (c) settle or compromise any material Tax claim or assessment; or (d) change any material method of Tax accounting.

Section 6.17. Capital Expenditures; Debt Incurrence.

6.17 During the Interim Period, the Company shall not, except in the Ordinary Course of Business or as set forth on Schedule 6.01: (a) make any capital expenditure in excess of the amount budgeted therefor as disclosed to Buyer prior to the date hereof; or (b) incur, assume, or guarantee any Indebtedness, other than borrowings under the Company's existing revolving credit arrangements in the Ordinary Course of Business.

Section 6.18. Related-Party Arrangements.

6.18 Except as set forth on Schedule 4.23, the Company shall terminate, effective as of the Closing, each Contract with a Related Party, other than a Contract identified on Schedule 6.18 as continuing after the Closing on arm's-length terms.

Section 6.19. Environmental Remediation.

6.19 If any remediation of a Release identified on Schedule 4.15 is in progress as of the date hereof, the Company shall continue such remediation in the Ordinary Course of Business through the Closing and shall keep Buyer reasonably informed of its status.

Section 6.20. Maintenance of Real Property.

6.20 During the Interim Period, the Company shall maintain the Company Real Property in substantially the same condition as of the date hereof, ordinary wear and tear excepted, and shall not enter into, amend, or terminate any Real Property Lease other than in the Ordinary Course of Business.

Section 6.21. Intellectual Property Prosecution.

6.21 During the Interim Period, the Company shall continue to prosecute and maintain each item of Registered IP in the Ordinary Course of Business, and shall not abandon, cancel, or fail to renew any item of Registered IP without Buyer's prior written consent.

Section 6.22. Public Announcements.

6.22 No party shall issue any press release or make any public announcement regarding this Agreement or the transactions contemplated hereby without the prior written consent of the other party, except as required by Law or by the rules of a stock exchange, in which case the disclosing party shall use commercially reasonable efforts to consult with the other party before making such disclosure.

Section 6.23. Non-Disparagement.

6.23 Following the Closing, each Seller shall not, and shall direct its Representatives not to, make any disparaging

statement concerning Buyer, the Company, or the Business, other than truthful statements made in connection with a legal proceeding or as required by Law.

Section 6.24. Release of Seller Guarantees.

6.24 Buyer shall use commercially reasonable efforts to obtain, at or promptly after the Closing, the release of each Seller from any guarantee or other credit support such Seller has provided with respect to an obligation of the Company, as identified on Schedule 6.24, and shall indemnify such Seller against any Losses arising from such guarantee to the extent relating to the period after the Closing.

Section 6.25. Notification of Certain Matters.

6.25 During the Interim Period, each party shall promptly notify the other of (a) any fact, event, or circumstance that would reasonably be expected to cause a condition set forth in Article VII to fail to be satisfied, and (b) any Action commenced or, to such party's knowledge, threatened against such party relating to the transactions contemplated by this Agreement. No such notification affects the conditions to Closing set forth in Article VII or the remedies available under Article VIII, except as expressly provided in Section 6.06.

Section 6.26. Customer and Supplier Transition.

6.26 During the Interim Period, the Company shall, at Buyer's reasonable request and expense, and subject to any confidentiality restriction binding on the Company, introduce Buyer's designated Representatives to the Company's Material Customers and Material Suppliers for the purpose of facilitating an orderly transition of those relationships following the Closing, provided that any such introduction is coordinated with the Company so as not to suggest to a Material Customer or Material Supplier that the transactions contemplated by this Agreement have been consummated prior to the actual Closing, and provided further that the Company retains the right to participate in any such meeting or communication.

Section 6.27. Maintenance of Books and Records.

6.27 During the Interim Period, the Company shall maintain its books and records in accordance with its past practice and shall not dispose of, or permit the disposal of, any material book or record of the Company other than in accordance with the document-retention policy referred to in Section 4.28, and shall promptly notify Buyer of any material litigation hold or preservation obligation arising with respect to the Company's books and records during the Interim Period.

Section 6.28. No Impairment of Representations.

6.28 During the Interim Period, the Company and the Sellers shall not take any action, or omit to take any action, with the primary purpose or intent of causing a representation or warranty set forth in Article IV to become inaccurate as of the Closing Date, it being understood that an action taken in the Ordinary Course of Business, or an action expressly permitted by Section 6.02 or consented to by Buyer, does not violate this Section 6.28 merely because it has an incidental effect on the accuracy of a representation or warranty.

Section 6.29. Financing Cooperation.

6.29 During the Interim Period, the Company shall provide reasonable cooperation, at Buyer's expense, in connection with Buyer's arrangement of the acquisition financing described in Section 5.05, including by furnishing financial information reasonably requested by Buyer's prospective lenders for purposes of their own diligence,

provided that such cooperation does not require the Company to incur any liability or pay any fee prior to the Closing, other than a fee for which Buyer has agreed in advance to reimburse the Company, and does not require the Company to execute a financing document that is not contingent on the occurrence of the Closing.

Section 6.30. Post-Closing Access to Records for Sellers.

6.30 For a period of six years following the Closing, Buyer shall, and shall cause the Company to, retain the books and records of the Company relating to periods prior to the Closing and afford the Sellers' Representative reasonable access thereto during normal business hours, upon reasonable advance notice, for any reasonable business purpose, including the preparation of Tax Returns and the defense of an Action, provided that Buyer may satisfy this obligation by delivering copies of such books and records to the Sellers' Representative in lieu of maintaining physical or electronic access.

Section 6.31. Data Room Preservation.

6.31 The Company shall preserve, and shall not delete or alter, the contents of the electronic data room made available to Buyer in connection with the transactions contemplated by this Agreement for a period of one year following the Closing, and shall deliver an archival copy of that data room to Buyer at the Closing.

Section 6.32. Key Employee Retention.

6.32 During the Interim Period, the Company shall not, without Buyer's prior written consent, materially increase the compensation of, or grant a new equity or equity-linked award to, a Key Employee, other than an increase made in the Ordinary Course of Business consistent with the Company's annual compensation review cycle as disclosed to Buyer prior to the date hereof.

Section 6.33. Cooperation on Buyer's Financing.

6.33 During the Interim Period, the Company shall provide reasonable cooperation requested by Buyer in connection with Buyer's acquisition financing, including furnishing financial information reasonably available to the Company and its management for use in a customary lender information package, provided that such cooperation does not require the Company to incur any out-of-pocket expense that Buyer does not reimburse, to execute any document effective prior to the Closing, or to take any action that unreasonably interferes with the Company's ongoing operations.

Section 6.34. Preservation of Privilege.

6.34 During the Interim Period, the Company shall take commercially reasonable steps to preserve the attorney-client privilege and work-product protection applicable to communications and materials relating to the transactions contemplated by this Agreement, and shall not waive such privilege or protection without Buyer's prior written consent, except as required by Law.

Section 6.35. No Solicitation of Employees by Sellers.

6.35 During the Interim Period, no Seller shall, directly or indirectly, solicit for employment, or encourage to resign from the Company, a Key Employee, other than a general solicitation of employment not specifically directed at a Key Employee.

Section 6.36. Post-Signing Diligence Access.

6.36 During the Interim Period, the Company shall afford Buyer and its Representatives reasonable access, during

normal business hours and upon reasonable advance notice, to the Company's properties, books, records, contracts, and personnel for purposes of confirmatory diligence and integration planning, provided that such access does not unreasonably interfere with the Company's ongoing operations and is subject to the confidentiality obligations referenced in Section 6.11.

Section 6.37. Cybersecurity Incident Notification.

6.37 During the Interim Period, the Company shall notify Buyer promptly, and in any event within forty-eight hours, after the Company discovers a cybersecurity incident materially affecting the Company IT Systems or Personal Information in the Company's possession, and shall keep Buyer reasonably informed of the Company's investigation and remediation of that incident through the Closing.

Section 6.38. Amendment of Material Contracts.

6.38 During the Interim Period, the Company shall not amend, modify, or waive a material right under a Company Material Contract, other than in the Ordinary Course of Business, without Buyer's prior written consent, not to be unreasonably withheld, conditioned, or delayed.

Section 6.39. Anti-Corruption Compliance During Interim Period.

6.39 During the Interim Period, the Company shall continue to comply, in all material respects, with the U.S. Foreign Corrupt Practices Act and any similar applicable anti-corruption Law, and shall promptly notify Buyer of any credible allegation of a violation of such Law involving the Company that arises during the Interim Period.

Section 6.40. Preservation of Business Relationships.

6.40 During the Interim Period, the Company shall use commercially reasonable efforts to preserve its present relationships with its Material Customers, Material Suppliers, and Key Employees, consistent with the Ordinary Course of Business.

Section 6.41. No Amendment of Company Benefit Plans.

6.41 During the Interim Period, the Company shall not adopt, terminate, or materially amend a Company Benefit Plan, other than an amendment required by applicable Law or made in the Ordinary Course of Business consistent with the Company's annual enrollment cycle.

Section 6.42. Preservation of Permits.

6.42 During the Interim Period, the Company shall maintain each Company Permit in good standing, and shall timely file each renewal or amendment application necessary to avoid a lapse of a Company Permit prior to the Closing.

Section 6.43. No New Related Party Contracts.

6.43 During the Interim Period, the Company shall not enter into a new Contract with a Related Party, or materially amend an existing Contract with a Related Party, without Buyer's prior written consent, other than a Contract terminated at or prior to the Closing under Section 6.18.

Section 6.44. Maintenance of Books and Records.

6.44 During the Interim Period, the Company shall maintain its books and records in accordance with its past practice and shall not dispose of a material corporate record other than in accordance with the Company's record-retention policy as made available to Buyer.

ARTICLE VII. CONDITIONS PRECEDENT

Section 7.01. Conditions to Obligations of Each Party.

7.01 The respective obligations of each party to consummate the transactions contemplated by this Agreement are subject to the satisfaction, on or prior to the Closing Date, of each of the following conditions, any of which may be waived in writing by the party or parties entitled to the benefit thereof: (a) any applicable waiting period under the HSR Act shall have expired or been terminated; and (b) no Governmental Order restraining, enjoining, or otherwise prohibiting the consummation of the transactions contemplated hereby shall be in effect.

Section 7.02. Conditions to Obligations of Buyer.

7.02 The obligation of Buyer to consummate the transactions contemplated by this Agreement is subject to the satisfaction, on or prior to the Closing Date, of each of the following further conditions, any of which may be waived in writing by Buyer: (a) the representations and warranties of the Company and the Sellers set forth in Article IV, other than the Fundamental Representations, shall be true and correct as of the Closing Date as though made on the Closing Date (except to the extent expressly made as of an earlier date), except where the failure of such representations and warranties to be so true and correct would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect; (b) the Fundamental Representations shall be true and correct in all material respects as of the Closing Date as though made on the Closing Date (except to the extent expressly made as of an earlier date); (c) the Company and the Sellers shall have performed and complied in all material respects with all covenants required by this Agreement to be performed or complied with by them on or prior to the Closing Date; (d) no Material Adverse Effect shall have occurred since the date hereof; and (e) the Company and the Sellers shall have delivered, or caused to be delivered, each of the items required by Section 3.02.

7.03 As to any Indebtedness being repaid at the Closing, as distinct from the Industrial Revenue Bonds referred to in the Indebtedness definition (which are assumed, not repaid), Buyer's obligation to consummate the transactions contemplated hereby is further conditioned on the Company's delivery of the payoff letters and lien releases required by Section 3.02(e).

Section 7.04. Conditions to Obligations of the Company and the Sellers.

7.04 The obligation of the Company and the Sellers to consummate the transactions contemplated by this Agreement is subject to the satisfaction, on or prior to the Closing Date, of each of the following further conditions, any of which may be waived in writing by the Sellers' Representative: (a) the representations and warranties of Buyer set forth in Article V, other than the Fundamental Representations applicable to Buyer, shall be true and correct as of the Closing Date as though made on the Closing Date (except to the extent expressly made as of an earlier date), except for such failures as would not, individually or in the aggregate, materially impair Buyer's ability to consummate the transactions contemplated hereby; (b) the Fundamental Representations applicable to Buyer shall be true and correct in all material respects as of the Closing Date as though made on the Closing Date; (c) Buyer shall have performed and complied in all material respects with all covenants required by this Agreement to be performed or complied with by it on or prior to the Closing Date; and (d) Buyer shall have delivered, or caused to be delivered, each of the items required by Section 3.03.

Section 7.05. Frustration of Closing Conditions.

7.05 No party may rely on the failure of any condition set forth in this Article VII to be satisfied if such failure was caused by such party's failure to comply with, or perform, its obligations under this Agreement.

Section 7.06. Officer Certificates Confirm, Not Create, Conditions.

7.06 The Officer Certificates delivered under Section 3.02(d) and Section 3.03(d) confirm the satisfaction of the conditions set forth in Section 7.02(a) through (c) and Section 7.04(a) through (c), respectively, but the underlying conditions are those set forth in this Article VII, and no inaccuracy in an Officer Certificate that does not itself reflect an underlying failure of a condition set forth in this Article VII excuses a party from proceeding to Closing once every condition in this Article VII is actually satisfied or waived.

Section 7.07. Effect of Waiver on Indemnification.

7.07 A party's waiver of a condition set forth in this Article VII does not constitute a waiver of any indemnification right such party may have under Article VIII with respect to the matter that caused the condition to fail to be satisfied, unless the waiving party expressly so states in writing at the time of the waiver.

Section 7.08. No Frustration of Conditions.

7.08 A party may not rely on the failure of a condition set forth in this Article VII to be satisfied if such failure was caused by that party's own failure to act in good faith or to use the efforts required of it under Article VI to cause the Closing to occur.

Section 7.09. Satisfaction Measured as of the Closing Date.

7.09 Each condition set forth in this Article VII is measured as of the Closing Date, and the fact that a condition was not satisfied at an earlier date during the Interim Period does not itself constitute a failure of that condition if the condition is satisfied as of the Closing Date.

Section 7.10. No Additional Conditions.

7.10 The conditions set forth in this Article VII are the sole conditions to each party's obligation to consummate the transactions contemplated by this Agreement, and no party may assert as a condition to Closing a matter not expressly set forth in this Article VII, regardless of whether that matter is addressed elsewhere in this Agreement.

Section 7.11. Bring-Down of Officer Certificates.

7.11 If a condition set forth in this Article VII would otherwise fail to be satisfied solely because an Officer Certificate delivered under Section 3.02(d) or Section 3.03(d) has not yet been updated to reflect a supplement to the Disclosure Schedules delivered under Section 6.06, the condition is nonetheless satisfied if the underlying representation, as so supplemented, remains true and correct to the standard required by Section 7.02(a) or Section 7.04(a), as applicable.

Section 7.12. Delivery of Updated Schedules as a Condition.

7.12 The delivery of an updated Schedule under Section 6.06 is not itself a condition to either party's obligation to close under this Article VII, except to the extent the matter disclosed on that updated Schedule independently causes a condition set forth in Section 7.02 or Section 7.04 to fail to be satisfied.

ARTICLE VIII. INDEMNIFICATION

Sellers shall indemnify Buyer for Losses from breaches of representations, covenants, and matters on the Indemnification Schedule. Non-fundamental representations survive eighteen months; fundamental and Tax

representations survive until sixty days after the statute of limitations. Non-fundamental claims are subject to a de minimis threshold and an aggregate basket, and are recoverable SOLELY from the escrow amount funded at Closing under the closing funds-flow mechanism (the "Escrow Amount") absent fraud. Fundamental, Tax, and fraud claims are not subject to the basket or the Escrow Amount cap and are capped at the full Purchase Price. The Escrow Amount is funded from, and reduces, the equity consideration otherwise payable to Sellers - a reallocation, not an incremental cost. Undisputed escrow balances are released upon expiration of the eighteen-month survival period.

Section 8.01. Indemnification by Sellers.

8.01 Subject to the limitations set forth in this Article VIII, Sellers shall, jointly and severally, indemnify, defend, and hold harmless Buyer Indemnified Parties from and against any Losses arising out of or resulting from: (a) any breach of a representation or warranty of the Company or the Sellers set forth in Article IV; (b) any breach of a covenant of the Company or the Sellers set forth in this Agreement; and (c) any matter set forth on the Indemnification Schedule.

Section 8.02. Indemnification by Buyer.

8.02 Subject to the limitations set forth in this Article VIII, Buyer shall indemnify, defend, and hold harmless Seller Indemnified Parties from and against any Losses arising out of or resulting from: (a) any breach of a representation or warranty of Buyer set forth in Article V; and (b) any breach of a covenant of Buyer set forth in this Agreement.

Section 8.03. Survival.

8.03 The representations and warranties set forth in Article IV and Article V survive the Closing for eighteen months (the "Survival Period"), except that (a) the Fundamental Representations survive until sixty days after the expiration of the applicable statute of limitations, and (b) the representations set forth in Section 4.22 (Tax Matters) survive until sixty days after the expiration of the applicable statute of limitations. No claim for indemnification based on a breach of a representation or warranty may be asserted after the expiration of the applicable survival period, provided that a claim asserted with reasonable specificity prior to such expiration remains outstanding until finally resolved, regardless of when it is ultimately resolved.

Section 8.04. Basket.

8.04 Sellers are not liable for Losses under Section 8.01(a) with respect to a breach of a representation or warranty, other than a Fundamental Representation or a representation set forth in Section 4.22, unless and until the aggregate amount of all such Losses exceeds an amount set forth on the Indemnification Schedule (the "Basket"), in which case Sellers are liable for the full amount of such Losses, including the amount of the Basket, and not merely the excess over the Basket.

Section 8.05. Cap.

8.05 Except with respect to claims based on Fraud, the aggregate liability of Sellers under Section 8.01(a) for breaches of representations and warranties other than the Fundamental Representations and the representations set forth in Section 4.22 shall not exceed the Escrow Amount (the "Cap"), and Buyer's sole and exclusive remedy for any such breach is recourse to the Escrow Amount. The Cap on liability for breaches of the Fundamental Representations, the representations set forth in Section 4.22, and claims based on Fraud is the full Purchase Price.

Section 8.06. Escrow.

8.06 At the Closing, Buyer shall withhold from the equity consideration otherwise payable to Sellers, and deposit with the Escrow Agent, an amount equal to 5,250,000.00 (the Escrow Amount), to be held and administered pursuant to the Escrow Agreement as the sole source of recovery for non-fundamental claims under Section 8.01(a), absent Fraud. Promptly following the expiration of the Survival Period applicable to non-fundamental representations, the Escrow Agent shall release to Sellers the portion of the Escrow Amount not then subject to a pending, timely asserted claim.

Section 8.07. Indemnification Procedures.

8.07 An Indemnified Party seeking indemnification under this Article VIII in respect of a Third Party Claim shall give the Indemnifying Party prompt written notice of such Third Party Claim, provided that the failure to give prompt notice does not relieve the Indemnifying Party of its obligations under this Article VIII except to the extent the Indemnifying Party is materially prejudiced by such failure. The Indemnifying Party may assume the defense of a Third Party Claim with counsel of its choosing, subject to the Indemnified Party's right to participate at its own expense, provided that the Indemnifying Party may not settle a Third Party Claim without the Indemnified Party's consent unless the settlement includes an unconditional release of the Indemnified Party from all liability and does not impose any injunctive or non-monetary obligation on the Indemnified Party.

Section 8.08. Exclusive Remedy.

8.08 Except for claims based on Fraud and except for the specific performance remedy set forth in Section 11.13, the indemnification provisions of this Article VIII are the sole and exclusive remedy of the parties for any breach of a representation, warranty, or covenant set forth in this Agreement, and each party waives, to the fullest extent permitted by Law, any other remedy at Law or in equity.

Section 8.09. No Circular Recovery.

8.09 No Seller has any right of contribution, indemnification, or reimbursement from the Company with respect to any indemnification payment made by such Seller under this Article VIII, and each Seller waives any such right it might otherwise have, whether arising under this Agreement, the Company's Organizational Documents, or applicable Law.

Section 8.10. Mitigation; Insurance Proceeds.

8.10 The amount of any Losses for which indemnification is provided under this Article VIII is reduced by the amount of any insurance proceeds actually received by the Indemnified Party in respect of such Losses, net of any collection costs and any resulting increase in premiums. Each Indemnified Party shall use commercially reasonable efforts to mitigate any Losses upon becoming aware of the event giving rise to such Losses.

Section 8.11. Materiality Scrape.

8.11 Solely for purposes of determining the amount of Losses arising from a breach of a representation or warranty under Section 8.01(a) - and not for purposes of determining whether a breach has occurred in the first instance - any materiality or Material Adverse Effect qualification contained in the representation or warranty is disregarded, so that the Basket and Cap mechanics in Section 8.04 and Section 8.05 operate on the full, unqualified amount of the Loss rather than on a Loss already reduced by the same qualification that determined whether the underlying representation was breached. This Section 8.11 does not itself create liability for a matter that would not otherwise

constitute a breach once the materiality qualification is applied at the breach-determination stage.

Section 8.12. No Double Recovery.

8.12 No Indemnified Party is entitled to recover Losses under this Article VIII to the extent such Losses were already taken into account in the calculation of the Purchase Price under Article II, including through the Working Capital Adjustment or the Net Debt calculation, and no Indemnified Party may recover the same Loss more than once under this Agreement, regardless of the number of representations, warranties, or covenants breached by the same underlying fact or circumstance.

Section 8.13. Anti-Sandbagging.

8.13 Buyer's right to indemnification under this Article VIII is not limited or otherwise affected by any investigation conducted, or knowledge acquired, by Buyer or its Representatives at or prior to the Closing with respect to the accuracy of, or compliance with, any representation, warranty, or covenant made by the Company or the Sellers in this Agreement, whether or not such investigation or knowledge was obtained or acquired pursuant to the access afforded under Section 6.03, and regardless of Buyer's decision to proceed with the Closing notwithstanding such investigation or knowledge.

Section 8.14. Treatment of Indemnity Payments.

8.14 Any payment made under this Article VIII is treated by the parties, to the extent permitted by Law, as an adjustment to the Purchase Price for all Tax purposes, and each party shall file its Tax Returns consistently with such treatment unless otherwise required by a final determination of a Governmental Authority.

Section 8.15. Subrogation.

8.15 Upon making full payment to an Indemnified Party in respect of a Loss under this Article VIII, the Indemnifying Party is subrogated to the extent of such payment to any right of the Indemnified Party against a third party with respect to the Loss for which the payment was made, and the Indemnified Party shall reasonably cooperate with the Indemnifying Party, at the Indemnifying Party's expense, in pursuing such right.

Section 8.16. Calculation of Losses.

8.16 Losses are calculated without duplication and net of any Tax benefit actually realized by the Indemnified Party as a result of the facts or circumstances giving rise to the Loss, and without regard to any multiple of earnings, revenue, or other valuation metric used by any party in negotiating the Purchase Price, unless the Indemnifying Party establishes that the use of such a multiple is the appropriate measure of the Loss actually suffered.

Section 8.17. Contingent or Unliquidated Claims.

8.17 A claim for indemnification under this Article VIII may be asserted, prior to the expiration of the applicable Survival Period, as to a Loss that is contingent or unliquidated as of the date the claim is asserted, provided the notice of claim describes the basis for the claim with reasonable specificity to the extent then known; the claim remains outstanding under Section 8.03 until the contingency is resolved or the amount of the Loss becomes fixed.

Section 8.18. Exclusive Source for Non-Fundamental Claims.

8.18 Buyer's recourse against the Escrow Amount under Section 8.05 for a non-fundamental claim under Section 8.01(a) is Buyer's sole and exclusive remedy for such a claim, and Buyer may not proceed directly against any Seller individually for such a claim while any portion of the Escrow Amount remains available, except in the case of

Fraud.

Section 8.19. Several, Not Joint, Liability for Fundamental Claims.

8.19 Notwithstanding the joint and several liability of the Sellers under Section 8.01, each Seller's liability for a claim based on a breach of a Fundamental Representation that is personal to such Seller, including the representations set forth in Section 4.03 as they relate to such Seller's own title to the Shares held by such Seller, is limited to such Seller's own several liability and does not extend to any other Seller's breach of the same representation with respect to Shares held by that other Seller.

Section 8.20. Dispute Resolution Under This Article.

8.20 Any dispute regarding entitlement to indemnification under this Article VIII, as distinct from a dispute regarding the Closing Statement governed by Section 2.07, is resolved exclusively by the courts identified in Section 11.03, and is not subject to review by the Independent Accountant.

Section 8.21. Tax Indemnification Cross-Reference.

8.21 Notwithstanding anything to the contrary in this Article VIII, a claim for indemnification with respect to Excluded Taxes is governed by Article X rather than by the Basket and Cap set forth in Section 8.04 and Section 8.05, and is instead subject to the Cap applicable to the representations set forth in Section 4.22 as stated in Section 8.05.

Section 8.22. Effect of Insurance Recovery Timing.

8.22 If an Indemnified Party has a colorable claim for insurance proceeds with respect to a Loss for which it seeks indemnification under this Article VIII, the Indemnifying Party may require the Indemnified Party to pursue such insurance proceeds before, or concurrently with, pursuing indemnification under this Article VIII, provided that the Indemnifying Party shall advance the amount of the Loss, subject to Section 8.10's true-up once the insurance proceeds, if any, are actually received.

Section 8.23. Basket and Cap Not Applicable to Purchase Price True-Up.

8.23 The Basket and the Cap set forth in Section 8.04 and Section 8.05 do not apply to, and are not implicated by, any payment made under Section 2.03 through Section 2.07 in respect of the Working Capital Adjustment or the Net Debt calculation, which is governed exclusively by Article II.

Section 8.24. Third Party Claim Cost Allocation Pending Defense.

8.24 Pending the Indemnifying Party's election to assume the defense of a Third Party Claim under Section 8.07, the Indemnified Party may take such reasonable actions as are necessary to preserve its rights with respect to such Third Party Claim, at the Indemnifying Party's expense, without such action being deemed an assumption of the defense by the Indemnified Party or a waiver of the Indemnifying Party's right to assume the defense.

Section 8.25. Notice Content Requirements.

8.25 A notice of claim delivered under Section 8.07 states, with reasonable specificity based on the information then available to the Indemnified Party, (a) the representation, warranty, or covenant alleged to have been breached, (b) a description of the facts giving rise to the alleged breach, and (c) the Indemnified Party's good-faith estimate of the Losses resulting from the alleged breach, if then reasonably capable of estimation; a notice that omits an estimate under clause (c) because such an estimate is not then reasonably capable of being made is not, for that reason alone,

an insufficient notice under Section 8.03.

Section 8.26. Selection of Defense Counsel.

8.26 If the Indemnifying Party assumes the defense of a Third Party Claim under Section 8.07, the Indemnifying Party selects counsel reasonably satisfactory to the Indemnified Party, provided that the Indemnified Party may retain separate counsel, at its own expense unless clause (b) of Section 8.07 applies, if the Indemnified Party reasonably believes that a conflict of interest exists between the Indemnifying Party and the Indemnified Party with respect to the Third Party Claim.

Section 8.27. Settlement Consent Thresholds.

8.27 Neither the Indemnifying Party nor the Indemnified Party may settle a Third Party Claim without the other's prior written consent, not to be unreasonably withheld, conditioned, or delayed, except that the Indemnifying Party may settle a Third Party Claim without the Indemnified Party's consent if the settlement (a) involves solely the payment of money for which the Indemnifying Party is fully responsible, (b) includes a full and unconditional release of the Indemnified Party, and (c) does not include any admission of wrongdoing by, or any injunctive or other non-monetary relief binding on, the Indemnified Party.

Section 8.28. Currency of Indemnification Payments.

8.28 An indemnification payment under this Article VIII is made in United States dollars, and a Loss originally incurred in a currency other than United States dollars is converted to United States dollars using the exchange rate published by the Wall Street Journal for the date the Loss was incurred, for purposes of applying the Basket and the Cap under Section 8.04 and Section 8.05.

Section 8.29. Indemnification Payments Net of Recoveries.

8.29 An Indemnified Party's recovery under this Article VIII is net of any amount actually recovered by the Indemnified Party from a third party, including under an Existing Insurance Policy or an R&W insurance policy referenced in Section 6.15, with respect to the same Loss, and the Indemnified Party shall promptly remit to the Indemnifying Party any such amount actually recovered after the Indemnifying Party has already paid the Indemnified Party for the same Loss, up to the amount the Indemnifying Party so paid.

Section 8.30. Cooperation in Defense.

8.30 The Indemnified Party shall reasonably cooperate with the Indemnifying Party in the defense of a Third Party Claim the Indemnifying Party has assumed under Section 8.07, including by making available records and personnel with relevant knowledge, at the Indemnifying Party's expense for any out-of-pocket cost the Indemnified Party incurs in providing that cooperation.

Section 8.31. Fraud Carve-Out From Basket and Cap.

8.31 The Basket and the Cap set forth in Section 8.04 and Section 8.05 do not limit recovery for a Loss arising from Fraud by the Company or a Seller, and a claim for such a Loss is recoverable directly against the responsible Seller without regard to the several, not joint, allocation of liability set forth in Section 8.19 for Fundamental Claims generally.

Section 8.32. Successor Liability Allocation.

8.32 If a Seller transfers substantially all of its assets, or dissolves, following the Closing but during the Survival

Period applicable to a claim against that Seller under this Article VIII, that Seller shall, prior to such transfer or dissolution, make provision reasonably satisfactory to Buyer for the satisfaction of that Seller's then-reasonably-anticipated indemnification obligations under this Article VIII.

Section 8.33. No Presumption From Escrow Balance.

8.33 The amount then remaining in the Escrow Account at any time is not evidence of, and creates no presumption regarding, the aggregate amount of Losses for which Sellers are actually liable under this Article VIII, which is determined solely by the process set forth in Section 8.07.

Section 8.34. Materiality Qualifiers Disregarded for Breach Determination.

8.34 For purposes of determining whether a breach of a representation or warranty in Article IV or Article V has occurred, and for purposes of calculating the amount of Losses resulting from that breach, each materiality or Material Adverse Effect qualifier in the representation or warranty is disregarded, other than the Material Adverse Effect qualifier in the representation itself defined by reference to a Material Adverse Effect, consistent with Section 8.11's Materiality Scrape.

Section 8.35. No Consequential Damages, With Carve-Outs.

8.35 No party is liable under this Article VIII for consequential, incidental, or punitive damages, except to the extent such damages are awarded to a third party in a Third Party Claim for which indemnification is otherwise available under this Article VIII, in which case such damages are treated as direct Losses recoverable under this Article VIII.

ARTICLE IX. TERMINATION

Section 9.01. Termination.

9.01 This Agreement may be terminated prior to the Closing: (a) by mutual written consent of Buyer and the Sellers' Representative; (b) by either Buyer or the Sellers' Representative if the Closing has not occurred on or before the date that is nine months after the date hereof (the “Outside Date”), provided that the right to terminate under this clause (b) is not available to a party whose breach of this Agreement has been the proximate cause of the failure of the Closing to occur by the Outside Date; (c) by either Buyer or the Sellers' Representative if a Governmental Authority of competent jurisdiction has issued a final, non-appealable Governmental Order prohibiting the consummation of the transactions contemplated hereby; or (d) by either Buyer or the Sellers' Representative if the other party has breached any representation, warranty, or covenant set forth in this Agreement, which breach would result in the failure of a condition set forth in Article VII and which breach is not cured within thirty days after written notice thereof, provided that the terminating party is not then in material breach of this Agreement.

Section 9.02. Effect of Termination.

9.02 If this Agreement is terminated pursuant to Section 9.01, this Agreement becomes void and has no effect, without any liability on the part of any party, except that (a) Section 6.11 (Confidentiality), this Article IX, and Article XI survive any such termination, and (b) no such termination relieves any party from liability for a Fraud committed, or a willful and material breach of this Agreement, prior to such termination.

Section 9.03. Return of Confidential Information.

9.03 If this Agreement is terminated pursuant to Section 9.01, Buyer shall, and shall cause its Representatives to,

promptly return or destroy all Confidential Information of the Company in its or their possession, and shall certify such return or destruction to the Sellers' Representative upon request, subject to Buyer's right to retain a copy as required by Law or internal compliance policy.

Section 9.04. No Further Obligation to Negotiate.

9.04 Termination of this Agreement under Section 9.01 does not obligate any party to continue negotiating a transaction with any other party, and each party is free, following such termination, to pursue an alternative transaction with any Person, subject to Section 6.11's surviving confidentiality obligations.

Section 9.05. Procedure for Termination.

9.05 A party terminating this Agreement under Section 9.01 delivers written notice of termination to the other party, stating the clause of Section 9.01 relied upon and, if applicable under clause (d) of Section 9.01, a reasonably detailed description of the uncured material breach giving rise to the termination right. Termination is effective upon delivery of that notice in accordance with Section 11.01.

Section 9.06. Survival of Certain Provisions.

9.06 Notwithstanding termination of this Agreement under Section 9.01, this Section 9.06 and Section 9.02, Section 9.03, Section 9.04, Section 11.01, Section 11.02, and Section 11.03 survive termination, together with the confidentiality obligations referenced in Section 6.11, and any liability of a party for an uncured material breach giving rise to termination under clause (d) of Section 9.01 arising prior to the effective date of termination.

Section 9.07. No Reverse Termination Fee.

9.07 No party is obligated to pay a termination fee, reverse termination fee, or similar payment to the other party as a result of a termination of this Agreement under Section 9.01, and each party's sole remedy for a termination described in Section 9.01 is as set forth in Section 9.02 through Section 9.04, except for a party's separate remedy for an uncured material breach giving rise to termination as preserved by Section 9.06.

Section 9.08. Effect on Disclosure Schedule Updates.

9.08 A supplement or amendment to the Disclosure Schedules delivered by the Company during the Interim Period pursuant to Section 6.06 does not, by itself, cure a termination right that has already accrued under Section 9.01 prior to delivery of that supplement or amendment, absent the terminating party's written waiver of that termination right.

Section 9.09. Publicity Following Termination.

9.09 Following a termination of this Agreement under Section 9.01, a party issuing a public statement regarding the termination shall use commercially reasonable efforts to consult with the other party regarding the content of that statement before it is issued, to the extent consistent with that party's disclosure obligations under applicable Law.

Section 9.10. Deposit Return.

9.10 If a deposit or good-faith payment has been made by Buyer to the Company or the Sellers' Representative in connection with the transactions contemplated by this Agreement prior to a termination under Section 9.01, that deposit or payment is returned to Buyer within five Business Days after the effective date of termination, except to the extent this Agreement expressly provides that a deposit or payment is non-refundable in the circumstances giving rise to the termination.

Section 9.11. Allocation of Costs Incurred Prior to Termination.

9.11 Each party bears its own costs and expenses incurred prior to a termination of this Agreement under Section 9.01, consistent with Section 11.11, and no termination under Section 9.01 shifts a cost or expense already incurred by one party onto the other, except as provided in Section 9.06 with respect to a liability for an uncured material breach.

Section 9.12. Non-Solicitation Following Termination.

9.12 For a period of one year following a termination of this Agreement under Section 9.01, Buyer shall not, directly or indirectly, solicit for employment a Key Employee whose identity Buyer learned solely through the diligence process contemplated by this Agreement, other than pursuant to a general solicitation not specifically directed at that Key Employee.

ARTICLE X. TAX MATTERS

Section 10.01. Purchase Price Allocation.

10.01 The parties shall allocate the Purchase Price among the assets of the Company in accordance with Section 1060 of the Code and consistent with Section 2.08. Each party shall file IRS Form 8594 and all other Tax Returns consistently with the agreed allocation and shall not take any position before any Governmental Authority inconsistent with such allocation, unless required to do so by a final determination of a Governmental Authority.

Section 10.02. Responsibility for Taxes.

10.02 Sellers are responsible for, and shall indemnify Buyer Indemnified Parties against, all Excluded Taxes. Buyer is responsible for all Taxes of the Company attributable to a Post-Closing Tax Period. With respect to a Straddle Period, Taxes are allocated between the Pre-Closing Tax Period and the Post-Closing Tax Period on an interim-closing-of-the-books basis, except that Taxes imposed on a periodic basis, such as real and personal property Taxes, are allocated on a daily basis.

Section 10.03. Transfer Taxes.

10.03 All Transfer Taxes arising from the transactions contemplated by this Agreement are borne equally by Buyer, on the one hand, and Sellers, on the other hand. The party required by applicable Law to file a Tax Return with respect to Transfer Taxes shall do so, and the other party shall cooperate as reasonably requested in connection therewith.

Section 10.04. Tax Returns; Cooperation.

10.04 Sellers shall prepare, or cause to be prepared, and timely file, or cause to be timely filed, all Tax Returns of the Company for a Pre-Closing Tax Period that are due (taking into account extensions) after the Closing Date, prepared consistently with the Company's past practice except as otherwise required by Law, and shall deliver each such Tax Return to Buyer for its review and comment a reasonable period before the due date thereof. The parties shall cooperate fully, and shall cause their respective Representatives to cooperate fully, in connection with the preparation and filing of any Tax Return and any Tax audit, litigation, or other proceeding with respect to Taxes of the Company.

Section 10.05. Tax Contests.

10.05 If a Governmental Authority asserts a claim, makes an assessment, or otherwise disputes the amount of Taxes

for a Pre-Closing Tax Period, Buyer shall notify the Sellers' Representative in writing within fifteen Business Days of becoming aware thereof. The Sellers' Representative may elect to control the conduct of any such Tax contest that relates solely to a Pre-Closing Tax Period and for which Sellers would be solely responsible under Section 10.02, at Sellers' expense, using counsel reasonably acceptable to Buyer, provided that the Sellers' Representative may not settle any such contest without Buyer's consent if the settlement would materially affect the Tax liability of the Company for a Post-Closing Tax Period.

Section 10.06. Refunds.

10.06 Any refund of Taxes of the Company attributable to a Pre-Closing Tax Period, to the extent not reflected as an asset in the calculation of Closing Working Capital or Net Debt, is for the account of Sellers, and Buyer shall pay, or cause the Company to pay, the amount of any such refund actually received to the Sellers' Representative within ten Business Days of receipt, net of any Taxes imposed on the receipt thereof.

Section 10.07. Section 338 Election.

10.07 Buyer shall not, and shall not permit any Affiliate to, make an election under Section 338 of the Code with respect to the transactions contemplated by this Agreement without the prior written consent of the Sellers' Representative.

Section 10.08. FIRPTA Certificate.

10.08 At the Closing, the Company shall deliver to Buyer a certificate, in form and substance reasonably satisfactory to Buyer, certifying that the Shares do not constitute a “United States real property interest” within the meaning of Section 897 of the Code, together with the notice to the IRS required under Treasury Regulations Section 1.897-2(h), so that Buyer is not required to withhold under Section 1445 of the Code.

Section 10.09. Withholding.

10.09 Buyer is entitled to deduct and withhold from any amount otherwise payable under this Agreement such amounts as Buyer is required to deduct and withhold under the Code or any other applicable Tax Law, provided that, except with respect to a payment to a Person that has not delivered the certificate referred to in Section 10.08 or an executed IRS Form W-9 or the applicable IRS Form W-8, Buyer shall notify the Sellers' Representative of its intent to withhold a reasonable time prior to the payment giving rise to the withholding obligation and shall cooperate in good faith to reduce or eliminate any such withholding to the extent permitted by applicable Law. Any amount so withheld and paid over to the appropriate Governmental Authority is treated for all purposes of this Agreement as having been paid to the Person in respect of which the withholding was made.

Section 10.10. Termination of Tax Sharing Arrangements.

10.10 Any Tax allocation, sharing, or indemnification agreement between the Company, on the one hand, and any Seller or any Affiliate of a Seller other than the Company, on the other hand, other than this Agreement, terminates as of the Closing without further liability to the Company, other than liability for amounts taken into account in the calculation of the Purchase Price.

Section 10.11. Tax Attributes.

10.11 The Sellers' Representative shall cooperate with Buyer's reasonable requests for information necessary for Buyer to determine the Company's available net operating losses, tax credit carryforwards, and other Tax attributes

as of the Closing Date, provided that no representation or warranty in Article IV addresses the amount or continued availability of any such Tax attribute following the Closing, and Buyer bears the risk that the transactions contemplated by this Agreement limit the usability of any such Tax attribute under Section 382 of the Code or otherwise.

Section 10.12. Amended Returns; Carrybacks.

10.12 Buyer shall not, and shall not permit the Company to, file an amended Tax Return for a Pre-Closing Tax Period, or make or change a Tax election that has retroactive effect to a Pre-Closing Tax Period, without the prior written consent of the Sellers' Representative, which consent is not to be unreasonably withheld. If the Company realizes a loss or credit in a Post-Closing Tax Period that may be carried back to a Pre-Closing Tax Period, Buyer shall, at the Sellers' Representative's written request and expense, cause the Company to file for and use commercially reasonable efforts to obtain the benefit of such carryback, and shall remit to the Sellers' Representative the amount of any refund actually received that is attributable to such carryback, net of any Tax cost to Buyer or the Company of obtaining it.

Section 10.13. Tax Treatment of the Transaction.

10.13 The parties intend that the purchase and sale of the Shares be treated, for U.S. federal income Tax purposes, as a purchase and sale of the stock of the Company, and no party shall take a position on any Tax Return, or before any Governmental Authority, inconsistent with that characterization, except as required by a final determination of a Governmental Authority. No election under Section 336(e) of the Code is made with respect to the transactions contemplated by this Agreement unless Buyer and the Sellers' Representative agree otherwise in writing.

Section 10.14. Transfer Pricing.

10.14 The Company has, in all material respects, established and maintained documentation supporting the arm's-length character of the pricing of any transaction between the Company and a Related Party for purposes of Section 482 of the Code and any comparable provision of applicable state, local, or foreign Law, and has not received a written proposed adjustment from a Governmental Authority with respect to any such pricing that remains unresolved as of the date hereof.

Section 10.15. Property Tax Proration.

10.15 Real and personal property Taxes for the Straddle Period in which the Closing Date occurs are prorated between Sellers and Buyer on a daily basis based on the number of days in the Straddle Period falling on or before the Closing Date, on the one hand, and the number of days falling after the Closing Date, on the other hand, using the most recently available Tax rate and assessed value, with a post-closing true-up once the actual Tax bill for the Straddle Period is issued.

Section 10.16. Payroll Tax Reporting.

10.16 Buyer and the Company, as successor employer, and Sellers, as predecessor employer, shall, to the extent permitted by applicable Law, use the "standard procedure" described in Section 4 of Revenue Procedure 2004-53 for purposes of reporting wages, and each shall furnish the other with any information reasonably necessary to comply with applicable Tax reporting obligations arising from the transactions contemplated by this Agreement.

Section 10.17. Tax Covenant Survival.

10.17 The covenants set forth in this Article X survive the Closing until sixty days after the expiration of the applicable statute of limitations, consistent with the survival period applicable to the representations set forth in Section 4.22 under Section 8.03.

Section 10.18. Tax Contest Procedure Detail.

10.18 Within ten Business Days after receipt of written notice of a Tax Contest relating to a Pre-Closing Tax Period or a Straddle Period, the party receiving such notice shall provide a copy of that notice to the other party, and the party controlling the Tax Contest under Section 10.05 shall keep the other party reasonably informed of material developments and shall not settle or compromise the Tax Contest in a manner that would reasonably be expected to increase the other party's Tax liability without that other party's prior written consent, not to be unreasonably withheld.

Section 10.19. Tax Return Preparation Standards.

10.19 A Tax Return prepared under Section 10.04 for a Pre-Closing Tax Period is prepared on a basis consistent with the Company's past practice, except to the extent a different position is required by a change in applicable Law or is agreed in writing by Buyer and the Sellers' Representative, and is provided to the Sellers' Representative for review and comment not later than fifteen Business Days prior to the due date for filing, taking into account any applicable extension.

Section 10.20. Cooperation on Withholding Certifications.

10.20 Each Seller shall deliver to Buyer, at or prior to the Closing, the certification referenced in Section 10.08 and such other Tax forms as Buyer reasonably requests to establish an exemption from, or a reduced rate of, withholding otherwise applicable to a payment made under this Agreement, and Buyer withholds from a payment only to the extent Buyer reasonably determines withholding is required after taking into account any certification or form so delivered.

Section 10.21. Tax Basis of Purchase Price Allocation.

10.21 The allocation agreed under Section 2.08 is prepared in accordance with Section 1060 of the Code and the Treasury Regulations promulgated thereunder, and each party shall promptly deliver to the other a copy of the Form 8594 (or successor form) it files reflecting that allocation.

Section 10.22. Post-Closing Tax Elections.

10.22 Buyer shall not, and shall not permit the Company to, make or change a Tax election having retroactive effect to a Pre-Closing Tax Period, or amend a Tax Return for a Pre-Closing Tax Period, without the Sellers' Representative's prior written consent, not to be unreasonably withheld, unless such election, change, or amendment could not reasonably be expected to increase any Seller's Tax liability or indemnification obligation under this Agreement.

Section 10.23. Cooperation on Section 338 Election Mechanics.

10.23 If Buyer and the Sellers' Representative agree to make an election under Section 10.07, the Sellers' Representative shall execute and deliver to Buyer such forms as are reasonably necessary to effect that election not later than the due date for filing the form, taking into account any applicable extension, and Buyer shall provide the Sellers' Representative a copy of the filed form promptly after filing.

Section 10.24. Tax Treatment of Escrow Investment Income.

10.24 For the avoidance of doubt, the allocation of investment income earned on the Escrow Account to Sellers under Exhibit C-7.01 is consistent with the parties' agreed Tax treatment of the Escrow Amount as a component of the equity consideration otherwise payable to Sellers, and does not itself alter the timing of Buyer's or the Company's own Tax reporting of the Purchase Price.

Section 10.25. State and Local Tax Cooperation.

10.25 Buyer and the Sellers' Representative shall cooperate in good faith to make any state or local Tax filing, including a bulk-sale notice or successor-liability clearance request, reasonably necessary to limit Buyer's exposure to a Pre-Closing Tax Period liability of the Company under state or local Law.

Section 10.26. No Duplication With Article VIII.

10.26 A Tax indemnification obligation under this Article X for a matter also covered by Article VIII is recoverable under this Article X rather than under Article VIII, consistent with Section 8.21's cross-reference, and no Loss is recoverable under both Article VIII and this Article X.

ARTICLE XI. MISCELLANEOUS

Incorporated Schedules and Exhibits include: the Disclosure Schedules (Article IV); the Accounting Principles Schedule and the itemized debt-like-items exclusion schedule (Section 2.04); the Buyer fiscal calendar Exhibit and the Earn-out Protection Covenants (Section 2.06); the Restrictive Covenants Schedule (Article VI); the Indemnification Schedule and Escrow Agreement (Article VIII); and the Knowledge Schedule (Article I). The body of this Agreement controls over any Schedule or Exhibit unless the Schedule or Exhibit expressly states that it controls.

Section 11.01. Notices.

11.01 All notices and other communications under this Agreement must be in writing and are deemed given when delivered personally, sent by nationally recognized overnight courier, or sent by email (with confirmation of transmission), in each case to the address or email address set forth on the signature pages, or such other address as a party may designate by notice given in accordance with this Section 11.01.

Section 11.02. Governing Law.

11.02 This Agreement is governed by, and construed in accordance with, the Laws of the State of Delaware, without regard to its conflict-of-laws principles.

Section 11.03. Consent to Jurisdiction; Waiver of Jury Trial.

11.03 Each party irrevocably submits to the exclusive jurisdiction of the Delaware Court of Chancery (or, if such court lacks subject matter jurisdiction, the federal or state courts sitting in the State of Delaware) in respect of any dispute arising out of or relating to this Agreement, and waives any right to trial by jury in any such proceeding to the fullest extent permitted by applicable Law.

Section 11.04. Entire Agreement.

11.04 This Agreement, together with the Schedules and Exhibits, constitutes the entire agreement of the parties with respect to its subject matter and supersedes all prior agreements and understandings, both written and oral, among the parties with respect to such subject matter, including any prior term sheet, letter of intent, or negotiation draft,

and including any draft circulated on a locked-box consideration basis, none of which survives execution of this Agreement.

Section 11.05. No Third-Party Beneficiaries.

11.05 Except for the Buyer Indemnified Parties and the Seller Indemnified Parties under Article VIII and the individuals benefited by Section 6.08, this Agreement is for the sole benefit of the parties and their respective successors and permitted assigns, and nothing in this Agreement confers any right, benefit, or remedy on any other Person.

Section 11.06. Amendment.

11.06 This Agreement may be amended only by a written instrument signed by Buyer and the Sellers' Representative. Any condition to a party's obligations under this Agreement may be waived only by a written instrument signed by the party entitled to the benefit of such condition.

Section 11.07. Assignment.

11.07 Neither party may assign this Agreement or any of its rights or obligations hereunder without the prior written consent of the other party, except that Buyer may assign this Agreement, without the Sellers' Representative's consent, to an Affiliate of Buyer or to a Successor Entity, provided that no such assignment relieves Buyer of its obligations under this Agreement.

Section 11.08. Severability.

11.08 If any provision of this Agreement is held invalid or unenforceable, the remainder of this Agreement remains in full force and effect, and the parties shall negotiate in good faith to replace the invalid or unenforceable provision with a valid and enforceable provision that most closely approximates the intent and economic effect of the invalid or unenforceable provision.

Section 11.09. Counterparts.

11.09 This Agreement may be executed in counterparts, each of which is an original, and all of which together constitute one and the same instrument. Delivery of an executed counterpart by electronic transmission is as effective as delivery of a manually executed counterpart.

Section 11.10. Sellers' Representative; Appointment.

11.10 The Sellers, by execution of this Agreement, irrevocably appoint the Sellers' Representative as their agent and attorney-in-fact for all purposes under this Agreement, as more fully set forth in Section 3.04.

Section 11.11. Expenses.

11.11 Except as otherwise expressly provided in this Agreement, each party shall bear its own fees, costs, and expenses incurred in connection with this Agreement and the transactions contemplated hereby, including the fees and expenses of its own counsel, accountants, and other advisors; provided that, for the avoidance of doubt, the Company's own such fees and expenses that constitute Transaction Expenses are deducted in determining the Purchase Price under Section 2.01.

Section 11.12. Interpretation of Article and Section References.

11.12 A reference in this Agreement to an Article, Section, Schedule, or Exhibit without further attribution is a reference to that Article, Section, Schedule, or Exhibit of or to this Agreement. The table of contents and the Article

and Section headings used in this Agreement are for convenience of reference only and do not affect the meaning or interpretation of this Agreement.

Section 11.13. Specific Performance.

11.13 Each party acknowledges that irreparable damage would occur if any provision of this Agreement is not performed in accordance with its specific terms, and that monetary damages would not be an adequate remedy. Accordingly, each party is entitled to seek specific performance of the terms of this Agreement, in addition to any other remedy to which it is entitled at law or in equity, without the necessity of proving actual damages or posting a bond.

Section 11.14. No Recourse Against Non-Parties.

11.14 No Non-Recourse Party has any liability to any party or their respective Affiliates for any obligation or liability of any party under this Agreement, or for any claim based on, arising out of, or relating to this Agreement or the transactions contemplated hereby, and each party waives and releases all such claims and liabilities against any Non-Recourse Party.

Section 11.23. Index of Defined Terms.

Each capitalized term used in this Agreement is defined in Article I, except for a term defined in the Article or Section identified below, where it is used only in that Article or in a small number of related Sections and is defined at its first use rather than in Article I:

Term	Defined In
Acquisition Proposal	Section 6.05
Basket	Section 8.04
Cap	Section 8.05
Closing Statement	Section 2.03
Collar	Section 2.04(c)
Escrow Account	Exhibit C, Article 1
Escrow Amount	Section 8.06
Estimated Closing Statement	Section 2.02
Independent Accountant	Section 2.07
Interim Period	Section 6.01
Non-Competition Period	Section 6.09
Outside Date	Section 9.01(b)
Purchase Price	Section 2.01
Survival Period	Section 8.03

Every other capitalized term used in this Agreement is defined in Article I, in alphabetical order, and this Section 11.23 does not restate any such term's substance.

Section 11.15. Waiver.

11.15 No failure or delay by any party in exercising any right, power, or remedy under this Agreement operates as a waiver thereof, nor does any single or partial exercise of any right, power, or remedy preclude any other or further exercise thereof, or the exercise of any other right, power, or remedy. No waiver of any provision of this Agreement is effective unless set forth in a written instrument signed by the party against whom the waiver is sought to be enforced, and any such waiver applies only to the specific instance for which it is given and not to any other or subsequent instance.

Section 11.16. Cumulative Remedies.

11.16 Except as expressly limited by Section 8.08, the rights and remedies provided to a party under this Agreement are cumulative and not exclusive of any right or remedy that such party may otherwise have at law or in equity.

Section 11.17. Time of the Essence.

11.17 Time is of the essence with respect to each date and period specified in this Agreement, including the Outside Date and each notice period set forth in Article VIII, and each such date or period is computed by excluding the day on which the period begins and including the day on which the period ends, provided that if a date so computed falls on a day that is not a Business Day, the relevant date is extended to the next succeeding Business Day, unless this Agreement expressly provides otherwise.

Section 11.18. Currency.

11.18 All dollar amounts referred to in this Agreement are in United States dollars, and all payments required to be made under this Agreement are made in United States dollars by wire transfer of immediately available funds, unless the parties otherwise agree in writing.

Section 11.19. Relationship of the Parties.

11.19 Nothing in this Agreement creates a partnership, joint venture, agency, or fiduciary relationship between Buyer, on the one hand, and the Company or any Seller, on the other hand, prior to the Closing, and none of Buyer, the Company, or any Seller has authority to bind any other of them prior to the Closing except as expressly provided in this Agreement.

Section 11.20. Disclosure Schedules Generally.

11.20 The Disclosure Schedules are arranged in sections corresponding to the numbered representations and warranties set forth in Article IV, provided that a matter disclosed in one section of the Disclosure Schedules is deemed disclosed with respect to any other section to which its relevance is reasonably apparent on its face, notwithstanding the omission of a cross-reference, consistent with Section 1.05.

Section 11.21. No Presumption Against Drafter.

11.21 This Agreement is the product of arm's-length negotiation among the parties, each represented by counsel of its own choosing, and the language used in this Agreement is deemed to be the language chosen by the parties to express their mutual intent; no rule of strict construction is applied against either party.

Section 11.22. Survival of Miscellaneous Provisions.

11.22 The provisions of this Article XI, together with Article VIII (as limited by its own survival provisions) and Section 6.11, survive the Closing indefinitely, except as any such provision by its own terms provides for a shorter period.

Section 11.24. Language.

11.24 This Agreement is executed in the English language, which governs its interpretation, and any translation of this Agreement into another language prepared for convenience has no legal effect.

Section 11.25. Further Assurances.

11.25 Following the Closing, each party shall execute and deliver such further documents and instruments, and take such further actions, as may be reasonably necessary to carry out the purposes and intent of this Agreement, at the requesting party's expense unless the requested action arises from the requested party's own obligation under this

Agreement.

Section 11.26. Copies of Notices.

11.26 A notice delivered to Buyer under Section 11.01 is copied to Buyer's outside counsel of record for the transactions contemplated by this Agreement, and a notice delivered to the Sellers' Representative under Section 11.01 is copied to the Sellers' Representative's outside counsel of record for such transactions, in each case at the address for such counsel identified on the signature pages to this Agreement; a failure to copy such counsel does not, by itself, render a notice ineffective as against the party to whom it is addressed.

Section 11.27. Table of Contents and Headings.

11.27 The table of contents and the headings of the Articles and Sections of this Agreement are for reference and convenience only, do not form a part of this Agreement, and do not affect its interpretation in any respect.

Section 11.28. Electronic Delivery of This Agreement.

11.28 A party may deliver an executed counterpart of this Agreement by electronic transmission, and such delivery has the same effect as delivery of an originally executed counterpart, consistent with Section 3.10's treatment of electronic signatures on the other Transaction Documents.

Section 11.29. No Partnership Among the Parties.

11.29 Nothing in this Agreement creates a partnership, joint venture, or agency relationship among the parties, other than the agency relationship expressly created between each Seller and the Sellers' Representative under Section 3.04.

EXHIBITS

The following Exhibits are bound to this Agreement and incorporated by reference. Each Exhibit that carries computed figures does so by attaching the governing input schedule or workbook referenced below; this Agreement does not restate a computed figure in an Exhibit where the governing schedule or workbook already states it, consistent with Section 1.05's rule that the body of this Agreement controls the mechanics and a Schedule or Exhibit controls only where it expressly says so.

EXHIBIT A. Form of Sample Working Capital Statement.

This Exhibit A consists of the Sample Working Capital Statement delivered by the Company to Buyer prior to the date hereof, itemizing the debt-like exclusions referenced in Section 2.04(b) and illustrating the line-item categorization the Accounting Principles hierarchy in Section 2.04(d) applies. The Sample Working Capital Statement is a form of presentation only; the actual Estimated Closing Statement and Closing Statement are prepared under Section 2.02 and Section 2.03 respectively, and this Exhibit A does not itself state either.

EXHIBIT B. Earn-out Computation Schedule.

This Exhibit B consists of the earn-out computation schedule referenced in Section 2.06, setting forth the scenario inputs, the tier mechanics of Section 2.06(b), the Revenue gate of Section 2.06(c), the Earn-out Protection Covenants referenced in Section 2.06(e), and the Timing and Discounting tab that resolves the commencement date produced by the Period 1 start rule stated in Section 2.06(a). This Agreement states the rule that governs the earn-out computation; the computation schedule attached as this Exhibit B is the governing input set and the place where that rule is actually applied to a calendar date.

EXHIBIT C. Form of Escrow Agreement.

This Exhibit C consists of the form of Escrow Agreement to be entered into at the Closing among Buyer, the Sellers' Representative, and the Escrow Agent, governing the deposit, investment, and release of the Escrow Amount described in Section 8.06.

EXHIBIT D. Funds Flow Memorandum.

This Exhibit D consists of the funds flow memorandum referenced in Section 2.01, setting forth the Sources and Uses of funds at the Closing, including the sponsor equity contribution, the acquisition financing described in Section 5.05, the Escrow Amount described in Section 8.06, and the resized line item that balances Sources to Uses. The funds flow memorandum is administrative: it implements, but does not modify, the substantive Purchase Price mechanics of Article II.

EXHIBIT A-1. Sample Working Capital Statement — Column Description.

The Sample Working Capital Statement presents, on its GAAP-presentation tab, the Company's current assets and current liabilities as classified under GAAP without regard to the exclusions described in Section 2.04(b), and, on its Debt-Like Exclusions tab, the itemized categories of debt-like current liability that Section 2.04(b) removes from Closing Working Capital and reallocates to Net Debt. A third, Total Closing Working Capital tab presents the GAAP-presentation figure net of the Debt-Like Exclusions tab's itemization, arriving at the Closing Working Capital figure Section 2.04(a) actually adjusts against Target Working Capital. Each tab's own row headers state, in the Sample Working Capital Statement's own words, which of the three presentations that tab is and is not.

EXHIBIT B-1. Earn-out Computation Schedule — Tab Description.

The earn-out computation schedule's Tier Mechanics tab states, as numbered clauses, the marginal-band construction described in Section 2.06(b): the rate applicable to the increment between Threshold 1 and Threshold 2, and the catch-up rate applicable to the full increment above Threshold 1 once Threshold 2 is reached. Its Scenario/Probability tab sets forth the probability-weighted EBITDA and Revenue scenarios referenced in Section 2.06(c), together with the governing method for combining a tier computation with a probability weighting, stated as an explicit clause rather than left to inference. Its Quick Reference tab is an informal summary only, and its own text says so; it is never an alternate computation method to the Tier Mechanics tab. Its Timing and Discounting tab resolves the commencement date produced by Section 2.06(a)'s Period 1 start rule and states the discount convention referenced in the funds flow memorandum.

EXHIBIT D-1. Funds Flow Memorandum — Structure.

The funds flow memorandum presents a Sources table and a Uses table that balance to the same aggregate total, a Net Debt Bridge section supporting the acquisition financing's own sizing, and a Notes section identifying the one declared free variable referenced in Section 2.01. The funds flow memorandum is prepared and delivered by Buyer, is administrative only, and does not amend, or serve as a substitute for, the Estimated Closing Statement delivered by the Company under Section 2.02.

EXHIBIT E. Buyer Fiscal-Calendar Convention (4-4-5).

This Exhibit E sets forth the Buyer's 4-4-5 fiscal-calendar convention referred to in Section 2.06(a): each fiscal quarter is divided into three fiscal months of four, four, and five weeks respectively, so that fiscal-month boundaries

fall on fiscal-week ends rather than on calendar-month ends. This Exhibit E states the methodology by which the first day of Buyer's next fiscal month following any given date is determined; it does not restate the specific commencement date that methodology produces for the Closing Date stated in Section 2.05, which is confirmed on the Timing and Discounting tab of Exhibit B.

A calculation that applies this Exhibit E's 4-4-5 methodology to a calendar month boundary, rather than to Buyer's own fiscal-week-end boundaries, does not correctly determine the first day of Buyer's next fiscal month for purposes of Section 2.06(a).

EXHIBIT C-1. Escrow Agreement — Article 1. Establishment of Escrow.

C-1.01 The Escrow Agent shall establish an escrow account (the "Escrow Account") into which the Escrow Amount is deposited at the Closing pursuant to Section 8.06 of the Agreement. The Escrow Agent shall hold, invest, and disburse the Escrow Account solely in accordance with this Escrow Agreement, and the Escrow Account is not subject to any Lien, attachment, or other claim of any creditor of Buyer, the Company, or any Seller, other than a claim properly asserted under this Escrow Agreement.

EXHIBIT C-2. Escrow Agreement — Article 2. Investment.

C-2.01 Absent joint written investment instructions from Buyer and the Sellers' Representative, the Escrow Agent shall invest the Escrow Account in a money market fund investing solely in direct obligations of the United States government or an agency thereof. The Escrow Agent is not liable for any loss resulting from an investment made in accordance with this Article 2, and any interest or other income earned on the Escrow Account is added to, and becomes part of, the Escrow Account.

EXHIBIT C-3. Escrow Agreement — Article 3. Claims Procedure.

C-3.01 A claim against the Escrow Account is made by Buyer's delivery to the Escrow Agent and the Sellers' Representative of a written notice stating the amount claimed and a reasonably detailed description of the basis for the claim under Article VIII of the Agreement. If the Sellers' Representative does not deliver a written objection to the Escrow Agent and Buyer within twenty Business Days after such notice, the Escrow Agent shall disburse the amount claimed from the Escrow Account to Buyer. If the Sellers' Representative timely objects, the Escrow Agent shall disburse the disputed amount only upon (a) joint written instructions from Buyer and the Sellers' Representative or (b) a final, non-appealable order of a court of competent jurisdiction under Section 11.03 of the Agreement.

EXHIBIT C-4. Escrow Agreement — Article 4. Release of Escrow.

C-4.01 Promptly following expiration of the Survival Period applicable to non-fundamental representations under Section 8.03 of the Agreement, Buyer and the Sellers' Representative shall jointly instruct the Escrow Agent to release to the Sellers' Representative, for further distribution to Sellers in accordance with their respective interests, the portion of the Escrow Account then remaining, less the aggregate amount of any claim asserted under Article 3 above that remains unresolved as of such date, which remaining amount is held pending resolution of such claim and released promptly upon its resolution.

EXHIBIT C-5. Escrow Agreement — Article 5. The Escrow Agent.

C-5.01 The Escrow Agent's duties under this Escrow Agreement are purely ministerial, and the Escrow Agent has

no duty to investigate the merits of any claim, to determine the accuracy of any notice delivered under this Escrow Agreement, or to resolve any dispute between Buyer and the Sellers' Representative. The Escrow Agent may rely conclusively on any notice, instruction, or other document it reasonably believes to be genuine, and is not liable for any action taken or omitted in good faith reliance thereon, other than as a result of its own gross negligence or willful misconduct.

C-5.02 The Escrow Agent may resign upon thirty days' written notice to Buyer and the Sellers' Representative, who shall jointly appoint a successor escrow agent within such thirty-day period; if no successor is appointed within such period, the Escrow Agent may petition a court of competent jurisdiction for the appointment of a successor or may deposit the Escrow Account with such court pending such appointment.

EXHIBIT C-6. Escrow Agreement — Article 6. Fees; Indemnification.

C-6.01 The Escrow Agent's fees for its services under this Escrow Agreement are borne equally by Buyer, on the one hand, and Sellers, on the other hand, and are not paid from the Escrow Account. Buyer and Sellers, severally in proportion to their respective interests in the Escrow Account, shall indemnify the Escrow Agent against any Loss incurred by the Escrow Agent in connection with this Escrow Agreement, other than a Loss resulting from the Escrow Agent's own gross negligence or willful misconduct.

EXHIBIT C-7. Escrow Agreement — Article 7. Tax Reporting.

C-7.01 For U.S. federal income Tax purposes, all interest and other income earned on the Escrow Account is allocated to Sellers, and the Escrow Agent shall report such income to Sellers on the appropriate information return, regardless of whether such income is ultimately disbursed to Buyer pursuant to a claim under Article 3 above.

EXHIBIT C-8. Escrow Agreement — Article 8. Miscellaneous.

C-8.01 This Escrow Agreement is governed by the Laws of the State of Delaware. Notices under this Escrow Agreement are given in the manner provided in Section 11.01 of the Agreement, addressed additionally to the Escrow Agent at the address set forth on the signature page of this Escrow Agreement. This Escrow Agreement may be amended only by a written instrument signed by Buyer, the Sellers' Representative, and the Escrow Agent, and may be executed in counterparts.

EXHIBIT F. Form of Officer Certificate.

This Exhibit F consists of the form of certificate to be delivered under Section 3.02(d), pursuant to which an officer of the Company certifies, on behalf of the Company and the Sellers, the accuracy of the representations set forth in Article IV as of the Closing Date and the performance of the covenants required to be performed by the Company and the Sellers prior to the Closing.

EXHIBIT F-1. Form of Officer Certificate — Full Text.

The undersigned, the [Chief Executive Officer] [Chief Financial Officer] of the Company, solely in such capacity and not in an individual capacity, hereby certifies, on behalf of the Company and, with respect to paragraph 2 below, on behalf of the Sellers pursuant to the authority granted under Section 3.04 of the Agreement, as follows:

F-1 The representations and warranties of the Company and the Sellers set forth in Article IV of the Agreement are true and correct in all material respects (or, in the case of a representation or warranty already qualified by materiality or Material Adverse Effect, in all respects) as of the date of this certificate, except to the extent any such

representation or warranty is expressly made as of an earlier date, in which case it is true and correct as of such earlier date.

F-2 The Company and the Sellers have performed and complied in all material respects with each covenant required by the Agreement to be performed or complied with by them on or prior to the date of this certificate.

F-3 No Material Adverse Effect has occurred since the date of the Agreement.

IN WITNESS WHEREOF, the undersigned has executed this certificate as of the Closing Date.

EXHIBIT A-1. Sample Working Capital Statement — Line-Item Format.

The Sample Working Capital Statement referenced in Section 2.04(b) presents its line items in the following categories; the amount attributable to each category is stated solely on the Sample Working Capital Statement itself, never in this Agreement.

Category	Included in Closing Working Capital
Accounts receivable, net of reserve	Yes
Inventory, net of reserve	Yes
Prepaid expenses	Yes
Accounts payable	Yes
Accrued operating expenses (trade)	Yes
Accrued interest	No — Net Debt (Section 2.04(b))
Capital lease current portion	No — Net Debt (Section 2.04(b))
Deferred contingent earn-out, prior tuck-in	No — Net Debt (Section 2.04(b))
Cash and cash equivalents	No — Cash (Article I)

EXHIBIT B-1. Earn-out Computation Schedule — Structural Overview.

The earn-out computation schedule referenced in Section 2.06 is organized into a Tier Mechanics tab (stating the governing formula for each of clause (b) through clause (f) of Section 2.06), a Scenario Tree tab (stating the scenario inputs, computed scenario-by-scenario per Tier Mechanics clause (v)), a Quick Reference tab (an informal summary, never an alternate computation method), and a Timing and Discounting tab (confirming the commencement date produced by applying Exhibit E's methodology to the Closing Date). Buyer's finance team applies the Tier Mechanics tab to each Earn-out Period's actual results as and when reported under the Earn-out Protection Covenants, and circulates the resulting computation to the Sellers' Representative not later than thirty days after the end of the applicable Earn-out Period.

EXHIBIT D-1. Funds Flow — Sources and Uses Category Format.

The funds flow memorandum referenced in Section 2.01 presents its Sources and Uses in the following categories; the amount attributable to each category, and the identity of the resized line described in the funds flow memorandum's own Notes section, are stated solely on the funds flow memorandum itself.

Sources	Uses
Sponsor equity contribution	Equity consideration to Sellers
Revolver draw at Closing	Escrow Amount withheld
Incremental term loan (resized to balance)	Financing fees
	Transaction Expenses

EXHIBIT C-9. Escrow Agreement — Article 9. Successor Escrow Agent.

C-9.01 A successor escrow agent appointed under Article 5 of the Escrow Agreement assumes all of the rights, powers, and duties of the resigning or removed Escrow Agent, and the resigning or removed Escrow Agent shall transfer the Escrow Account, together with all records relating to it, to the successor escrow agent promptly upon the

successor's acceptance of its appointment.

EXHIBIT C-10. Escrow Agreement — Article 10. Force Majeure.

C-10.01 The Escrow Agent is not liable for a failure or delay in performance caused by circumstances beyond its reasonable control, including a failure of communications or funds-transfer systems, provided that the Escrow Agent resumes performance promptly after such circumstances cease.

EXHIBIT C-11. Escrow Agreement — Article 11. Entire Agreement Among Escrow Parties.

C-11.01 This Escrow Agreement, together with the Agreement to the extent incorporated by reference, is the entire agreement among Buyer, the Sellers' Representative, and the Escrow Agent with respect to the Escrow Account, and supersedes any prior discussion or understanding among them with respect to the Escrow Account.

EXHIBIT G. Form of Secretary's Certificate.

This Exhibit G consists of the form of certificate to be delivered under Section 3.02(c), pursuant to which the secretary of the Company certifies the matters described below.

G-1 Attached as Annex 1 to this certificate is a true, correct, and complete copy of the Company's Organizational Documents as in effect on the date of this certificate, and no amendment to the Organizational Documents is pending or has been authorized but not yet effected.

G-2 Attached as Annex 2 to this certificate is a true, correct, and complete copy of the resolutions duly adopted by the Company's board of directors approving this Agreement and the transactions contemplated hereby, which resolutions have not been amended, rescinded, or modified and remain in full force and effect.

G-3 Each person listed on Annex 3 to this certificate is a duly elected or appointed officer of the Company holding the office set forth opposite that person's name, and the signature set forth opposite that person's name is such person's genuine signature.

EXHIBIT H. Form of Buyer Officer Certificate.

The undersigned, an officer of Buyer, solely in such capacity and not in an individual capacity, hereby certifies, on behalf of Buyer, as follows:

H-1 The representations and warranties of Buyer set forth in Article V of the Agreement are true and correct in all material respects (or, in the case of a representation or warranty already qualified by materiality, in all respects) as of the date of this certificate, except to the extent any such representation or warranty is expressly made as of an earlier date, in which case it is true and correct as of such earlier date.

H-2 Buyer has performed and complied in all material respects with each covenant required by the Agreement to be performed or complied with by it on or prior to the date of this certificate.

IN WITNESS WHEREOF, the undersigned has executed this certificate as of the Closing Date.

EXHIBIT A-2. Sample Working Capital Statement — Preparation Notes.

The Sample Working Capital Statement is prepared from the Company's trial balance as of the date it is prepared, reconciled to the Company's general ledger, with each debt-like exclusion identified in Exhibit A-1 above cross-referenced to its supporting invoice, amortization schedule, or payoff statement. The Sample Working Capital Statement is illustrative of the categorization the Accounting Principles hierarchy in Section 2.04(d) applies; it is not itself the Estimated Closing Statement or the Closing Statement, each of which is prepared as of a different date

under Section 2.02 and Section 2.03 respectively.

EXHIBIT D-2. Funds Flow — Wire Confirmation Log Format.

The deal team maintains a wire confirmation log, in the following format, tracking each wire in the sequence described in the funds flow memorandum's own Sequencing of Closing Wires section as it is sent and confirmed on the Closing Date.

Sequence Step	Description	Confirmation Status
(a)	Incremental term loan proceeds funded	Pending
(b)	Sponsor equity contribution funded	Pending
(c)	Escrow Amount wired to Escrow Agent	Pending
(d)	Net equity consideration wired to Sellers	Pending
(e)	Payoff amounts wired to payoff creditors	Pending
(f)	Financing fees and Transaction Expenses wired	Pending

EXHIBIT I. Form of Resignation Letter.

The undersigned hereby resigns, effective as of the Closing, from each office and directorship held with the Company, and confirms that the undersigned has no claim against the Company for compensation, expense reimbursement, or other amount arising from service in such office or directorship, other than an amount reflected as an accrued liability in the Closing Statement delivered under Section 2.03.

EXHIBIT J. Form of Payoff Letter Acknowledgment.

The undersigned, as holder of the Indebtedness described below, acknowledges that upon receipt of the payoff amount confirmed in writing by the undersigned, all Liens securing that Indebtedness are released, and the undersigned shall promptly deliver, or authorize the Company's counsel to file, all documentation necessary to record that release with the appropriate Governmental Authority. This form of acknowledgment does not apply to the Industrial Revenue Bonds, which are assumed, not repaid, at the Closing.

EXHIBIT K. Form of Non-Competition and Non-Solicitation Agreement.

This Exhibit K consists of the form of Non-Competition and Non-Solicitation Agreement to be entered into at the Closing by each Seller identified on the Restrictive Covenants Schedule, in consideration of the Purchase Price payable under Article II, a portion of which the parties have agreed is allocable to the restrictive covenants set forth below.

K-1 Non-Competition. During the Non-Competition Period, the undersigned shall not, directly or indirectly, own, manage, operate, control, or participate in the ownership, management, operation, or control of, any Restricted Business within the Restricted Territory, other than through the ownership of not more than two percent of the outstanding equity securities of a publicly traded company.

K-2 Non-Solicitation of Employees. During the Non-Competition Period, the undersigned shall not, directly or indirectly, solicit for employment or hire a Key Employee, other than pursuant to a general solicitation not specifically directed at a Key Employee or with the Company's prior written consent.

K-3 Non-Solicitation of Customers. During the Non-Competition Period, the undersigned shall not, directly or indirectly, solicit a Material Customer of the Company to reduce or terminate its business relationship with the Company on account of the transactions contemplated by the Agreement.

K-4 Acknowledgment of Reasonableness. The undersigned acknowledges that the restrictions set forth in this

Exhibit K are reasonable in scope, geography, and duration in light of the consideration paid under the Agreement and the goodwill of the Business being acquired, and are necessary to protect the legitimate business interests of Buyer and the Company following the Closing.

K-5 Tolling. If the undersigned breaches a restriction set forth in this Exhibit K, the Non-Competition Period is extended, with respect to the undersigned only, by a period equal to the duration of that breach, so that Buyer and the Company receive the benefit of the full Non-Competition Period undiminished by the breach.

K-6 Injunctive Relief. The undersigned acknowledges that a breach of this Exhibit K would cause irreparable harm for which monetary damages alone would be an inadequate remedy, and agrees that Buyer and the Company are entitled to injunctive relief to enforce this Exhibit K, in addition to any other remedy available at law or in equity, without the necessity of posting a bond.

K-7 Severability; Blue-Penciling. If a court of competent jurisdiction determines that a restriction in this Exhibit K is unenforceable as written, that court is authorized to modify the restriction, including its duration, geographic scope, or the activities it covers, to the minimum extent necessary to render it enforceable, and the restriction as so modified is enforced.

EXHIBIT L. Form of Transition Services Term Sheet.

This Exhibit L consists of the term sheet for the transition services the Company, through its retained back-office personnel, shall make available to Buyer for a period following the Closing, on the terms summarized below.

Service	Duration Following Closing	Basis
Payroll processing support	Ninety days	Cost-plus, invoiced monthly
Accounts payable/receivable support	Ninety days	Cost-plus, invoiced monthly
IT helpdesk and systems access	Sixty days	Cost-plus, invoiced monthly
Facilities and office services	Thirty days	Cost-plus, invoiced monthly

The definitive Transition Services Agreement implementing this term sheet is negotiated in good faith between the Closing and the date specified in the Restrictive Covenants Schedule, and, if not finalized by that date, the terms summarized above apply directly without further documentation until a definitive agreement is executed.

EXHIBIT M. Form of Landlord Consent and Estoppel Certificate.

This Exhibit M consists of the form of consent and estoppel certificate to be requested from the landlord under each Real Property Lease identified on Schedule 4.12 as requiring landlord consent to the transactions contemplated by this Agreement.

M-1 The undersigned landlord certifies that the Real Property Lease identified above is in full force and effect, has not been amended except as attached to this certificate, and that, to the undersigned's knowledge, the tenant is not in default under the Real Property Lease as of the date of this certificate.

M-2 The undersigned landlord consents to the transactions contemplated by the Agreement to the extent such consent is required under the Real Property Lease, and confirms that this consent does not itself constitute an amendment of the Real Property Lease's other terms.

EXHIBIT N. Form of Intellectual Property Assignment Confirmation.

This Exhibit N consists of the form of confirmatory assignment to be executed by each Employee identified on Schedule 4.16 whose original invention-assignment agreement predates the Company's present form, confirming that agreement's continued application to Company Intellectual Property developed through the Closing.

N-1 The undersigned confirms that all Intellectual Property conceived, created, or developed by the undersigned within the scope of the undersigned's employment with the Company, through and including the Closing Date, is owned exclusively by the Company, and the undersigned assigns, to the extent any such Intellectual Property has not already vested in the Company by operation of Law, all of the undersigned's right, title, and interest in that Intellectual Property to the Company.

EXHIBIT O. Index of Exhibits.

For ease of reference, this Exhibit O lists each Exhibit bound to this Agreement: Exhibit A (Sample Working Capital Statement), Exhibit B (Earn-out Computation Schedule), Exhibit C (Escrow Agreement), Exhibit D (Funds Flow Memorandum), Exhibit E (Buyer Fiscal-Calendar Convention), Exhibit F (Officer Certificate — Company and Sellers), Exhibit G (Secretary's Certificate), Exhibit H (Officer Certificate — Buyer), Exhibit I (Resignation Letter), Exhibit J (Payoff Letter Acknowledgment), Exhibit K (Non-Competition and Non-Solicitation Agreement), Exhibit L (Transition Services Term Sheet), Exhibit M (Landlord Consent and Estoppel Certificate), and Exhibit N (Intellectual Property Assignment Confirmation). This Exhibit O is a navigational aid only and does not itself state, or restate, the substantive terms of any Exhibit it lists.

EXHIBIT C-12. Escrow Agreement — Article 12. Amendment.

C-12.01 This Escrow Agreement may be amended only by a written instrument signed by Buyer, the Sellers' Representative, and the Escrow Agent, and no amendment is effective against the Escrow Agent unless the Escrow Agent is a signatory to it.

EXHIBIT C-13. Escrow Agreement — Article 13. Assignment.

C-13.01 No party to this Escrow Agreement may assign its rights or obligations under this Escrow Agreement without the prior written consent of the other parties, other than an assignment by Buyer to an Affiliate of Buyer or to a successor by merger or acquisition of substantially all of Buyer's assets, which assignment does not require such consent.

EXHIBIT B-2. Earn-out Computation Schedule — Reporting Cadence.

Within thirty days after the end of each fiscal quarter falling within an Earn-out Period, Buyer shall deliver to the Sellers' Representative a report, in the format of the Tier Mechanics tab, showing the Company's cumulative EBITDA and Revenue for the Earn-out Period through the end of that fiscal quarter, together with reasonably detailed supporting calculations. This quarterly reporting cadence is administrative and does not itself determine Achievement for a completed Earn-out Period, which is determined only after the end of that Earn-out Period under the Tier Mechanics tab.

EXHIBIT A-3. Sample Working Capital Statement — Dispute Cross-Reference.

If a disagreement regarding a line item on the Closing Statement is submitted to the Independent Accountant under Section 2.07, the Independent Accountant refers to the categorization set forth in Exhibit A-1 above, and to the Sample Working Capital Statement itself, in applying the Accounting Principles hierarchy of Section 2.04(d); this Exhibit A does not itself resolve a disputed line item, which remains the Independent Accountant's function under Section 2.07.

EXHIBIT C-14. Escrow Agreement — Article 14. Interpleader.

C-14.01 If the Escrow Agent receives conflicting written instructions regarding disbursement of the Escrow Account that are not resolved within the time period contemplated by Article 3 of this Escrow Agreement, the Escrow Agent may, in its discretion and without liability for doing so, commence an interpleader action and deposit the Escrow Account with a court of competent jurisdiction pending resolution of the conflicting instructions.

EXHIBIT F-2. Officer Certificate — Bring-Down Cross-Reference.

The Officer Certificate delivered under Section 3.02(d) speaks as of the Closing Date and reflects any supplement to the Disclosure Schedules delivered under Section 6.06 prior to the Closing, consistent with Section 7.11's treatment of such a supplement.

EXHIBIT D-3. Funds Flow — Confirmation to Sellers' Representative.

Promptly after completion of the wire sequence described in the funds flow memorandum's own Sequencing of Closing Wires section, Buyer's deal team delivers a written confirmation to the Sellers' Representative stating that each wire in that sequence has been sent and confirmed, which confirmation is administrative and does not itself restate, or modify, the Purchase Price mechanics of Article II.

EXHIBIT G-2. Secretary's Certificate — Incumbency Table Format.

Annex 3 to the Secretary's Certificate referenced in Exhibit G above identifies each certifying officer by name and title, in the following format.

Name	Title	Specimen Signature
[Name]	Chief Executive Officer	[Signature on file]
[Name]	Chief Financial Officer	[Signature on file]

EXHIBIT P. Form of Key Employee Offer Letter Term Sheet.

This Exhibit P consists of the term sheet for the post-Closing offer of continued employment Buyer intends to extend to each Key Employee identified on Schedule 4.32, on terms at least as favorable in the aggregate as those the Key Employee enjoys with the Company immediately prior to the Closing.

P-1 Each offer extended under this Exhibit P is contingent on the occurrence of the Closing and automatically lapses, without further action by Buyer, if this Agreement is terminated under Article IX.

P-2 Nothing in this Exhibit P obligates a Key Employee to accept an offer extended under it, and a Key Employee's declination of such an offer does not, by itself, constitute a breach of a Company Benefit Plan or a covenant under Article VI.

EXHIBIT Q. Form of Continuing Confidentiality Undertaking.

This Exhibit Q consists of the form of undertaking by which each Seller confirms that the confidentiality obligations referenced in Section 6.11 survive the Closing and the expiration of the Non-Competition Period, with respect to Confidential Information that does not otherwise become generally available to the public.

Q-1 The undersigned shall not, at any time following the Closing, disclose Confidential Information to a Person other than a Representative of the undersigned with a need to know it in connection with a matter expressly permitted by this Agreement, including the post-Closing true-up process under Article II and the indemnification process under Article VIII.